CRACK IAS

PRELIMS BOOSTER

2025

POLITY & GOVERNANCE

Crack PRE Compass

UPSC Civil Services | Preliminary Examination
Current affairs compilation - 2025 edition

Crack IAS study copy
Source material: CrackIAS PRE Compass 2025
Cover adapted. Pages 2 onward retain the supplied source.

CONTENTS

AMENDMENT OF THE CONSTITUTION 3

1. UNION CABINET APPROVED SIMULTANEOUS ELECTION PLAN 3
2. 106TH CONSTITUTIONAL AMENDMENT ACT 5
3. BASIC STRUCTURE DOCTRINE 5

CITIZENSHIP 7

1. CITIZENSHIP 7

RIGHTS ISSUE 10

1. RESERVATION 10
2. UNIFORM CIVIL CODE 11
3. LIVING WILL 14
4. RIGHT TO UNIONISE 15
5. POLYGRAPH TEST 15
6. FACT CHECK UNIT 16
7. RIGHT TO DISCONNECT 17
8. RIGHT TO MARRY NOT FR 17
9. RIGHT TO SILENCE 17
10. RIGHT TO WALK 18
11. MINORITY STATUS OF AMU 18

EXECUTIVE 20

1. PRESIDENT'S AND GOVERNOR'S ADDRESS 20
2. ARTICLE-361 IMMUNITY FOR PRESIDENT & GOVERNORS 22
3. PROCESS TO REMOVE THE VICE PRESIDENT OF INDIA 22
4. CABINET COMMITTEE 23
5. 23RD LAW COMMISSION CONSTITUTED 24

FEDERALISM 25

1. SEVENTH SCHEDULE 25
2. PRESIDENT'S RULE UNDER ARTICLE-356 26
3. FISCAL FEDERALISM 27
4. BASIS OF DEVOLUTION 27
5. ROLE OF 16TH FINANCE COMMISSION 28
6. INTER-STATE BORDER DISPUTES 28
7. INTER-STATE RIVER WATER DISPUTE 29
8. GOVERNOR 31
9. ARTICLE-200 32
10. THREE-LANGUAGE FORMULA 33
11. SPECIAL CATEGORY STATUS (SCS) 33

PARLIAMENT 35

1. ANTI-DEFECTION LAW 35
2. CROSS-VOTING IN RAJYA SABHA ELECTIONS 36
3. LEADER OF OPPOSITION (LOP) POST IN LOK SABHA 36
4. POST OF DEPUTY SPEAKER 36
5. PRIVATE MEMBER'S BILL 37
6. JOINT PARLIAMENTARY COMMITTEE 37
7. PUBLIC ACCOUNTS COMMITTEE (PAC) 38
8. RULES FOR SUSPENSION OF MPS 38
9. DELIMITATION 39
10. ELECTIONS IN INDIA 40
11. NAME, SYMBOLS AND PARTY RECOGNITION 41
12. SECTION 102 OF RPA PROVIDES FOR DRAW OF LOTS IN CASE OF TIE IN ELECTIONS. 42
13. TECHNOLOGICAL INNOVATIONS OF ELECTION COMMISSION OF INDIA 43
14. RULES REGARDING STAR CAMPAIGNER 43
15. ELECTORAL TRUST SCHEME 44
16. PARLIAMENTARY PRIVILEGES 44
17. NO-CONFIDENCE MOTION 46

JUDICIARY 47

1. APPOINTMENT 47
2. ARTICLE 142 47
3. AD-HOC JUDGES IN HIGH COURT 48
4. PROCESS OF REMOVAL OF HC JUDGE 49
5. TENURE AND AGE OF RETIREMENT OF JUDGES 50
6. TRANSFER OF HIGH COURT JUDGES 50
7. PUISNE JUDGE 51
8. BLACK COAT SYNDROME' IN COURTS 51
9. NEW STATUE OF LADY JUSTICE 51

10. NEW FLAG AND INSIGNIA OF SUPREME COURT 51
11. ADVOCATE ON RECORD 52
12. LOK ADALAT 52
13. BAR COUNCIL OF INDIA 53
14. TRIBUNALS 53
15. FOREIGNERS TRIBUNALS 54
16. SUBORDINATE JUDICIARY 54
17. CENTRAL ADMINISTRATIVE TRIBUNALS 55
18. JUSTICE CLOCKS 56
19. LIVE STREAMING OF HIGHER JUDICIARY HEARINGS 56
20. INDIA JUSTICE REPORT 56
21. E SCR 57

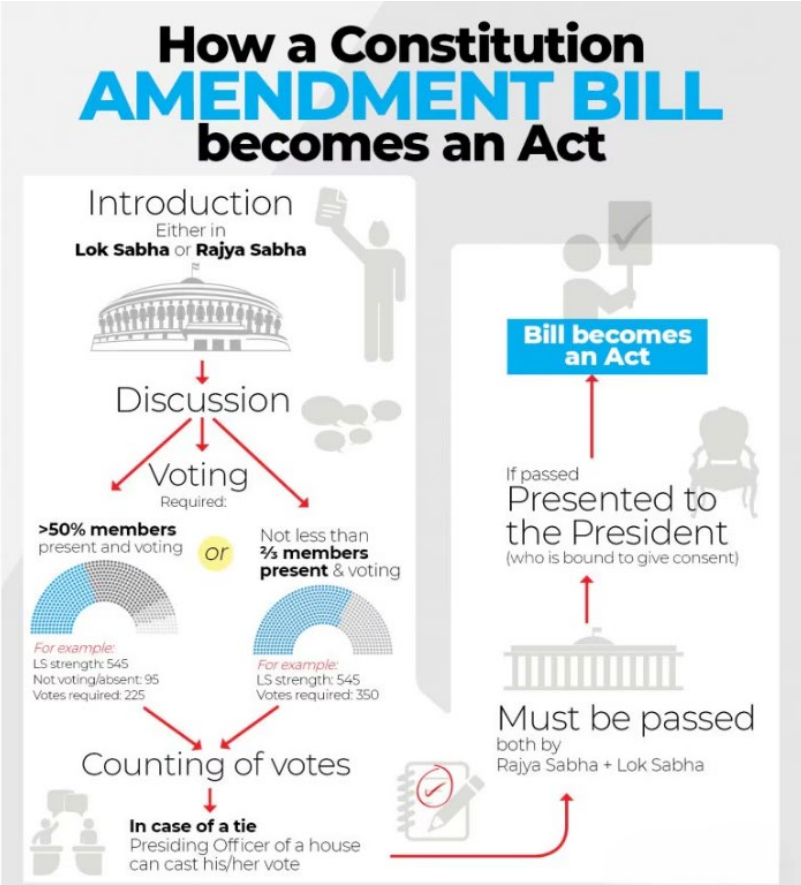
LOCAL GOVERNMENT 58

1. LOCAL GOVERNANCE IN INDIA 58
2. RBI'S REPORT ON PANCHAYATS 60
3. STATUS OF DEVOLUTION TO PANCHAYATS IN STATES 2024 REPORT 60
4. PANCHAYAT DEVELOPMENT INDEX 61
5. GS NIRNAY 61
6. GRAM MANCHITRA 62
7. CAG HIGHLIGHTS KEY CHALLENGES IN URBAN LOCAL BODIES 62
8. SUPREME COURT VERDICT ON L-G'S AUTHORITY TO NOMINATE ALDERMEN 63

MISCELLANEOUS 64

1. MEITY AMENDS IT RULES, 2009 64
2. CRIMINAL LAW REFORMS 66
3. BHARATIYA NYAYA SANHITA 67
4. BHARATIYA NAGARIK SURAKSHA SANHITA 67
5. BHARATIYA SAKSHYA ADHINIYAM 68
6. THE CRIMINAL PROCEDURE (IDENTIFICATION) ACT, 2022 68
7. BHARATPOL 69
8. PAROLE AND FURLOUGH 70
9. DEFAULT BAIL 70
10. ZERO FIR 71
11. POCSO ACT 71
12. CHILD BETROTHALS 72
13. PLACES OF WORSHIP ACT 72
14. MULTI STATE CO-OPERATIVES SOCIETIES (AMENDMENT ACT), 2023 72
15. LOKPAL 73
16. ARMED FORCES (SPECIAL POWERS) ACT (AFSPA) 73
17. ENEMY PROPERTY ACT 74
18. UGC DRAFT REGULATIONS 2025 74
19. UNIVERSITY GRANTS COMMISSION (UGC) 74
20. ARTICLE – 311 SAFEGUARDS FOR CIVIL SERVANTS 75
21. NATIONAL COMMISSION OF SAFAI KARMCHARIS 75
22. AADHAAR CANNOT BE USED AS PROOF OF DATE OF BIRTH 76
23. NATIONAL COMMISSION OF MINORITIES (NCM) 76
24. 2024 US PRESIDENTIAL ELECTION 77
25. COMPETITION COMMISSION OF INDIA 78
26. NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION 78
27. DIPLOMATIC PASSPORT 78
28. LAUNCH OF CRS MOBILE APP 79
29. UNIQUE ID FOR ORGAN DONATION 80
30. DIGITAL ARREST 80
31. LIGHTHOUSES TOURISM 80
32. BHARAT RATNA AWARD 81
33. CORRUPTION PERCEPTIONS INDEX (CPI) 2024 81

1 CHAPTER AMENDMENT OF THE CONSTITUTION



1. UNION CABINET APPROVED SIMULTANEOUS ELECTION PLAN

The Union Cabinet has accepted the recommendations made by the High-Level Committee on Simultaneous Elections, which was chaired by former President Ram Nath Kovind. In this context, Constitution (129th Amendment) Bill, 2024 has been introduced in Lok Sabha to implement One Nation, One Election in India.

ABOUT

- **Simultaneous Elections** (One Nation, One Election) refers to Conducting elections for **Lok Sabha and State Legislative Assemblies simultaneously** across India.
- It does **not** imply voting for all elections on a **single day** but rather within a synchronized timeframe.

HISTORICAL BACKGROUND

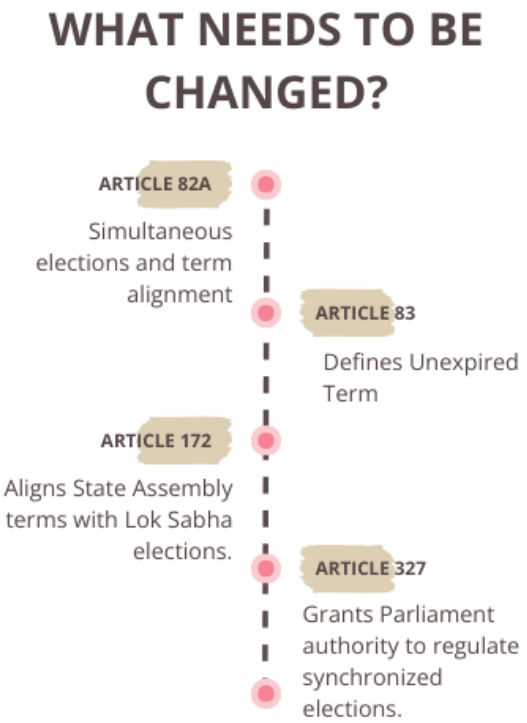
- **1951-52, 1957, 1962, 1967:** India had simultaneous elections.
- 1968-69: The cycle broke due to premature dissolutions of State Assemblies and Lok Sabha.

CURRENT SCENARIO

- Elections in India are held separately for the **Lok Sabha** and **State Legislative Assemblies** as per their respective terms.

- Due to political instability, mid-term elections often happen in states, disrupting the cycle.
- Local body elections (Panchayats and Municipalities) also follow a different schedule.





KEY PROVISIONS OF THE CONSTITUTION (129TH AMENDMENT) BILL, 2024

- **Article 82A (New Insertion):**
  - Simultaneous Elections: ECI to conduct Lok Sabha & State Assembly polls together.
  - Term Alignment: All SLAs' tenure to end with Lok Sabha's full term.
- **Amendment to Article 83:**
  - Defines Unexpired Term (remaining period after Lok Sabha's early dissolution).
  - Mid-Term Elections to be held only for the unexpired term, not a full five years.
- **Amendment to Article 172:**
  - Aligns State Assembly terms with Lok Sabha elections.
- **Amendment to Article 327:**
  - Grants Parliament authority to regulate synchronized elections.

VARIOUS COMMITTEE RECOMMENDATIONS ON SIMULTANEOUS ELECTIONS

- Law Commission 1999, 170th Report
- National Commission to Review the Working of the Constitution, 2002

- Parliamentary Standing Committee Report, 2015
- Working Paper of NITI Aayog, 2017

2. 106TH CONSTITUTIONAL AMENDMENT ACT

President of India gives assent to women's reservation Bill which seeks to provide 33% reservation to women in the Lok Sabha and State Assemblies.



PROVISIONS OF THE ACT

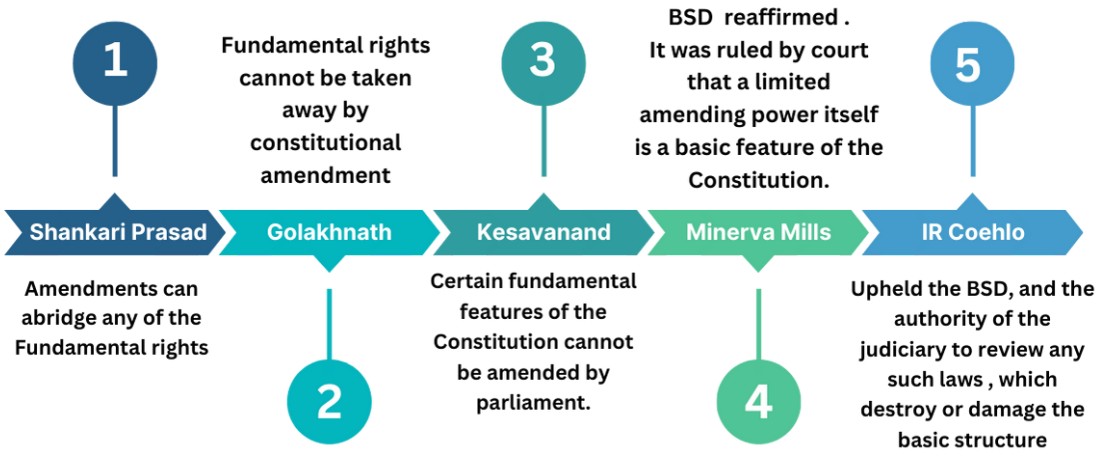
KEY PROVISIONS OF WOMEN'S RESERVATION AMENDMENT

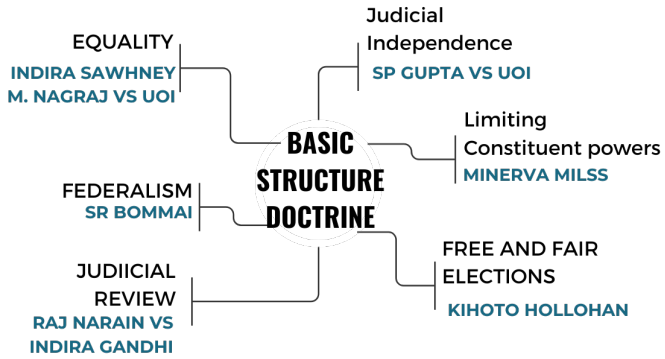
- **Reservation for Women:**
  - **One-third** of seats in **Lok Sabha, State Legislative Assemblies, and Delhi Assembly** to be **reserved for women**.
  - Includes **SC & ST women** within the reserved quota.
- **Constitutional Amendments:**
  - **Insertion of Articles 330A, 332A, and 334A** to formalize women's reservation.
- **Implementation Timeline:**
  - **Reservation to take effect post-census** and **Delimitation exercise** following the Act's commencement.
  - **Rotation of reserved seats** after each **Delimitation process**.
- **Sunset Clause:**
  - **Reservation is valid for 15 years** but can be **extended by Parliament**.
- **Special Provisions for J&K and Puducherry:**
  - **Separate bills passed** for implementing **women's reservation in Jammu & Kashmir and Puducherry Assemblies**.

3. BASIC STRUCTURE DOCTRINE

- The basic structure doctrine states that there are **certain fundamental features** of the **constitution that cannot be amended** by the Parliament. It was laid down by Parliament in **Kesavananda Bharati case in 1973. This landmark Judgement completed 50 years.**
- **Chronology of BSD:**

Evolution of Basic Structure doctrine (BSD)



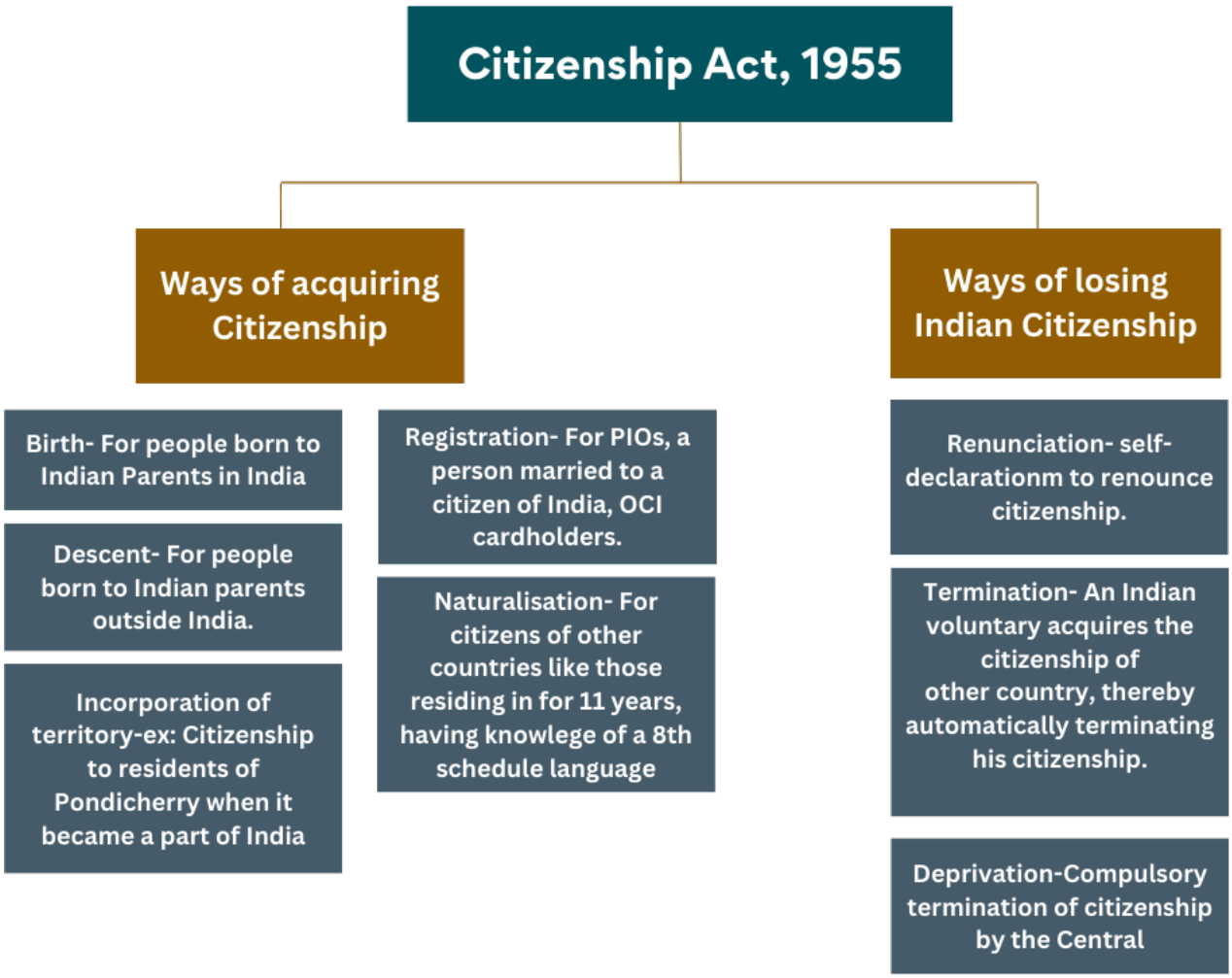


Click here for INDEX

2 CHAPTER CITIZENSHIP

1. CITIZENSHIP

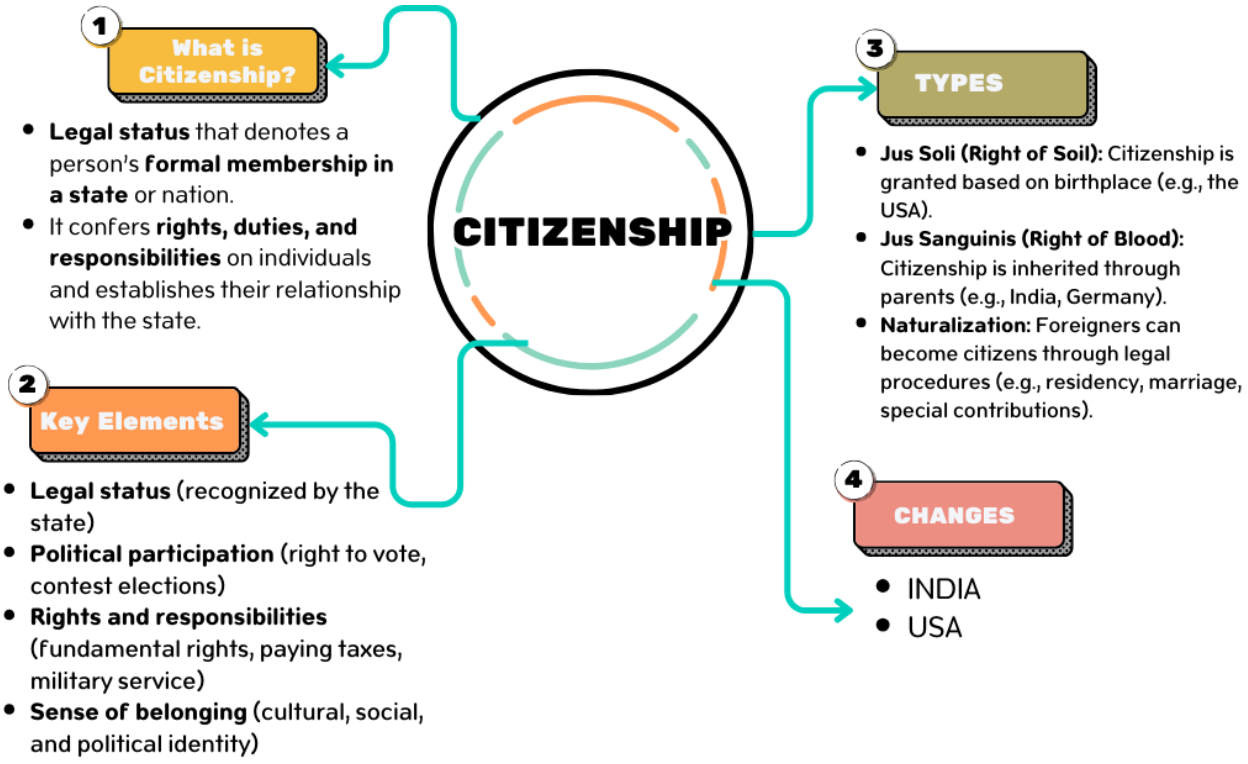
- **Constitution -** Article 5 to 11 under Part II.
- **Article 11** provides Parliament the power to regulate the citizenship rights in India.
- Ways of acquiring and losing Citizenship in India as per the **Citizenship Act, 1955:**



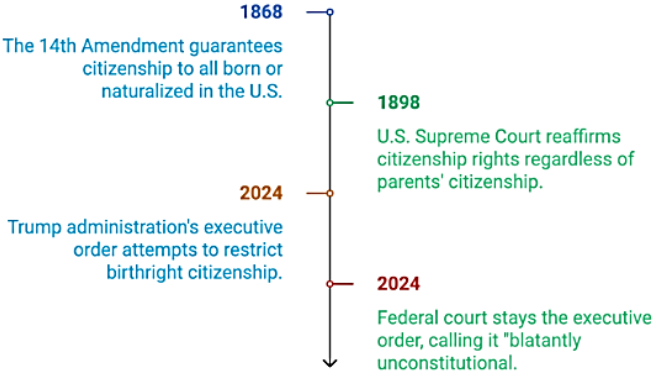
- **Note: The Assam Accord (***tripartite accord between the Union government, State Government of Assam and the leaders of Assam movement in 1985***) inserted Section 6A in the Citizenship Act,1955.**
- **Citizenship Amendment Act:**
  - CAA changes the definition of "illegal migrant" as **Any person belonging to Hindu, Sikh, Buddhist, Jain, Parsi or Christian communities from Afghanistan, Bangladesh or Pakistan, shall not be treated as illegal migrant for the purposes of this Act. If:**
  - **They entered into India on or before the 31st day of December 2014.**
  - They have been **exempted by Central Government under**
  - **Passport (Entry into India) Act, 1920**
  - **From the application of the provisions of the Foreigners Act, 1946** or any rule or order made under the Foreigners Act, 1946,

- **Citizenship granted through Naturalization** with reduced period of residency from "not less than 11 years" to "not less than 5 years."
- **Exemption: The provisions of CAA shall not apply to tribal area of Assam, Meghalaya, Mizoram or Tripura as included in the Sixth Schedule to Constitution and the area covered under "The Inner Line" notified under Bengal Eastern Frontier Regulation, 1873.**
- The Central government may cancel the registration of overseas citizen of India if such a person has violated any of the provisions of CAA or any other law for time being in force as may be specified by the Central Government.
- **Note: System of ILP is applicable in Arunachal Pradesh, Nagaland, Manipur and Mizoram.**

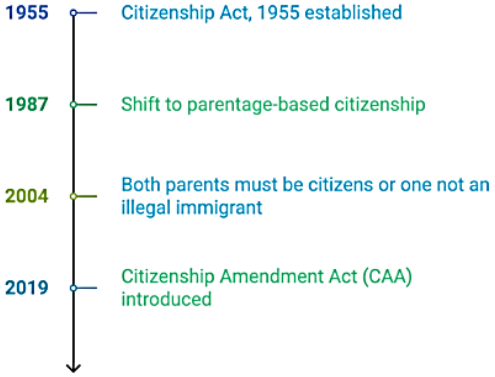
NATIONAL POPULATION REGISTER (NPR)	NATIONAL REGISTER OF CITIZENS (NRC)
All people staying in India 6 months and above and who intends to reside for 6 months or more including foreigners	Indian born or Indian parents or staying in India for 11 years are eligible for Indian Citizenship
Prepared with Census 2011 and was updated in 2015. The next update is scheduled during the next census from April 1, 2020 and September 30, 2020. Only Assam would not participate in this activity	First prepared during 1951 census and itis not updated regularly. Assam is the only state in the country where the NRC is updated
NPR is not a citizenship enumeration drive as it includes foreigners as well	NRC is a citizenship enumeration drive as it includes Indian citizens only
It is compulsory for all Indian residents to register with the NPR. The main purpose of the NPR is to identify illegal migrants and identify them as foreign nationals.	NRC is a subset of NPR where only the citizens of Indian are taken into account



Evolution of Citizenship Laws in the U.S.



Evolution of Citizenship Rules in India



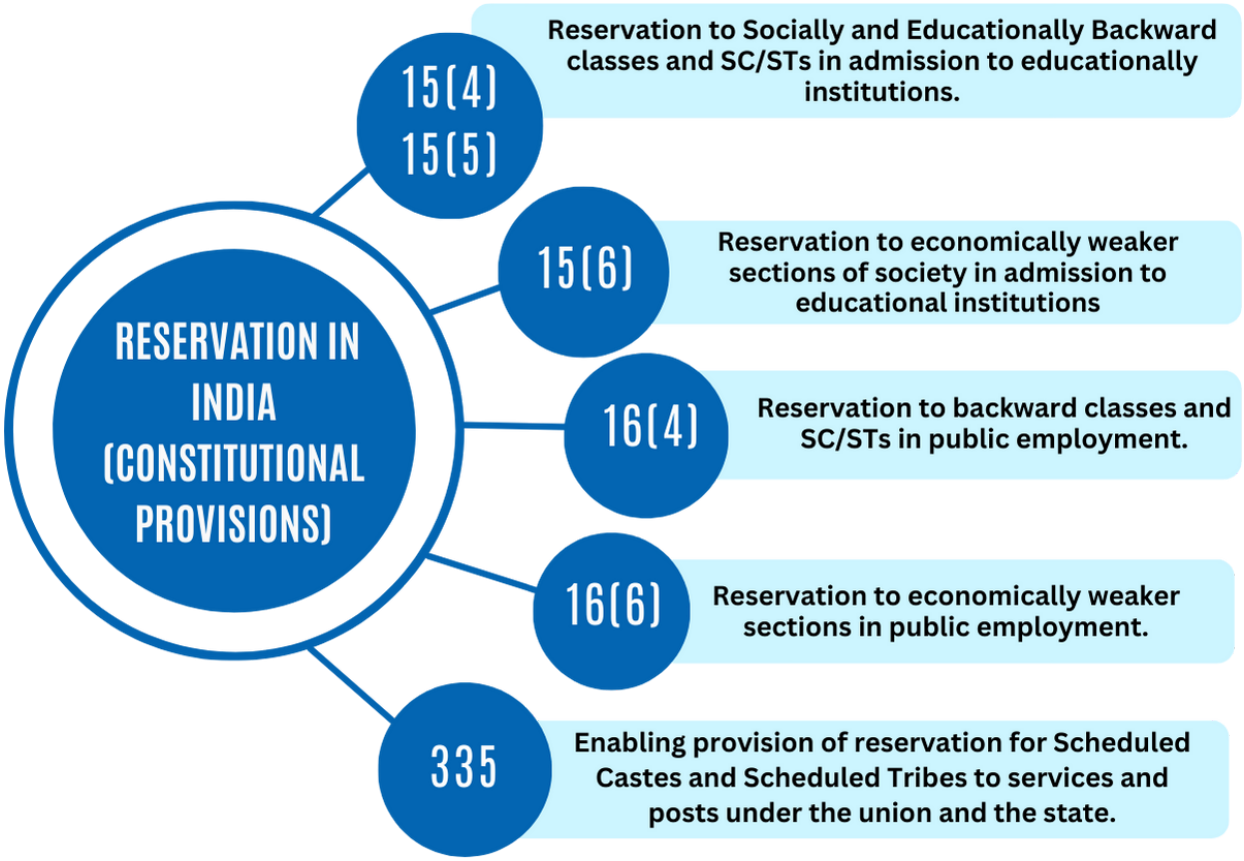
Click here for INDEX

3 CHAPTER RIGHTS ISSUE

1. RESERVATION

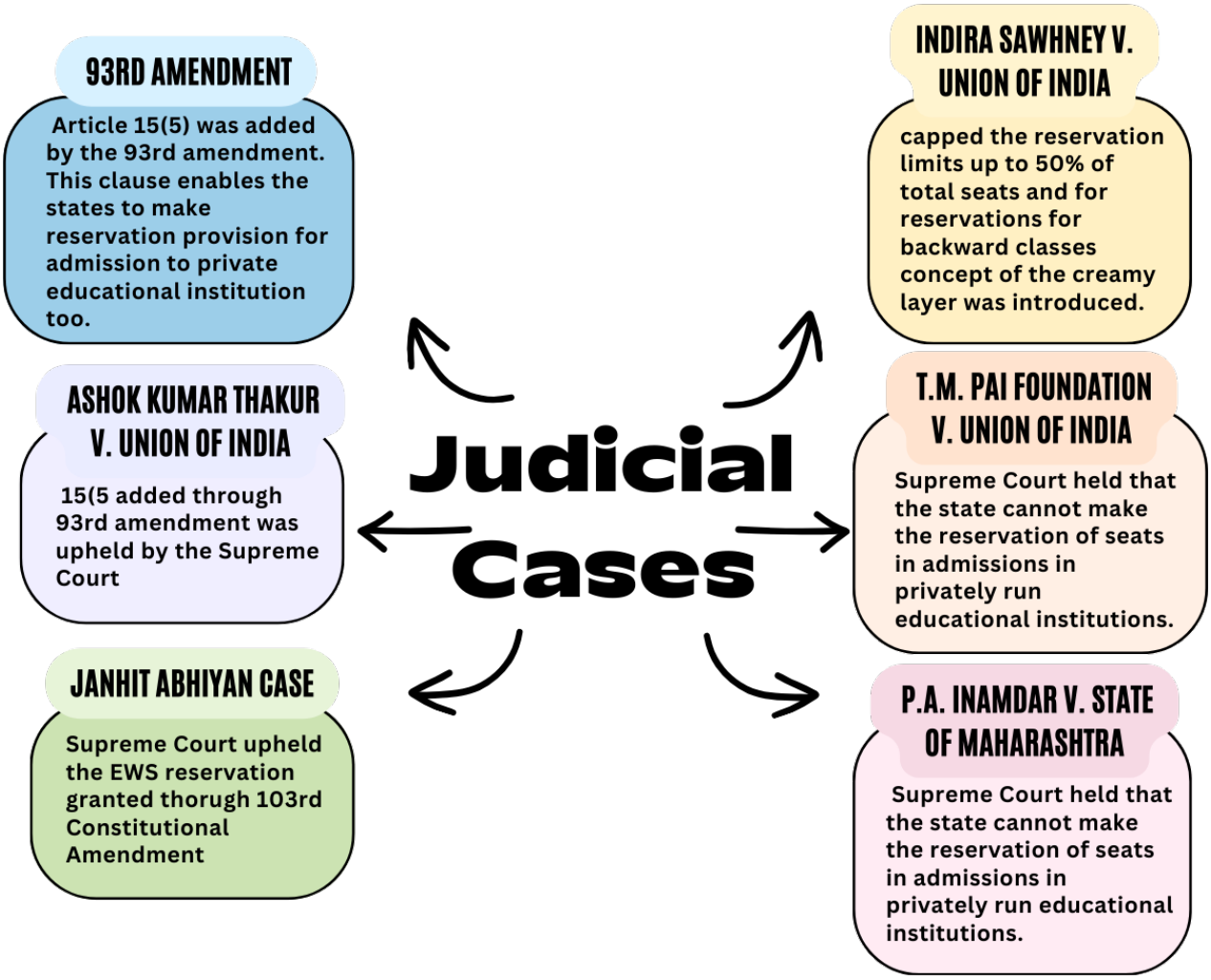
A 5-Judge Bench of the Supreme Court upheld the validity of the 103rd Constitutional Amendment Act (Janhit Abhiyan v. Union of India). The Act introduced 10% reservation for the Economically Weaker Sections (EWS) in education and public **employment**. The Act was challenged before the Supreme Court as violative of the Constitution of India. The Supreme Court, through a 3:2 verdict, has upheld its validity.

RESERVATION IN INDIA



- The **103rd Constitutional Amendment** provided for the reservation to **Economically Weaker Sections** under by inserting **Article 15(6)** and **16(6)**.
- The **77th amendment** in 1995 provided for **reservation in promotion** of any services under the state for SC/STs.
- **Reservations for the persons with benchmark disabilities** are made mandatory through **Persons with Disabilities Act, 2016.**

JUDICIAL TAKE ON RESERVATION



- In the case of **Mukesh Kumar vs State of Uttarakhand** in accordance with Articles 16(4) and 16(4A) of the Constitution, the Supreme Court has decided that **there is no fundamental right to have a reservation in "appointments and promotions" in public services. Article 16(4) and 16(4A) are merely enabling in nature.**

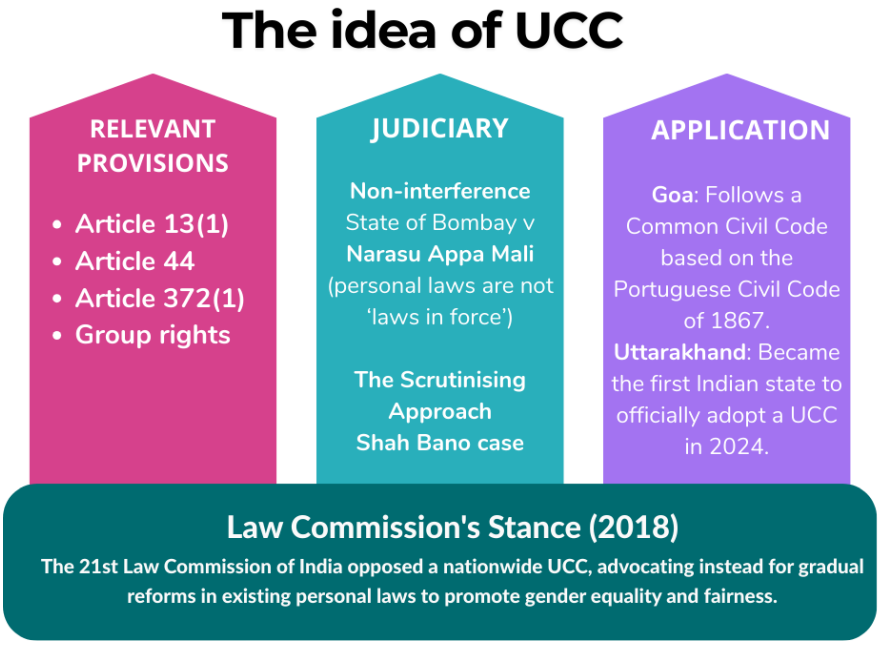
Note: Census is a part of Union list. So, caste census can only be conducted by the Union government. That is why in States like Bihar conducted caste survey and not caste census.

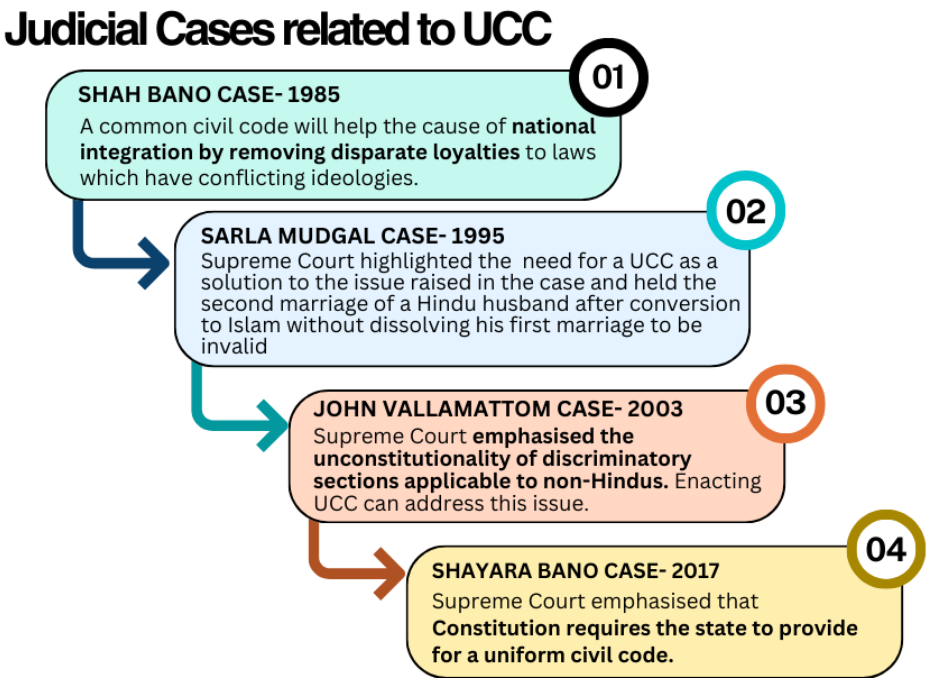
2. UNIFORM CIVIL CODE

The Uttarakhand Assembly passed the Uniform Civil Code (UCC) Bill, becoming the first legislature in independent India to pass a law that proposes common rules on marriage, divorce, inheritance of property, and live-in relationships for all citizens, **irrespective** of their religion.

WHAT IS UNIFORM CIVIL CODE (UCC)?

- The Uniform Civil Code refers to **codification of personal laws of various communities** which apply on all citizens equally regardless of their religion, caste, community etc.. Currently, personal laws of various communities are governed by their religious scriptures.
- **Article 44** of the constitution of India provides for enabling provision of Uniform Civil Code in India.





UTTARAKHAND'S UNIFORM CIVIL CODE

The state of Uttarakhand has enacted the UCC under the legislative powers of **concurrent list** having subjects of marriage, adoption and succession.

SALIENT FEATURES OF UCC OF UTTARAKHAND

- The law encompasses common provisions for marriage, divorce, inheritance, live-in-relationship, etc. for citizens of all communities. **NOTE:** ***the schedule tribes have been excluded from the provision's applicability.***
- **Marriage and Divorce:**
  - **Common age** of marriage for all communities
  - Bigamy and polygamy have been banned.
  - provides for **right to remarry following a divorce**. So, it indirectly bans certain marriage practices like Iddat and Nikah Halala. Forceful adherence to these activities has been criminalized.
  - It also provides for **gender equality** in matters of divorce.



Article 25 is subject to other fundamental rights, meaning religious practices can be regulated for social reform.

- In case of divorce or domestic dispute, the **custody of a child** up to 5 years of age will remain with the mother.

- **Inheritance and Succession**
  - majorly influenced by **Indian Succession Act, 1925**
  - It now allows the **Muslim communities to transfer any amount of property** according to their will and not just one-third as currently followed under their religious texts.
  - No difference between ancestral property and self-acquired property for intestate succession for Hindus.

Note: Intestate succession – succession in the absence of a will]

- Testamentary succession – succession through a will
- It defines a list of class of heirs to the property and its inheritance.

CLASS-1 HEIRS	CLASS-2 HEIRS	OTHERS
Children, widow, parents, etc.	Siblings, nieces, nephews, grandparents, etc.	anyone most closely related to the deceased person

- The law also **elevates both mother and father as class-1 heir** in case of intestate succession, which till now included only the mother.
- The law also sets **equal property rights** for sons and daughters across all classes.
- It also contains provision for **disqualification from inheritance** in cases of murder or remarriage before the death of the person.
- **Note:** disease or deformity of an heir is not a ground for disqualification.
- **Note:** adopted children, illegitimate children, children born through surrogacy and children born through assisted reproductive technology are also considered to be biological children.

- **Live-in relationship**
  - It **defines** the live-in relationship explicitly.
  - It makes the **registration** of live-in relationship mandatory, failing which can lead to a jail term of up to three months.
  - The **termination** of relationship also requires the couple to notify to the authority, failure of which can be penalized.

- It also provides the woman with **right to claim maintenance** when deserted by their partner.
- This provision is applicable to all those living in Uttarakhand as well as residents of Uttarakhand living elsewhere in India.

3. LIVING WILL

Justice MS Sonak of the Bombay High Court at Goa became the first person in the state to register a 'living will' during an event organized by the Indian Medical Association (IMA), Goa branch.

The concept of a *Living Will* gained prominence after the Supreme Court of India's landmark judgment in *Common Cause v. Union of India (2018)*, which recognized the right to die with dignity and allowed passive euthanasia under strict guidelines.



ABOUT

- A **Living Will** is an advance directive where an individual states their preference to refuse medical treatment in case they become terminally ill or are in a vegetative state with no hope of recovery.
- It ensures that the patient's wishes regarding end-of-life care are respected.
- It can be made by any person of age 18 years or older with decision-making capacity

Key Features:

- Under Article 21 – Right to Life, SC recognized under the right to die with dignity.
- Allows a person to refuse life-sustaining treatment in advance.
- Prevents unnecessary medical interventions in terminal conditions.

Supreme Court Guidelines-

- A **Living Will** must be signed in the presence of two witnesses and attested by a Judicial Magistrate.
- A medical board will review and confirm before enforcing the will.

However, there is no dedicated legislation in India on withdrawing life-sustaining treatment.

What are the Guidelines of the Supreme Court on Living Will?

The Supreme Court of India has recognized the validity of living wills and provided guidelines for their execution and implementation:

- **Eligibility:** Only adults with a sound mind can execute an advance directive voluntarily and without coercion.
- **Content:** The advance directive should **clearly state the circumstances in which medical treatment may be withheld or withdrawn,** and it should be unambiguous.
- **Revocation**: The executor may revoke the directive at any time.
- **Execution**: The document must be signed by the executor in the presence of two witnesses and countersigned by a judicial magistrate.
- **Preservation:** Copies of the directive must be preserved by the magistrate, district court, and local authorities.
- **Implementation:** If the executor becomes terminally ill or in a persistent vegetative state, a medical board will review the directive and decide on its implementation after considering the family's views.

4. RIGHT TO UNIONISE

Samsung India workers demand union recognition, higher wages, and better conditions; prolonged strike at Tamil Nadu factory disrupts production amid labor rights struggle.

ABOUT

- **Article 19(1)(c) -** SC in B.R. Singh Vs Union of India in 1989 upheld the right to form associations or unions as a fundamental right
- **Reasonable Restrictions under Article 19(4)** - can only be imposed if public order, morality, sovereignty, or the integrity of India is at risk, and such restrictions must be logical, not arbitrary.
- Unions registered under **Trade Unions Act, 1926**, grants immunity from civil and criminal action.
- At least seven members could apply for registration of their union. Further Registrar examines whether a trade union's rules conform with rules of the Act.
- A trade union could seek recognition a year after its registration

Collective Bargaining-

- **It is defined in Article 2 of ILO** Collective Bargaining Convention of 1981 to determine working conditions and terms of employment.
- It is **statutorily recognised** in **Industrial Disputes Act, 1947**

Right to strike-

- It is a **legal right** recognised with certain restrictions under Industrial Disputes Act.
- SC described strikes as a **"form of demonstration"** by workers for their rights.
- 1947 Act says, right to strike in **not absolute**.
- Section 22 says, Employer must be given **6 weeks notice** before Striking

5. POLYGRAPH TEST

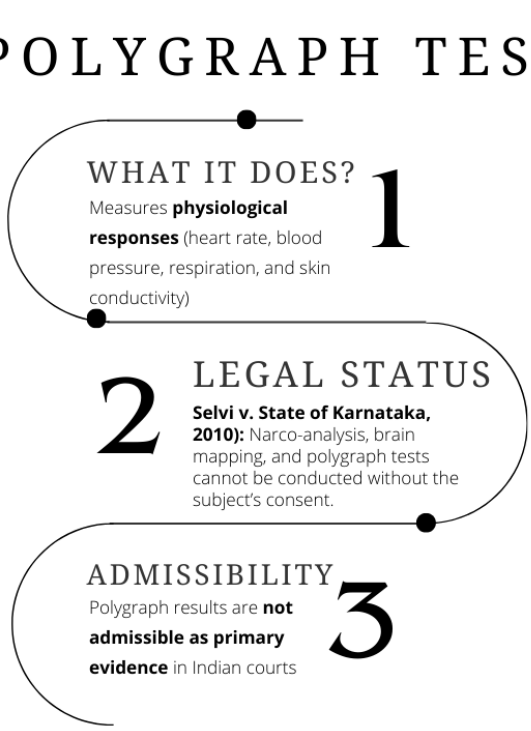
CBI conducts polygraph tests on seven suspects in Kolkata's R.G. Kar Medical College resident doctor's rape and murder case investigation

ABOUT

- **Definition:** A polygraph test, commonly known as a lie detector test, measures physiological responses (heart rate, blood pressure, respiration, and skin conductivity) to determine truthfulness.
- **Components:** It consists of pre-test, test, and post-test phases where physiological responses are recorded and analyzed.

LEGAL STATUS IN INDIA

- Voluntary polygraph tests are permissible under Article 20(3) of the Constitution (protection against self-incrimination).



- **Supreme Court Verdict (Selvi v. State of Karnataka, 2010):** Narco-analysis, brain mapping, and polygraph tests cannot be conducted without the subject's consent.
- **Usage:** Primarily used in criminal investigations, intelligence gathering, and screening government personnel.
- **Reliability Issues:** Polygraph results are not admissible as primary evidence in Indian courts
- Countries like the US, Canada, and many European nations have moved away from DDTs

6. FACT CHECK UNIT

Supreme Court halted the government's plan to establish a fact-checking unit overseeing online content about the government, citing concerns over potential overreach and implications for free speech.

ABOUT

The **Fact Check Unit (FCU)** is a government initiative aimed at identifying and countering **misinformation and fake news** related to government policies and activities.

Key Features

- It is established under the **Information Technology (IT) Rules, 2021** (Amendment) and operates under the **Press Information Bureau (PIB)**
- Its Objective is **flagging false or misleading information** related to the central government.
- Further, digital platforms must comply with FCU-verified information or face legal consequences.

CRITICISM & LEGAL ISSUES

- **Violation of Free Speech**: Critics argue it may curb dissent and press freedom.
- **Potential Censorship**: Gives unchecked power to the government to regulate information.

7. RIGHT TO DISCONNECT

- **Definition**: The Right to Disconnect allows employees to ignore work-related emails, messages, and calls outside of working hours without fear of reprisal.
- **Objective**: To promote work-life balance, reduce workplace stress, and improve mental health and well-being.
- **Constitutional Provisions**: Articles 38 and 39(e) of the Directive Principles of State Policy focus on promoting worker welfare and health.
- **Current Status**: However, India does not have specific laws recognizing the Right to Disconnect.

8. RIGHT TO MARRY NOT FR

*The Supreme Court ruled that the **Right to Marry** is not a **Fundamental Right** under Article 21, emphasizing that marriage is subject to **personal laws and state regulations**.*

ABOUT

- **Legal Status**: Marriage is governed by **personal laws, statutory laws, and state regulations**, not an absolute right.
- **Judicial Precedents**: Courts have previously recognized marriage as a significant aspect of personal liberty but subject to **reasonable restrictions**.
- **Recent Context**: The ruling came in cases related to **same-sex marriage** and **interfaith marriages**, where petitioners sought recognition under Article 21.

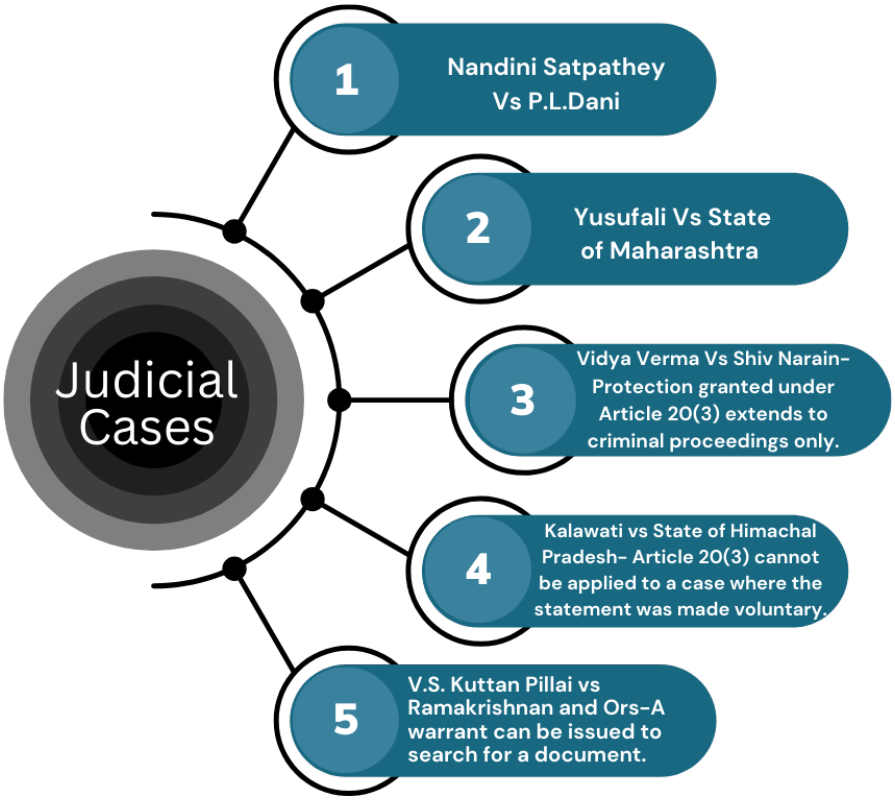
9. RIGHT TO SILENCE

The Supreme Court opined that all accused have a right to silence and investigators cannot force them to speak up or admit guilt, **emphasising** that the Constitution accords every person a right against self-incrimination.

WHAT IS RIGHT TO SILENCE?



JUDICIAL CASES RELATED TO RIGHT TO SILENCE



10. RIGHT TO WALK

Punjab **enforced** the Right to Walk, as per Article 21 of the Indian constitution, following a 2010 petition filed in the Punjab and Haryana High Court demanding safety for pedestrians on state roads.

WHAT DOES RIGHT TO WALK MEAN?

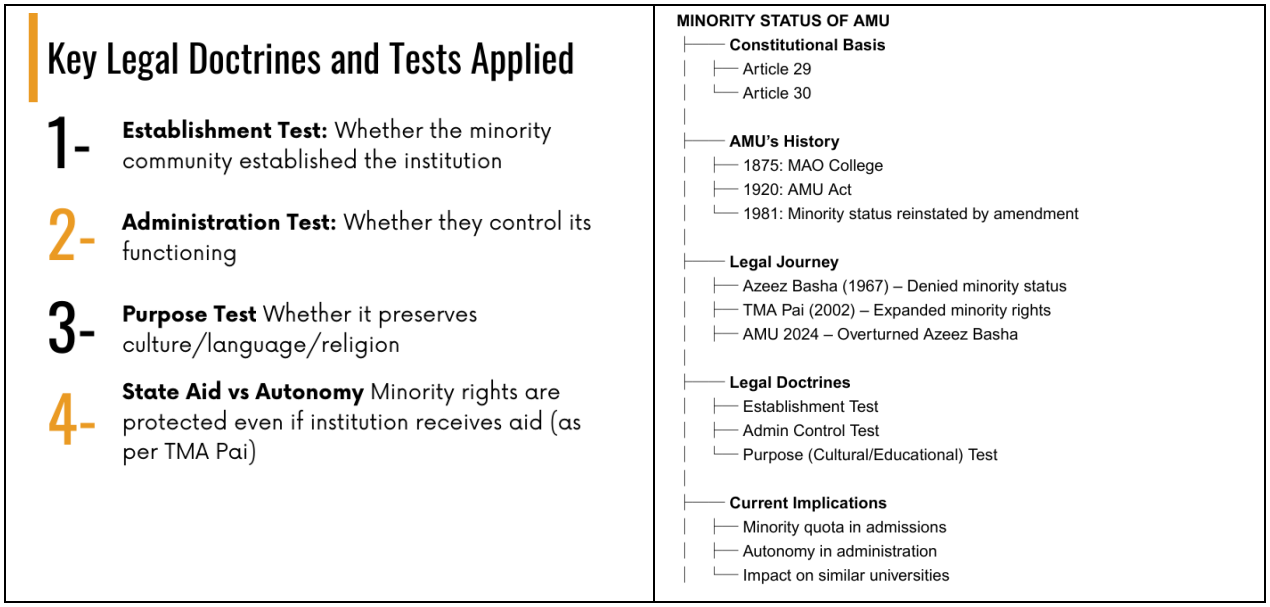


- The right to walk entails that **in future all expansions of existing roads and construction of new roads, a mandatory provision of cycle tracks and footpaths** should be made by all road owning departments and agencies.

11. MINORITY STATUS OF AMU

Recently, Supreme Court Overturned 1967 Verdict in 4:3 majority, Reaffirms Aligarh Muslim University's Minority Status with Major Implications for Educational Institutions

ABOUT MINORITY STATUS OF EDUCATIONAL INSTITUTIONS



- **Interpretation of Article 30:** Article 30(1) as both anti-discriminatory and a special rights provision for minorities.
- The onus is on the community to show that the institution was established to serve and preserve its cultural identity.
- **Scope of Minority Institutions' Rights:** Article 30(1) applies not only to institutions offering religious education but also to those imparting secular education

CONSTITUTIONAL AND STATUTORY PROVISIONS REGARDING IN INDIA

- **Article 29 -** Grants **the right to conserve distinct language, script, or culture** for any section of citizens in India. Any Section includes both **minorities and the majority**
- Protects **both religious and linguistic minorities**.
- **Article 30 -** Empower religious and linguistic minorities to establish and administer educational institutions.

AMU'S ESTABLISHMENT

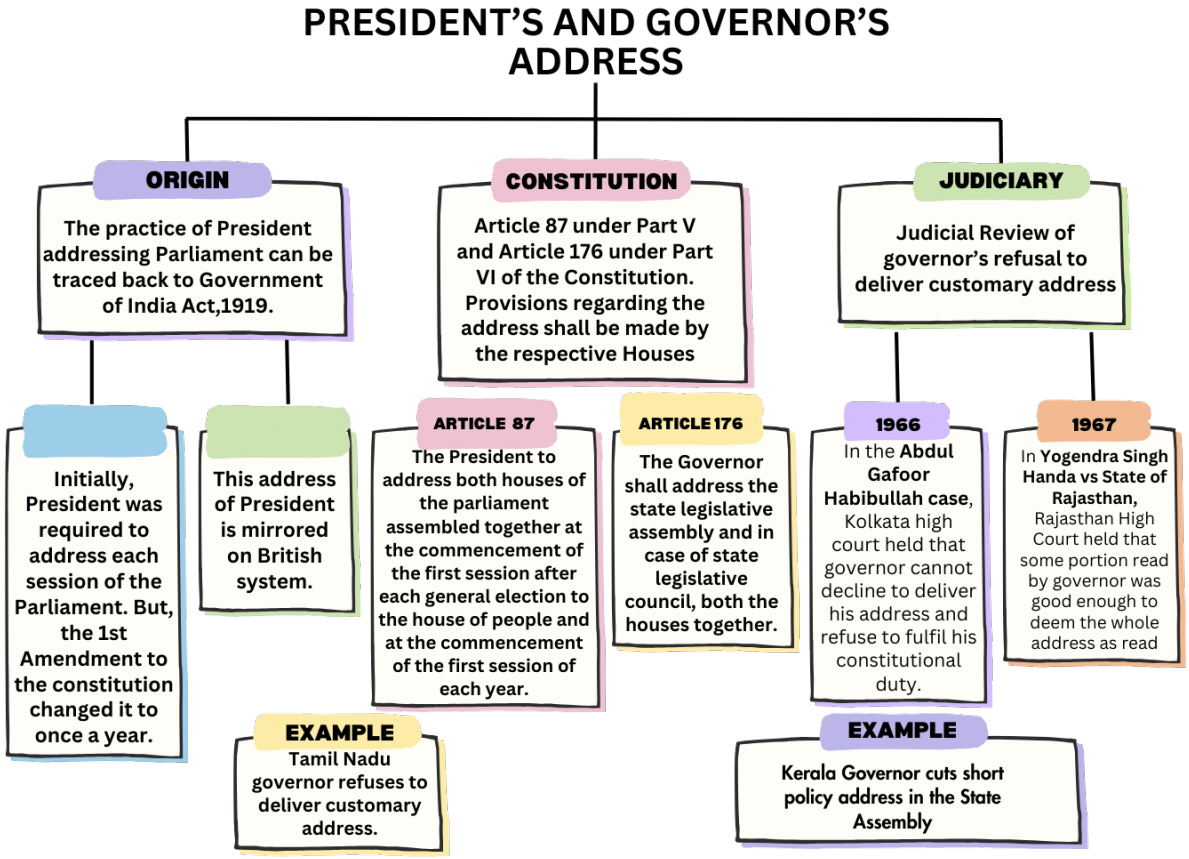
- **Origins**: AMU traces its roots to the Muhammadan Anglo-Oriental (MOA) College,
- **Founded by**: Sir Syed Ahmad Khan in 1875 to address Muslims' educational backwardness.
- **University Status in 1920**: The institution gained university status in 1920, transitioning from MOA College to AMU.

Click here for INDEX

4 CHAPTER EXECUTIVE

1. PRESIDENT'S AND GOVERNOR'S ADDRESS

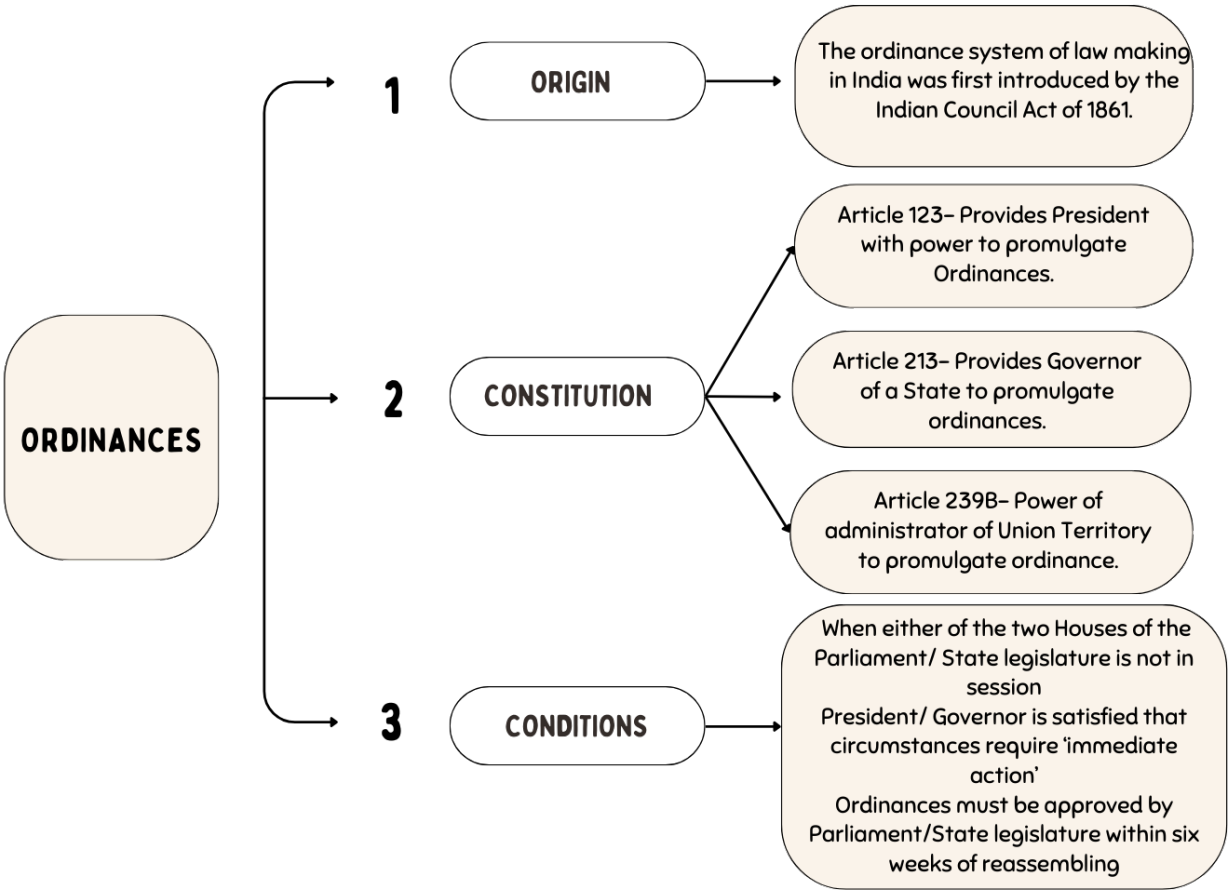
- In **Tamil Nadu**, the Governor skipped key parts of the speech prepared by the State Cabinet, leading to a **constitutional crisis** and a **Supreme Court intervention**.
- In **Punjab** and **West Bengal**, Governors delayed their addresses or added **unsanctioned remarks**, triggering debates about **federalism** and **governor's neutrality**.



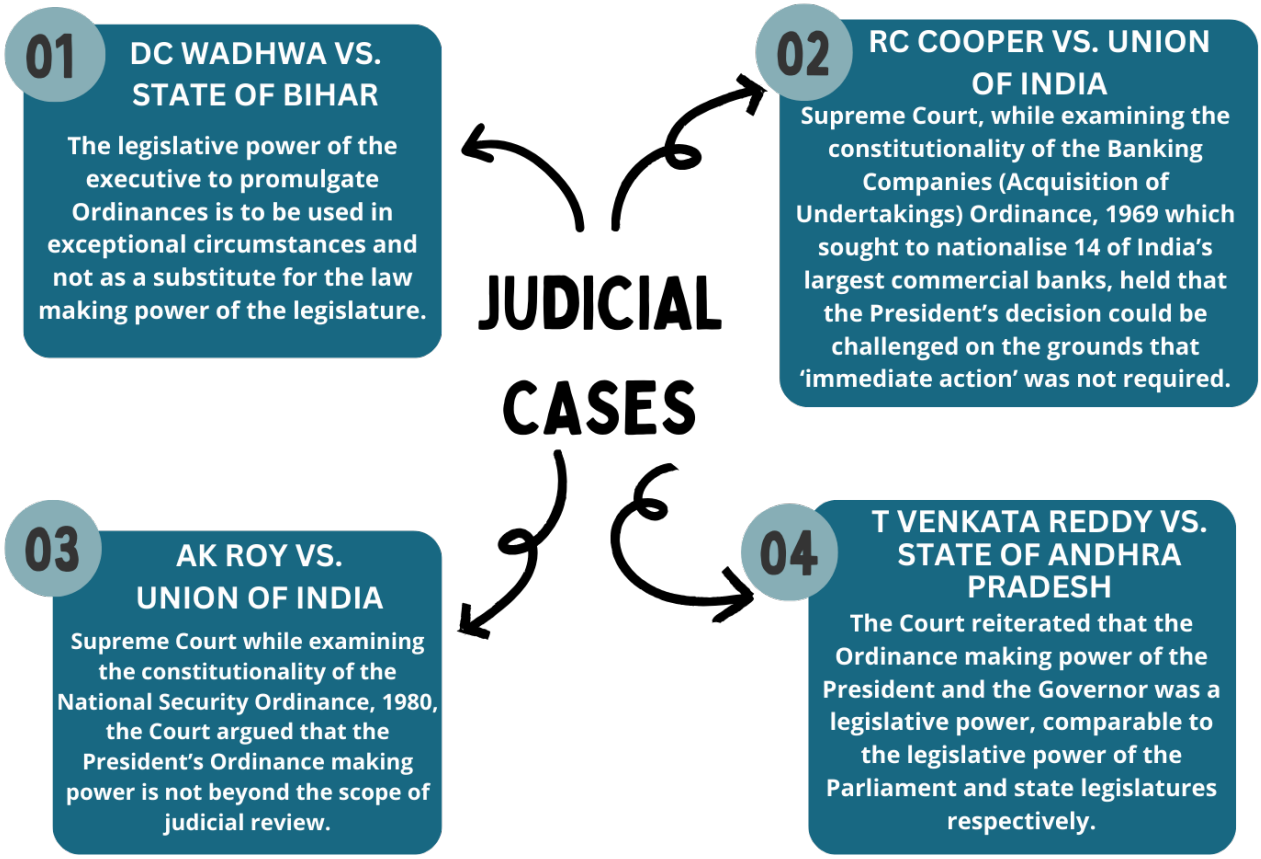
ORDINANCES

In **2024-25**, ordinances were in news due to **conflicts between Centre and States**, **election-related urgency**, and **Supreme Court's strict constitutional interpretation** limiting their misuse.

- **Constitutional Provision**



- **Judicial Cases:**



2. ARTICLE-361 IMMUNITY FOR PRESIDENT & GOVERNORS

West Bengal Governor Invokes Article 361 amid Sexual Harassment Allegations, Supreme Court to Examine Immunity

ABOUT ARTICLE-361

- **Protection from Legal Proceedings**
  - It grants constitutional immunity to the President of India and State Governors from criminal and civil proceedings during their tenure.

KEY PROVISIONS

- **Criminal Immunity:**
  - No court can initiate criminal proceedings against the President or a Governor while they are in office.
- **Civil Immunity (Limited Scope):**
  - No civil proceedings can be initiated against them for acts done in their official capacity, unless:
  - A two-month prior notice is served.
  - The notice clearly states the charges.
- **No Court Summons:**
  - The President and Governors cannot be arrested or compelled to appear before a court while in office.

EXCEPTIONS & CLARIFICATIONS

- Immunity does not extend beyond tenure—legal action can be taken after their term ends.
- Acts done in a personal capacity (outside official duties) may still face scrutiny post-tenure.

3. PROCESS TO REMOVE THE VICE PRESIDENT OF INDIA

Around 50 Opposition MPs have signed a resolution to bring a no-confidence motion against Vice-President (Ex-Officio Chairman of Rajya Sabha) Jagdeep Dhankha

ABOUT REMOVAL OF VP

- The **Vice President of India** can be removed through a formal process as per **Article 67**
- **Grounds for Removal**: The Vice-President may be removed for "violation of the Constitution."

Procedure for Removal:

1. **Initiation**:
   - A **resolution for removal** must be introduced **only in the Rajya Sabha**.
   - It requires **a minimum of 14 days' notice** before being moved.
2. **Approval in Rajya Sabha**:
   - The resolution must be passed by **an Efective majority** (**more than 50% of the total membership** of the Rajya Sabha).
3. **Approval in Lok Sabha**:
   - The **Lok Sabha must agree** to the resolution, by Simple majority.
4. **Final Removal**:
   - Once passed in **both Houses**, the **Vice President is removed from office**.

Key Points:

- The **President's approval is not required** for removal.
- The **Supreme Court cannot review** the removal process.
- If removed, the Vice President also ceases to be the **Chairman of the Rajya Sabha**.

Vice-President of India-

Feature	Details
Article	Article 63-71 of the Indian Constitution
Position	Second-highest constitutional office in India
Election	Indirect election by **Electoral College** (Members of Parliament – Lok Sabha & Rajya Sabha)
Eligibility	• - Citizen of India • - Minimum **35 years** of age
Oath & Affirmation	Administered by the **President of India**
Functions & Powers	• **Ex-officio Chairman** of **Rajya Sabha** • Acts as **President in absence of the President** (under Article 65)
Vacancy	• New election **within 6 months** • Deputy Chairman of Rajya Sabha does not assume charge

4. CABINET COMMITTEE

*The **Cabinet Committee on Security (CCS)** is the highest decision-making body in India for matters related to **national security, defense policy, and strategic affairs**. It is part of the **Cabinet Committees** formed under the **Transaction of Business Rules, 1961**.*

Composition - Prime Minister (Chairperson) + Minister of Defence + Minister of Home Affairs + Minister of Finance + Minister of External Affairs

FUNCTIONS & POWERS

- Formulates **defense and security policies**
- Approves **defense acquisitions, strategic projects, and nuclear policies**
- Oversees **border security and counter-terrorism strategies** and **internal security** challenges
- Handles **diplomatic and geopolitical decisions impacting national security**

OTHER CABINET COMMITTEES AND THEIR COMPOSITION

CABINET COMMITTEE	CHAIRPERSON	COMMON MINISTERS TYPICALLY INCLUDED
Appointments Committee of the Cabinet (ACC)	Prime Minister	Amit Shah (Home)
Cabinet Committee on Security (CCS)	Prime Minister	Rajnath Singh (Defence), Amit Shah (Home), Nirmala Sitharaman (Finance), S. Jaishankar (External Affairs)
Cabinet Committee on Political Affairs (CCPA)	Prime Minister	Amit Shah (Home), Nirmala Sitharaman (Finance), Rajnath Singh (Defence), Piyush Goyal (Commerce), Nitin Gadkari (Transport)
Cabinet Committee on Economic Affairs (CCEA)	Prime Minister	Amit Shah (Home), Nirmala Sitharaman (Finance), Rajnath Singh (Defence), Piyush Goyal (Commerce), Dr. S. Jaishankar (External Affairs), Nitin Gadkari (Transport)
Cabinet Committee on Parliamentary Affairs	Rajnath Singh (Defence)	Amit Shah (Home), Nirmala Sitharaman (Finance), Kiren Rijiju (Parliamentary Affairs), JP Nadda, Rajiv Ranjan Singh

Cabinet Committee on Investment and Growth	Prime Minister	Amit Shah (Home), Nirmala Sitharaman (Finance), Nitin Gadkari (Transport), Piyush Goyal (Commerce), Ashwini Vaishnaw, Jyotiraditya Scindia
Cabinet Committee on Employment and Skill Development	Prime Minister	Amit Shah (Home), Nirmala Sitharaman (Finance), Nitin Gadkari (Transport), Piyush Goyal (Commerce), Dharmendra Pradhan (Education), Hardeep Singh Puri
Cabinet Committee on Accommodation	Amit Shah	Nirmala Sitharaman (Finance), Nitin Gadkari (Transport), Manohar Lal

5. 23RD LAW COMMISSION CONSTITUTED

*President Droupadi Murmu has approved the **c**onstitution of the 23rd Law Commission of India, with its term set from September 1, 2024, to August 31, 2027.*

ABOUT

- The **Law Commission of India** is a **non-statutory**, **advisory body** that recommends legal reforms to the government.
- It is reconstituted every **three to five years** by the **Union Government**.

HISTORICAL BACKGROUND

- First established in **1834** under the **Charter Act of 1833** during British rule.
- After Independence, the **first Law Commission** was formed in **1955**, chaired by **M.C. Setalvad**.

FUNCTIONS & ROLE

- Suggests reforms in **existing laws** to make them **just and fair**.
- Reviews **judicial administration** to improve efficiency.
- Identifies laws that are **outdated** and need **repeal or modification**.
- Conducts **research** and makes recommendations on legal issues referred by the **government**.
- Drafts **new laws** for consideration by Parliament.

However, its recommendations are Non-Binding and only advisory in nature.

5 CHAPTER FEDERALISM

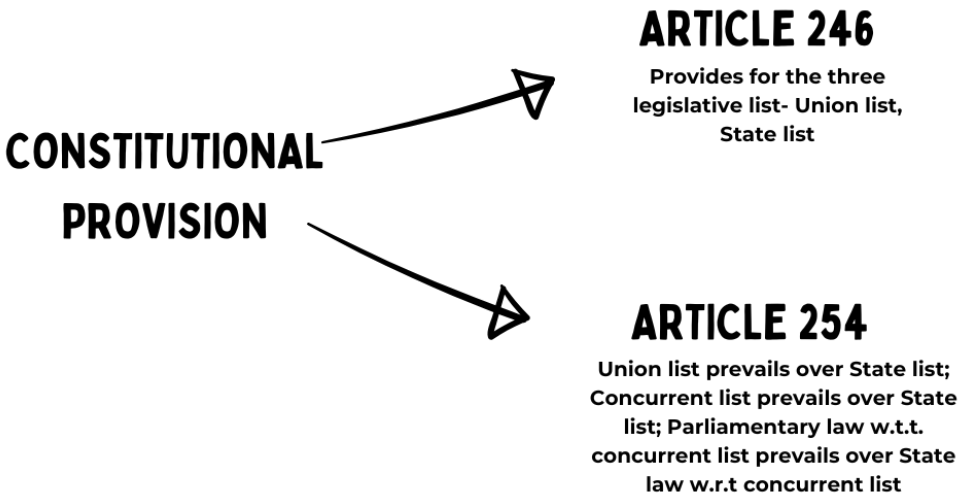
1. SEVENTH SCHEDULE

15th Finance Commission Chairman N K Singh underlined the need for revisiting the Seventh Schedule of the Constitution, which specifies allocation of powers between the Centre and states, in view of changes in technology and national priorities.

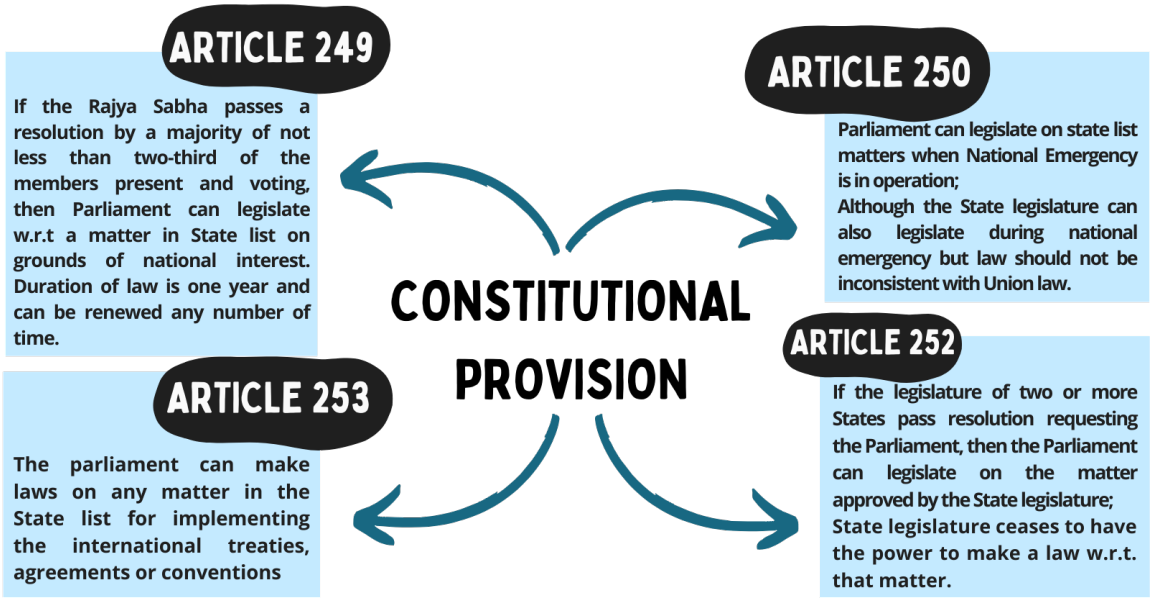
ORIGIN

The seventh schedule of the Indian Constitution containing distribution of legislative subjects between and Union and State government into **Union list**, **State list** and **Concurrent list** is derived from the **Government of India Act, 1935.**

CONSTITUTIONAL PROVISION



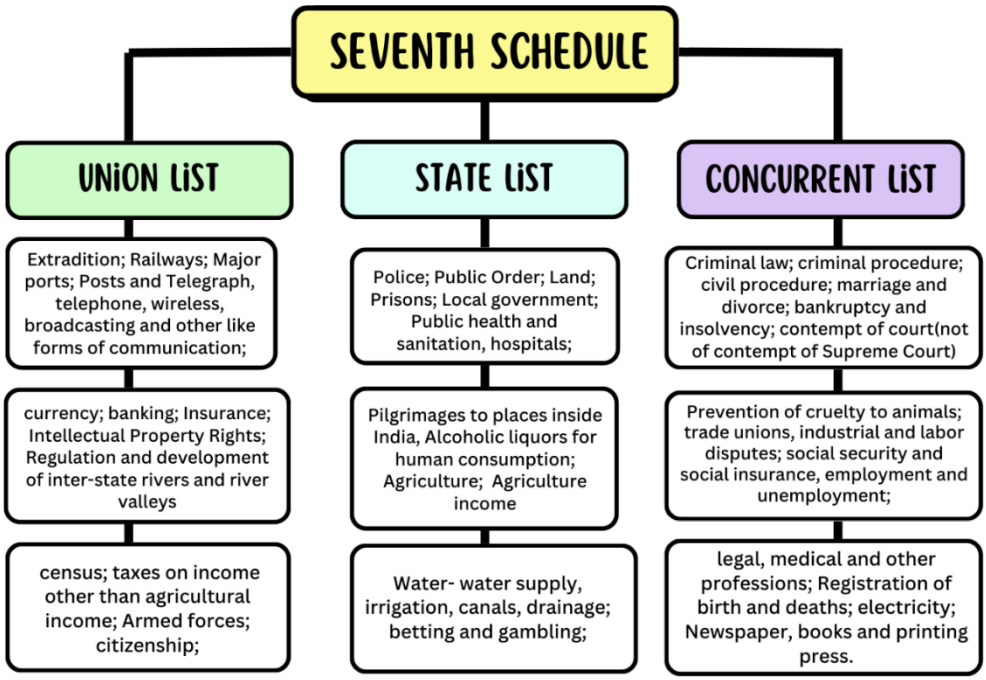
POWER OF PARLIAMENT TO LEGISLATE ON STATE LIST



- **Note: Article 248** provides Residuary **powers of legislation exclusively** to **Parliament** of India i.e.

to make any law with respect to any **matter** not enumerated in the Concurrent List or State List and such power also includes the **power of making any law imposing a tax not mentioned in either of those Lists.**

SOME PROMINENT PROVISIONS IN THE THREE LIST



2. PRESIDENT'S RULE UNDER ARTICLE-356

Recently, President's Rule was imposed in Manipur following Chief Minister N. Biren Singh's resignation amid prolonged ethnic violence.

ABOUT

- President's Rule refers to the suspension of a state government and the imposition of direct rule of the Centre.
- Article 356 of the Constitution of India gives the President of India the power to impose this rule on a state, on the advice of Governor of state or otherwise

Constitutional Basis for President Rule-

- Article 355: It shall be the duty of the Union to protect every State against external aggression and internal disturbance
- Article 365: If the state government fails to comply with those directions, the President may impose Article 356

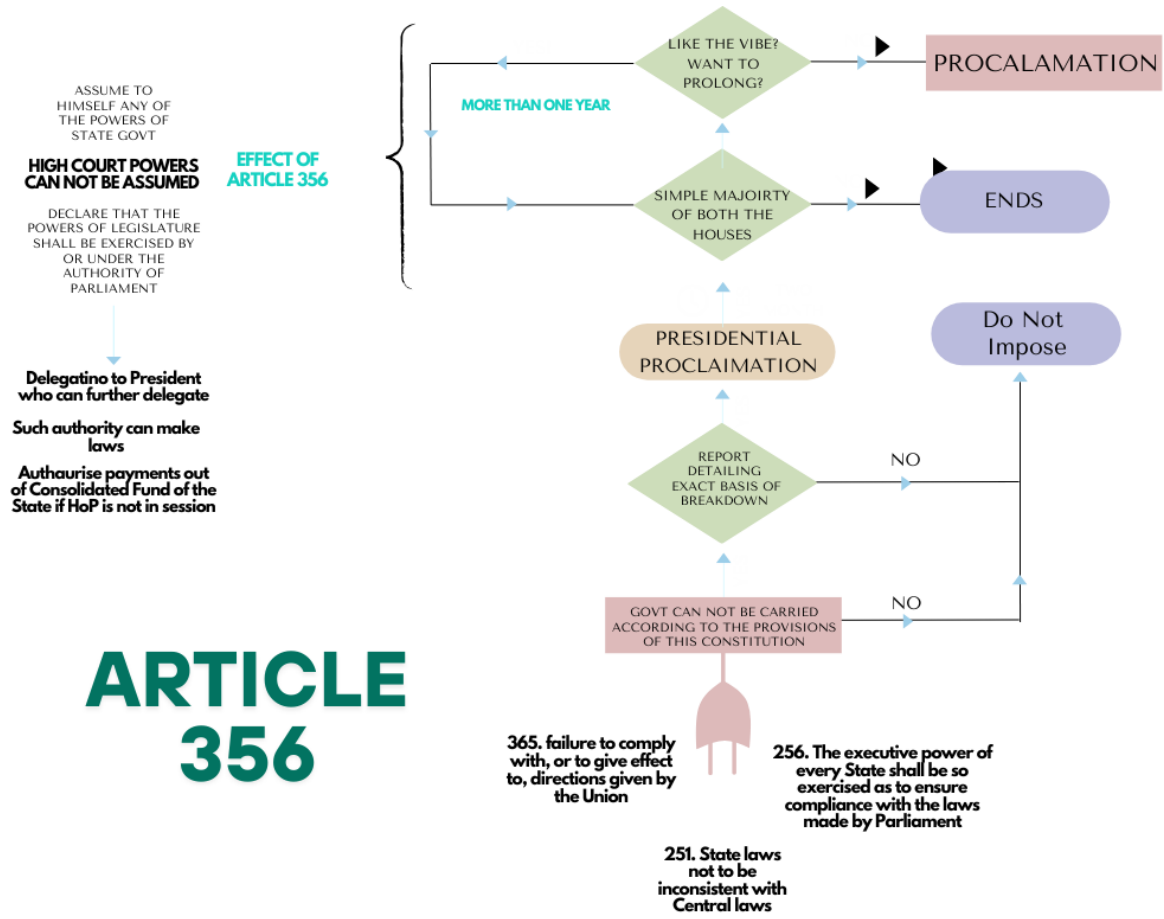
Manner of imposition and duration-

- President, when satisfied, issues a proclamation of a State Emergency.
- It has to be approved by both the Houses of Parliament within two months of issuance by Simple majority.
- If Lok Sabha is not in session, the proclamation continues till 30 days from the reconstitution of the Lok Sabha.
- It can remain active for 6 months, for a maximum period of 3 years. Inn case of extension beyond 1 year, there must be National emergency in other parts of country and certified by Election Commission

Consequences of the President's rule-

- The governor becomes constitutional head of state
- Vidhan Sabha of such a state is either dissolved or prorogued
- Council of Ministers is dissolved

SR Bommai Case – SC said , The majority enjoyed by the Council of Ministers must be tested on the floor of the House.



3. FISCAL FEDERALISM

Recently, some states have moved the Supreme Court against the Centre for disputes over sharing of financial resources by the Central Government.

It refers to how **federal, state, and local governments share funding and administrative responsibilities** within India's federal system.

CONSTITUTIONAL PROVISIONS DEFINING INDIA'S FISCAL FEDERALISM ARRANGEMENT

- **Seventh Schedule**: Constitution delineates tax bases between Union and States (**Article 246**).
- **Distribution of Revenue**: A classification of tax revenues between union and states is as follows:
  - **Taxes levied and collected by centre but wholly assigned to states** (**Article 269**).
  - **Levy and Collection of GST in course of Inter-State Trade or Commerce (Article 269-A)**, which is distributed between Centre and States on **recommendations of GST council**.
  - **Taxes levied and collected by union** (corporation tax, personal income tax, central GST, etc.) and distributed between union and states (**Article 270**) on **recommendation of Finance Commission**.

4. BASIS OF DEVOLUTION

- **Vertical Devolution**: Share of states from divisible pool which presently **stands at 41%** based on the recommendations of the 15th FC.
- **Horizontal Devolution**: It refers to distribution **among the states** from the share allocated to states based on various criteria.
  - As per 15th FC, the assigned criteria with their weights are:
    - **Income Distance (45%)**, **Area (15%)**, **Population, 2011 (15%)**, **Demographic performance (12.5%)**, **Forest and Ecology (10%)**, and **Tax and fiscal efforts (2.5%)**.

- **Grants-in-Aid**: Centre provides grants-in-aid to states as per **Article 275**.
- **Borrowings**: As per **Article 292**, union government has powers to borrow money either within or outside country while under **Article 293**, a **state government can borrow within India (and not abroad)**.
  - Also, if a state is indebted to Union, it may not resort to further borrowing without prior consent of Union Government.
- **Finance Commission (FC)**: **Article 280** provides for a FC to **adjudicate sharing of resources** between Union and States.

5. ROLE OF 16TH FINANCE COMMISSION

Recently, The Sixteenth Finance Commission was constituted with Shri Arvind Panagariya, former Vice-Chairman, NITI Aayog as its Chairman, to look into distribution of taxes between Union and States

ABOUT FINANCE COMMISSION

- The Finance Commission (FC) is a constitutional body established under **Article 280** to recommend the distribution of financial resources between the **Union and States**.
- It is constituted every **five years** by the President.

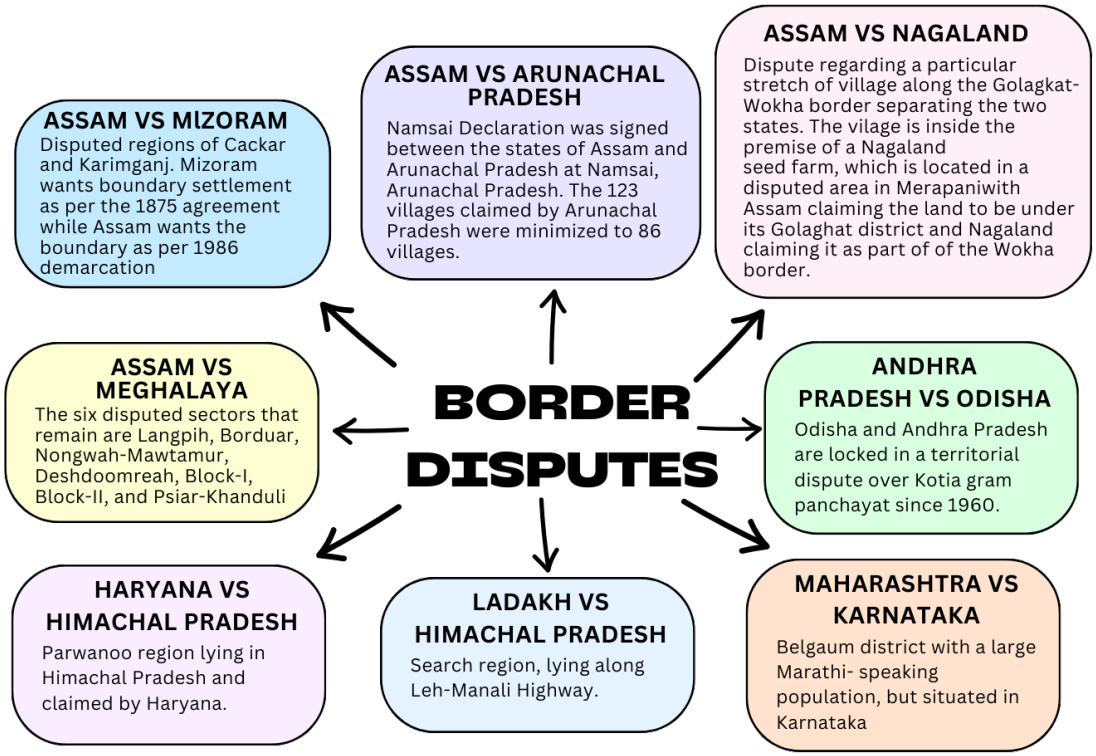
TERMS OF REFERENCE OF THE 16TH FINANCE COMMISSION

1. **Tax Revenue Sharing** – Recommend the division of net tax proceeds between the Union and States.
2. **Grants-in-Aid** – Suggest principles for grants to States from the Consolidated Fund of India.
3. **Local Body Finances** – Propose measures to enhance the financial resources of Panchayats and Municipalities.
4. **Disaster Management Funding** – Recommend strategies for disaster response and mitigation funding.
5. **Fiscal Consolidation** – Provide guidance on debt levels, fiscal deficits, and overall financial stability.

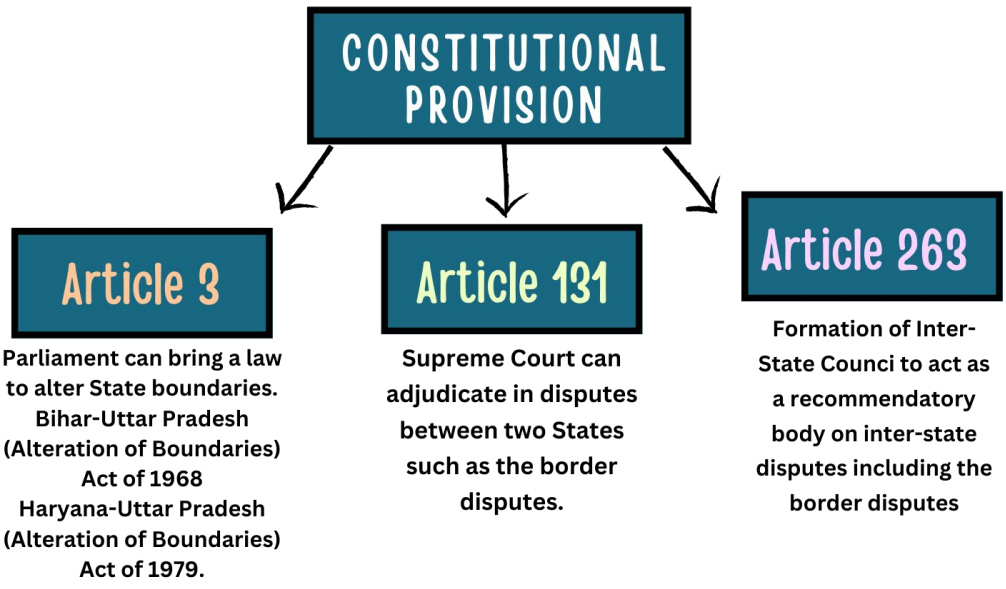
6. INTER-STATE BORDER DISPUTES

The Union Home Ministry (MHA) has informed the Lok Sabha that 11 States and one Union Territory have boundary disputes between them and "occasional protests and incidents of violence are reported from some of the disputed border areas".

LIST OF ONGOING INTER-STATE BORDER DISPUTES



CONSTITUTIONAL PROVISIONS TO DEAL WITH INTER-STATE BORDER DISPUTES



7. INTER-STATE RIVER WATER DISPUTE

CONSTITUTIONAL PROVISION

- **Article 262** of the Indian Constitution **provides Parliament with the power to resolve river water disputes between States**. Also, Parliament may by law, enacted under article 262, provide that **neither the Supreme Court nor any other court shall exercise jurisdiction** in respect of any such dispute or complaint.
- **Note: The Supreme Court adjudicates on river water disputes based on power derived from Article 136 (Power of Special Leave).**

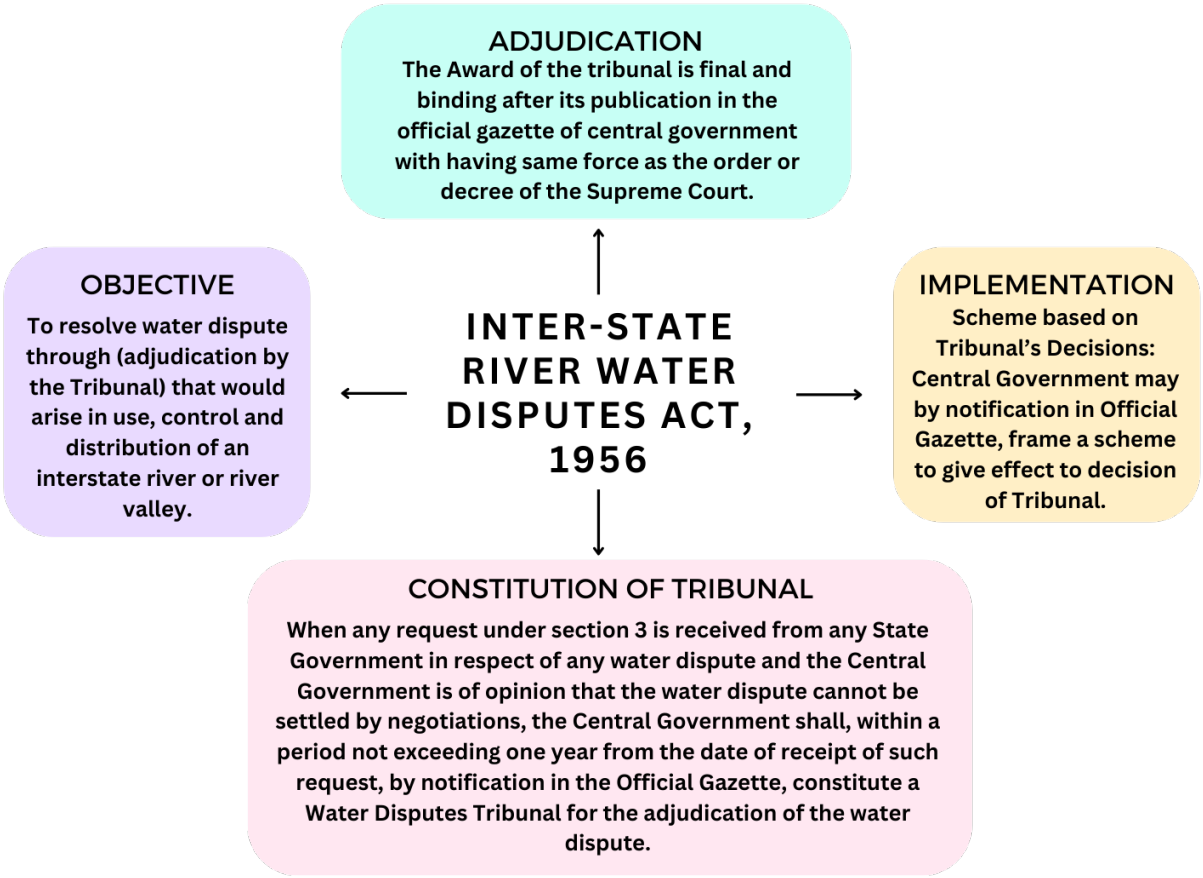
LIST OF INTER-STATE RIVER WATER DISPUTES IN INDIA

RIVER WATER DISPUTES

01	Godavari Water Disputes Tribunal-Maharashtra, Andhra Pradesh, Karnataka, Madhya Pradesh & Odisha, 1969.
02	Krishna Water Disputes Tribunal -I-Maharashtra, Andhra Pradesh, Karnataka,1969.
03	Narmada Water Disputes Tribunal-Rajasthan, Madhya Pradesh, Gujarat and Maharashtra, 1969.
04	Ravi & Beas Water Tribunal- Punjab, Haryana and Rajasthan, 1986.
05	Cauvery Water Disputes Tribunal- Kerala, Karnataka, Tamil Nadu and Puducherry, 1990
06	Krishna Water Disputes Tribunal -II-Karnataka, Andhra Pradesh and Maharashtra, 2004
07	Vansadhara Water Disputes Tribunal-Andhra Pradesh & Odisha,2010
08	Mahadayi Water Disputes Tribunal-Goa, Karnataka and Maharashtra, 2010

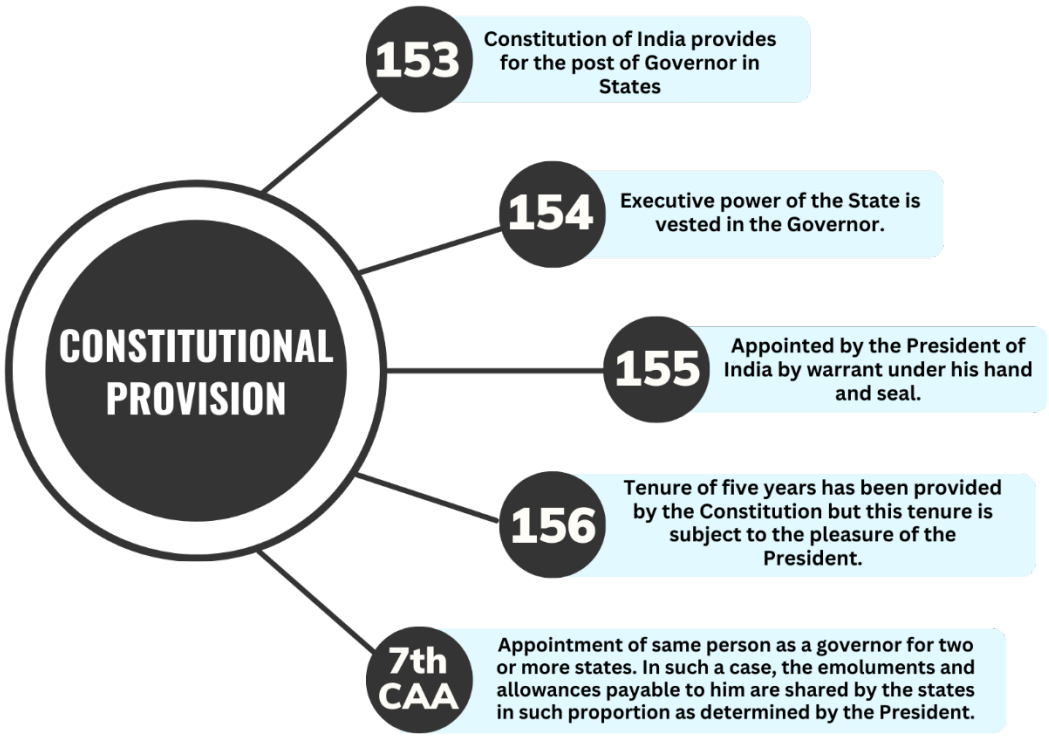
- **Mahanadi Dispute- Odisha and Chhattisgarh, 2017**
- **Mulla Periyar Dam issue-Tamil Nadu and Kerala.**

INTER-STATE RIVER WATER DISPUTE ACT, 1956



8. GOVERNOR

CONSTITUTIONAL PROVISION



CONSTITUTIONAL QUALIFICATION FOR APPOINTMENT AS A GOVERNOR

- S/he should be a Citizen of India.
- S/he should have completed the age of 35 years.

DISPUTE REGARDING GOVERNOR'S POWERS

- **Report under Article 356:**
  - Governor reports to the President of India regarding the breakdown of Constitutional machinery in the state and imposition of President rule in the state
  - **Sarkaria commission -** It must be "speaking document" and must include corroborating evidence.
  - SR Bommai Guidelines.
- **Dismissal of Chief Minister:**
  - SC in SR Bommai vs UoI.
  - Floor test first is a must.
  - No dissolution of the government if it enjoys majority.
  - Judicial review to check mala fide intent.
- **Customary Address**
  - 2017: Tripura governor Tathagat Roy
  - 2018: Kerala Governor P Santhanam omitted parts
  - 2023: R. N. Ravi, the governor of Tamil Nadu, altered the prepared speech.
  - **Article 176**: Governor's obligation to read out.
- **Reservation of the Bills: When a bill is sent to the governor after it is passed by state legislature, s/he can:**

  (a) Give his assent to the bill, or

(b) Withhold his assent to the bill, or

(c) Return the bill (if it is **not** a money bill) for reconsideration of the state legislature.

However, if the bill is passed again by the state legislature with or without amendments, the governor has to give his assent to the bill, or

(d) Reserve **the** bill for the consideration of the president. In one case such reservation is obligatory, that is, where the bill passed by the state legislature endangers the position of the state high court.

In addition, the governor can also reserve the bill if it is of the following nature:

(i) Ultra-vires, that is, against the provisions of the Constitution.

(ii) Opposed to the Directive Principles of State Policy.

(iii) Against the larger interest of the country.

(iv) Of grave national importance.

(v) Dealing with compulsory acquisition of property under Article 31A of the Constitution.

- **Punchhi commission- Time limit necessary for governor to decide assent/reserve bill for the President (within six months).**

- **Discretionary Power:**
  - **Article 163-** Governor to act on the aid and advise of the Council of Ministers in the exercise of his functions, except in so far as he is required to act in his discretion.
  - **Punchhi Commission**: Exercise of the discretionary power must be **dictated by reason, activated by good faith, tempered by caution".**
- **Governor as the Chancellor of Universities in State:**
  - This position of Governor is **statutory in nature** and can be changed through State government laws. States like **West Bengal, Kerala, Tamil Nadu** have passed bills to replace Governor with Chief Minister as the Chancellor of State Universities.

9. ARTICLE-200

The Supreme Court scrutinized the actions of Tamil Nadu Governor R.N. Ravi concerning his delay and withholding of assent to bills passed by the state legislature.

ABOUT POWER OF GOVERNOR PERTAINING TO GIVING ASSENT TO A BILLS

- **Article 200** – When a Bill has been passed by the Legislative Assembly of a State or, it shall be presented to the Governor for assent.

The Governor shall have following 4 options-

- He may give his assents to the Bill, thus the bill becomes an Act.
- He may withholds assent, the bill thus ends and does not becomes an Act.
- He may return the bill for the reconsideration of House or houses. If the bill is passed again with or without amendments and presented to Governor for his assent, the governor must give his assent to the bill.
- He may reserves the Bill for the consideration of the President.

Exception- Bills That Must Be Reserved by the Governor for President's Assent

- Bill that diminishes the powers of the High Court (**Article 200)**
- Bills Seeking to Impose Restrictions on Trade and Commerce **(Article 304)**
- **Ordinance to be reserved for presidential consideration (Article 213)**
- A state law imposing a tax on water or electricity in a manner that affects central property **(Article 288)**

Certain other provisions for discretionary reservations

- If a state law conflicts with a Union law on a subject in the Concurrent List **(Article 254)**
- Any bill that affects national security, foreign relations, or financial stability

Once a bill is reserved for the President, the President can under Article-201:

- Give assent, making it a law.
- Withhold assent, rejecting the bill.
- Return the bill, requesting reconsideration (except for money bills).

Discretionary Powers Not Absolute – Nabam Rebia v. Deputy Speaker, Arunachal Pradesh (2016)

Governor's discretionary powers must be exercised within constitutional limits.

Governor cannot act against the elected government's advice except where Constitution permits.

Withholding of assent is subject to judicial review if it breaches constitutional propriety.

Recent Supreme Court Observations (2023)

Action on bills must be taken "as soon as possible" under Article 200.

Indefinite delay is unconstitutional; keeping a bill pending is not an option.

SC is nudging towards fixed timelines for Governors to act on bills.

10. THREE-LANGUAGE FORMULA

*The **Three-Language Formula** has recently sparked debates, particularly between the **Central Government** and **Tamil Nadu**.*

ABOUT

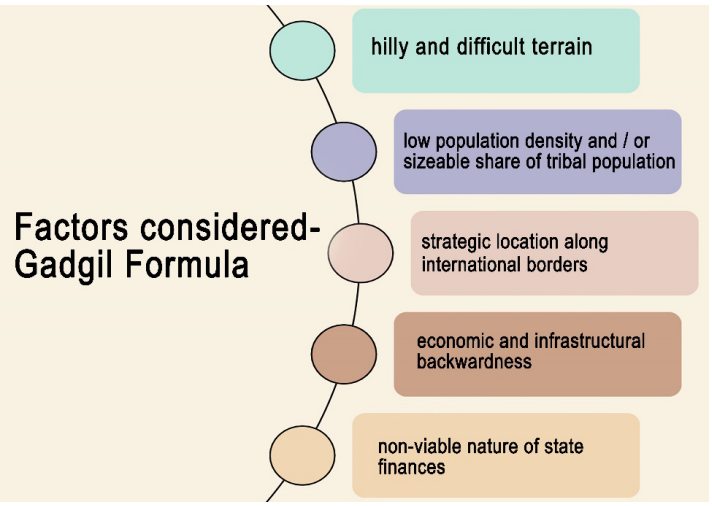
The **Three-Language Formula** is an educational policy in India aimed at promoting multilingualism and national unity. It was first introduced in **1968** under the National Policy on Education (NPE) and later reinforced in the **National Education Policy (NEP) 2020**.

KEY PROVISIONS

1. **Languages to be Taught:**
   - **First Language** – Mother tongue/regional language.
   - **Second Language** – Modern Indian or foreign language
   - **Third Language** – Hindi in non-Hindi states; a modern Indian or foreign language in Hindi-speaking states.
2. **Implementation Variations:**
   - Hindi-speaking states: Hindi, English, and a modern Indian language (preferably South Indian).
   - Non-Hindi states: Regional language, English, and Hindi.

11. SPECIAL CATEGORY STATUS (SCS)

Bihar State Cabinet has passed a resolution demanding special category status for **Bihar**. Similar demands have been made by the State of **Odisha** and **Andhra Pradesh**.



WHAT IS SPECIAL CATEGORY STATUS?

- It is a classification granted by the Centre to assist the development of States that face geographical or socio-economic disadvantages.
- The SCS was **introduced in 1969** on the **recommendation of the fifth Finance Commission (FC)**.

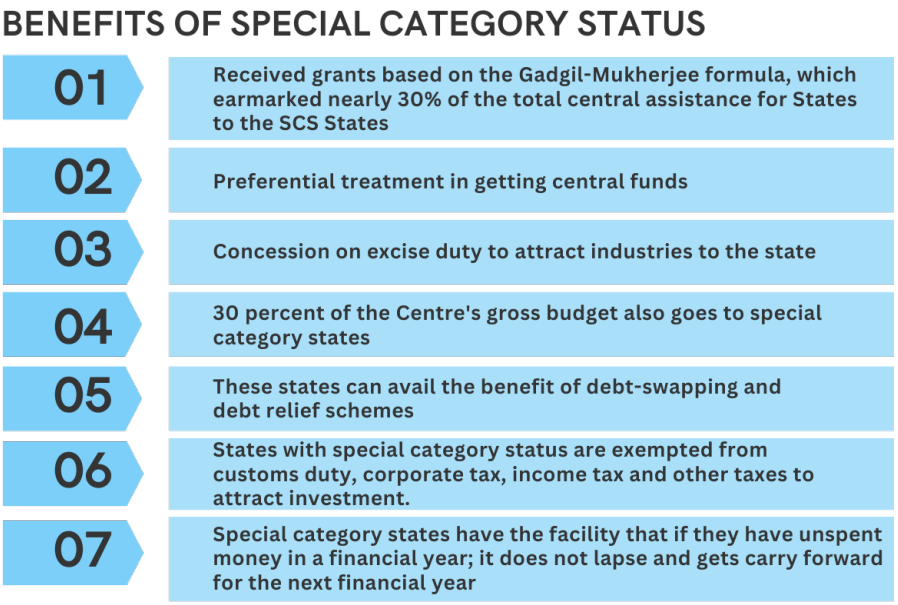
WHICH STATES HAVE IT?

- In 1969, three States — **Jammu & Kashmir**, **Assam** and **Nagaland** — were granted the SCS. Subsequently, eight more States including **Arunachal Pradesh**, **Manipur**, **Meghalaya**, **Mizoram**, **Sikkim**,

Tripura, **Himachal Pradesh**, and **Uttarakhand** were given the SCS by the erstwhile National Development Council.

- **14th Finance Commission report** made a recommendation to the Centre that **no State be accorded the special category status now.**

BENEFITS OF SCS



WHAT IS THE DIFFERENCE BETWEEN SPECIAL CATEGORY STATUS AND SPECIAL STATUS?

- The **Special Status** to States have been **provided by the Constitution itself (Article 371 to 371J)**. But, the **special category status is an executive mechanism, started to be given in 1969 by the National Development Council.**
- Also, the Special status to States continues to exist even today and can be granted to other States by amending the constitution. But, Special category status to States is not granted to any more states now based on the recommendations of 14th Finance Commission.

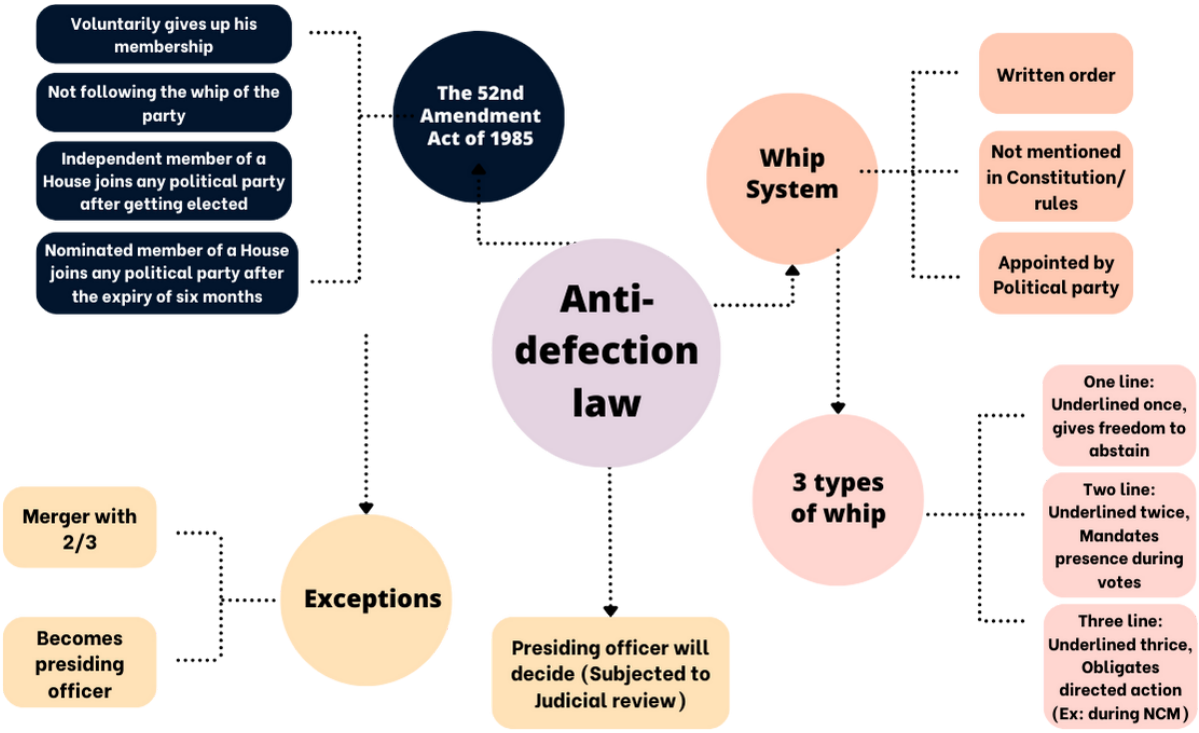
Click here for INDEX

6 CHAPTER PARLIAMENT

1. ANTI-DEFECTION LAW

In the recent times, increased cases of defection have again brought forth the debate regarding the efficacy of the anti-defection law in India.

CONSTITUTIONAL PROVISIONS OF ANTI-DEFECTION LAW



- Added **tenth schedule** to the Constitution of India.
- Any question regarding disqualification arising out of defection is to be **decided by the Presiding Officer of the House.** This **decision of Presiding Officer is subject to the judicial review** (**Kihoto Hollohan case**).
- The **Presiding Officer** of a House is **to make rules to give effect to the provisions** of the Tenth Schedule. According to the rules made so, the **Presiding Officer can take up a defection case only when he receives a complaint from a member of the House.**
- **A member is given a chance to submit his explanation and argument before being disqualified.** So, defection does **not have an immediate and automatic effect.**
- Cases of defection are **referred to Committee of Privileges** for further inquiry.

WHIP SYSTEM

- A whip is a written order that party members be present for an important vote, or that they vote only in a particular way. It can also refer to a designated official authorised by a party to issue a whip.
- The office of whip is **neither mentioned in the Constitution nor in the rules of the house**.
- The office of whip is appointed by the political party and not the legislature party.
    - **Note:** The three types of whips are **based on Parliamentary convention** and not according to any written set of rules.
- **Every party has a whip** in the House/legislature and **there can be more than one whip of a party** categorised as **whip and chief whip**.

2. CROSS-VOTING IN RAJYA SABHA ELECTIONS

In recent Rajya Sabha elections, cross-voting by opposition MLAs in Uttar Pradesh and Himachal Pradesh led to unexpected BJP victories, highlighting internal party dissent and electoral unpredictability.

ABOUT

- Cross-Voting: Voting for a party one does not belong to. Moreover, whips are not issued for Rajya Sabha elections
- Rajya Sabha members are elected by an **indirect election system** through **proportional representation** using the **Single Transferable Vote (STV)** method.

ELECTORAL COLLEGE FOR RAJYA SABHA ELECTIONS

- **MLAs of respective State Legislative Assemblies**.
- Elected by **MLAs of Legislative Assemblies** in Union Territories with legislatures
- **Nominated Members**: The **President of India nominates 12 members** with expertise in literature, science, arts, and social service.

SC JUDGEMENT- IN KULDIP NAYAR VERSUS UOI, 2006

SC upheld the system of open ballots for Rajya Sabha elections. An elected MLA of would not face disqualification under the Tenth Schedule for voting against their party

3. LEADER OF OPPOSITION (LoP) POST IN LOK SABHA

Rahul Gandhi appointed as Leader of Opposition in Lok Sabha after Congress secured required seats, filling the post after a decade.

DEFINITION & SIGNIFICANCE

- The Leader of Opposition (LoP) is the leader of the largest opposition party in the Lok Sabha with at least **10% of total seats** (55 out of 543).
- He plays a crucial role in parliamentary democracy by **holding the government accountable** and representing opposition viewpoints.
- He acts as Shadow Prime Minster in case of forming alternate government

LEGAL BASIS

- Recognized under the **Salary and Allowances of Leaders of Opposition Act, 1977**.
- LoP is granted **cabinet minister status** and participates in key appointments like:
  - Central Vigilance Commissioner
  - Chief Election Commissioner
  - Lokpal Selection Committee
  - CBI Director

ELIGIBILITY & APPOINTMENT

- The **largest opposition party's leader** is designated as LoP if the party has at least **10% of Lok Sabha seats**.
- If no party meets this criterion, the position remains **vacant**, as seen from **2014-2024** when no party met the threshold.

4. POST OF DEPUTY SPEAKER

The Deputy Speaker post in Lok Sabha remains vacant since 2019, raising concerns over parliamentary procedures and balance in legislative functioning.

ABOUT POST OF DEPUTY SPEAKER

- **Constitutional Provision**: Mentioned in **Article 93** of the Indian Constitution.
- **Election**: Elected by Lok Sabha members after the Speaker's election.
- **Election Date** – is fixed by the Speaker of the Lok Sabha
- **Term**: Holds office until the dissolution of Lok Sabha.
- **Dy Speaker** – dosenot has any special oath
- **Role & Powers**:
  - Presides over Lok Sabha in Speaker's absence.
  - Has the same powers as the Speaker when presiding. He is not subordinate to speaker but rather complementary to the speaker.
- **Removal**: Can be removed by a **resolution passed by Lok Sabha majority**.
- **Resignation** – He writes his resignation to the Speaker
- **Special Power** – He becomes the chairman of any Lok Sabha committee to which he is appointed as a member.
- **Salary and Allowance** – His salary is charged on Consolidated und of India.
- **Conventionally** – the post of Dy. Speaker was given to largest opposition party. But this convention is now not followed since 2014.

5. PRIVATE MEMBER'S BILL

Several private members' bills were introduced in Rajya Sabha, including proposals on free public healthcare, online hate speech prevention, POCSO Act amendments, and regulation of coaching centers, highlighting diverse legislative initiatives.

ABOUT

- **Definition**: A Private Member's Bill is a legislative proposal introduced by a Member of Parliament (MP) who is not a minister.

KEY FEATURES

- It can be **introduced in either Lok Sabha or Rajya Sabha**. Further, a private member can also introduce Constitutional Amendment Bill.
- The concerned MP must give a **one-month prior notice**. It can be discussed only on **Fridays** (when Parliament is in session).
- It is less likely to be passed compared to Government Bills. If passed, it holds the same legal status as a Government Bill.

PRIVATE MEMBER'S BILLS PASSED SINCE INDEPENDENCE

- **The Code of Criminal Procedure (Amendment) Bill, 1953** – Introduced by Raghunath Singh
- **The Hindu Marriage (Amendment) Bill, 1956** – Introduced by Diwan Chaman Lall
- **The Salaries and Allowances of Members of Parliament (Amendment) Bill, 1964** – Introduced by Raghunath Singh

6. JOINT PARLIAMENTARY COMMITTEE

Joint Parliamentary Committee submitted its report on the Waqf (Amendment) Bill, 2024, proposing 14 amendments, sparking opposition protests over alleged exclusion of dissenting opinions.

ABOUT JPC

Feature	Details
Definition	A Joint Parliamentary Committee (JPC) is a multi-party committee formed by the Indian Parliament for detailed scrutiny of specific issues, bills, or scams.

Composition	Members from both Lok Sabha and Rajya Sabha, with the strength decided by Parliament.
Formation	Created through a motion passed in either House of Parliament.
Purpose	Investigates legislative matters, government policies, or major financial irregularities.
Authority	Has powers to summon individuals, examine documents, and submit reports to Parliament.
Limitations	Recommendations are not binding on the government.
Notable JPCs	- Bofors Scandal (1987) - Harshad Mehta Stock Market Scam (1992) - Ketan Parekh Scam (2001) - 2G Spectrum Scam (2011) - Waqf (Amendment) Bill (2024)

7. PUBLIC ACCOUNTS COMMITTEE (PAC)

The Public Accounts Committee (PAC) will review the Delhi Excise Policy, summon the SEBI chief over GST frauds, and appoint a new chairman in the Telangana Assembly to strengthen financial accountability.

ABOUT PAC

- The Public Accounts Committee (PAC) is a parliamentary committee in India responsible for auditing the revenue and expenditure of the government. It ensures transparency and accountability in financial matters.
- C&AG assists the committee during the course of the investigation as a friend, philosopher and guide.

HISTORICAL BACKGROUND

- It is one of the oldest Parliamentary Committees in India.
- First formed in 1921, under Govt of India Act,1919, under the aegis of Finance Department
- After 1950, Committee became a Parliamentary Committee under the control of the Speaker.

COMPOSITION

- Consists of **22 members** (15 from Lok Sabha and 7 from Rajya Sabha).
- Members are elected annually by proportional representation.
- The **chairperson is appointed by the Speaker of Lok Sabha** (traditionally from the opposition party).

FUNCTIONS

- **Scrutinizes and examines** CAG's audit reports
- Ensures Public Expenditure Accountability and evaluates Government Performance
- **Reports to Parliament**: Submits findings and for corrective actions.

LIMITATIONS

- However, **PAC cannot question policy decisions** of the government.
- Lacks executive authority to enforce recommendations.
- Findings are advisory, not binding on the government.

8. RULES FOR SUSPENSION OF MPs

Recently, multiple MPs were suspended from Parliament for disrupting proceedings, sparking debates on parliamentary conduct, opposition rights, and legislative accountability in India.

RULES FOR SUSPENSION UNDER LOK SABHA AND RAJYA SABHA

House	Rule	Provision
Lok Sabha	Rule 373	Speaker may direct a member to withdraw for disorderly conduct.
	Rule 374	Speaker can suspend a member for serious misconduct.
	Rule 374A	Automatic suspension for up to five days in case of grave disorder.
Rajya Sabha	Rule 255	Chairman may ask a member to withdraw for disorderly conduct.
	Rule 256	Rajya Sabha can suspend a member for repeated misconduct with a majority vote.

POWER OF SUSPENSION

- The Presiding Officer — Speaker of Lok Sabha and Chairman of Rajya Sabha — is empowered to force a member to withdraw from the House, in order to maintain order so that the House can function smoothly.

TERMS OF SUSPENSION

- The **maximum period** of suspension is for the **remainder of the session** (However, the House at any point of time can reinstate a suspended member by passing a motion).
- Suspended members **cannot enter the chamber** or **attend the meetings** of the committees.

Grounds for termination covered under the **Rules of Procedure and Conduct of the House**-

- In the opinion of the Chairman, the conduct is **grossly disorderly**.
- **Disregards the authority of the Chair** or willfully obstructing" business.

9. DELIMITATION

MK Stalin, the Chief Minister of Tamil Nadu, has called for an all-party meeting, stating that the delimitation exercise - scheduled in 2026 - hangs over the southern states like a looming threat.

WHAT IS DELIMITATION?

- Delimitation refers to the process of **redrawing the boundaries of constituencies** or electoral areas. This process is carried out periodically to ensure that **each constituency has a roughly equal number of voters**, based on the principle of **"one vote, one value."**
- After each census, a readjustment is to made in (a) allocation of seats in the Lok Sabha to the States, and (b) division of each state into territorial constituencies. **Such an exercise was carried out after 1951, 1961 and 1971 census.**
- Parliament is empowered to determine the authority and the way it is to be made.
- Delimitation is necessary **because population distribution changes over time**, with some areas experiencing significant growth while others may decline. This can result in a situation where certain constituencies have a much larger or smaller number of voters compared to others, **leading to an imbalance in representation.**

ABOUT DELIMITATION COMMISSION

- Delimitation Commission is **appointed by the President** of India.
- **Composition:** Chief Election Commissioner, Retired Judge of Supreme Court and Election Commissioner of the concerned State.
- **Orders** of Delimitation Commission **cannot be called in question before any court** of law.
- The copies of its orders are laid before the House of People and State Legislative Assembly concerned, but **no modifications are permissible** therein by them.
- Representation of People's Act, 1950 provides for the delimitation of constituencies.

CONSTITUTIONAL PROVISIONS FOR DELIMITATION

Article 82 and 170 of the Indian constitution provides for the delimitation exercise at the level of Lok Sabha and State legislative assembly respectively.



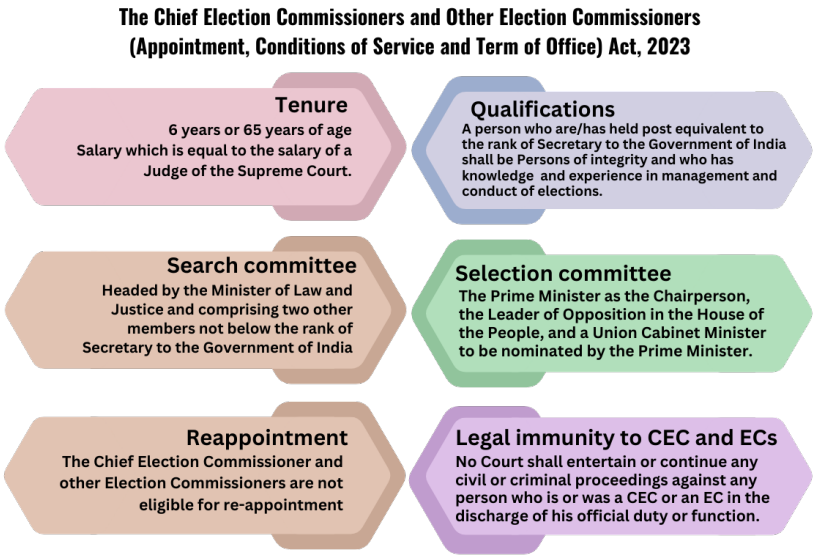
Key Functions:

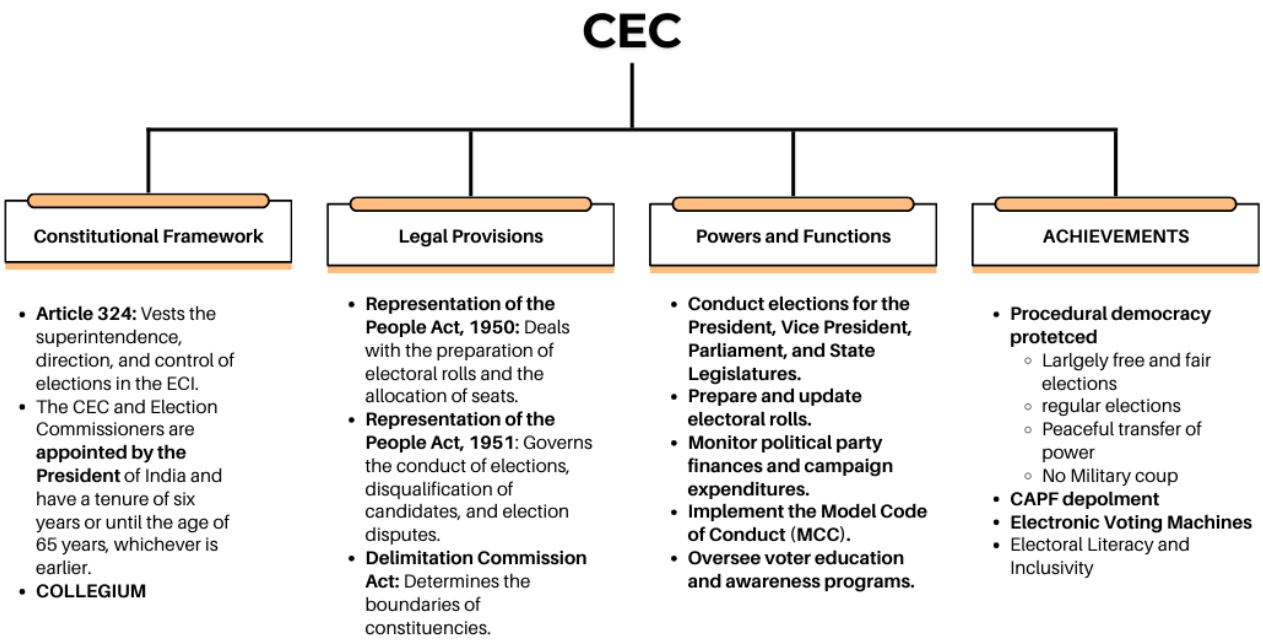
1. **Redrawing of Constituencies**: Adjusting the boundaries of Lok Sabha and State Assembly seats based on population changes.
2. **Reservation of Seats**: Allocating seats for **Scheduled Castes (SCs) and Scheduled Tribes (STs)**.
3. **Ensuring Equal Representation**: Balancing the number of voters in each constituency.

10. ELECTIONS IN INDIA

- **Election Commission of India (ECI)**:
  - **Article 324** of the Constitution provides for the establishment of ECI for conduct of all elections to Parliament and to the Legislature of every State and of elections to the offices of President and Vice-President held under this Constitution.
  - **Composition:** Consist of the Chief Election Commissioner and such number of other Election Commissioners as the President may from time-to-time fix.
  - **Appointment:** The Chief Election Commissioner, Election Commissioner and Regional Commissioners for election shall be **appointed by the President of India.**
  - **Tenure:** Conditions of service and tenure of office of the Election Commissioners and the Regional Commissioners is **determined by the President of India, subject to the provisions of any law made by Parliament.**
  - **Removal: Chief Election Commissioner** can be **removed** from his office in the **manner** and on the grounds **as a Judge of the Supreme Court**. **Other Election Commissioner or a Regional Commissioner can be removed on the recommendation of the Chief Election Commissioner.**
  - the conditions of service of the Chief Election Commissioner shall not be varied to his disadvantage after his appointment: Provided further that any other Election Commissioner or a Regional Commissioner shall not be removed from office except on the recommendation of the Chief Election Commissioner.

OTHER IMPORTANT PROVISIONS OF THE CEC AND OTHER EC ACT, 2023





- **Note:** The act has **repealed the Election Commission (Conditions of Service of Election Commissioners and Transaction of Business) Act, 1991.**
- **State Election Commission:**
  - **Article 243K** provides for establishment of State Election Commission consisting of State Election Commissioner.
  - The **conditions of service and tenure of office** of the State Election Commissioner shall be **determined by the Governor**.
  - **Appointment**: State Election Commissioner is appointed **by the Governor** of the State.
  - The superintendence, direction and control of the **preparation of electoral rolls and the conduct of elections to the Panchayats and municipalities** is vested in State Election Commission.
  - **Removal:** State Election Commissioner shall not be removed from his office in the same manner and ground as a Judge of a High Court.
  - The **conditions of service** of the State Election Commissioner **shall not be varied to his disadvantage after his appointment.**

11. NAME, SYMBOLS AND PARTY RECOGNITION

The Election Commission of India (ECI) allocated symbols to political parties based on the **Election Symbols (Reservation and Allotment) Order, 1968**, ensuring fair representation and preventing misuse in upcoming elections.

NATIONAL PARTY	STATE PARTY
If a party secures six percent of valid votes polled in four or more states at a general election to the Lok Sabha or to the state legislative assembly and in addition, it wins four seats in the Lok Sabha from any state or states.	If it secures six per cent of the valid votes polled in the state at a general election to the legislative assembly of the state concerned; and, in addition, it wins 2 seats in the assembly of the state concerned.
If the party wins two percent of seats in the Lok Sabha at a general election and these candidates are elected from at least three states.	If it secures six per cent of the valid votes polled in the state at a general election to the Lok Sabha from the

	state concerned; and, in addition, it wins 1 seat in the Lok Sabha from the state concerned.
If a party is recognised as a state party in four or more **states**.	If it wins three per cent of seats in the legislative assembly at a general election to the legislative assembly of the state concerned or 3 seats in the assembly, whichever is more.
	If it wins 1 seat in the Lok Sabha for every 25 seats or any fraction thereof allotted to the state at a general election to the Lok Sabha from the state concerned.
	If it secures eight per cent of the total valid votes polled in the state at a General Election to the Lok Sabha from the state or to the legislative assembly of the state. This condition was added in 2011.

ALLOTMENT OF NAME AND SYMBOLS TO THE PARTY

- There are two kinds of symbols- Free and Reserved.
- The Reserved symbols are of recognised parties- National and State parties.
- The free symbols are chosen by the candidates of unrecognised parties or independent candidates.
- **A symbol reserved for a State Party in any State –**

  (a) shall not be included in **the** list of free symbols for any other State or Union Territory; and

  (b) shall not be reserved for any other party which subsequently becomes eligible as a State or National party.
- If any free symbol has been chosen by only one candidate at such election, the returning. officer shall allot that symbol to that candidate, and to no one else.
- If the same free symbol has been chosen by several candidates at such election, then it shall be allotted to candidate set up by an unrecognised political party if all the rest are independent candidates.

Power of Commission in relation to splinter groups or rival sections of a recognised.

- **Political Party: The** ECI may rule that **one such rival section or group** or **none of such rival sections or groups is that recognised political party** and the **decision of the Commission shall be binding** on all such rival sections or groups.
- The ECI has the **power to suspend or withdraw recognition of a recognised political party** for its failure to observe Model Code of Conduct or follow lawful directions and instructions of the Commission.
- **Note:** Currently, the migrant workers become ineligible to vote in the place of their work as a person can be registered in the electoral roll of only one constituency. In this regard, the **ECI has put forward a proposal to introduce remote voting system for migrant workers.** But final guidelines from the side of ECI are still awaited.

12. SECTION 102 OF RPA PROVIDES FOR DRAW OF LOTS IN CASE OF TIE IN ELECTIONS.

In the recently held Rajya Sabha elections in Himachal Pradesh, draw of lots was used for the first time in India to elect a winner for **Rajya Sabha** seat.

Relevant provision: Section 102 of RPA 1951 states **procedure** in case of an equality of votes.

- If during the trial of an election petition it appears that there is an equality of votes between any candidates at the election and that the addition of a vote would entitle any of those candidates—

  (a) any **decision made by the returning officer** under the provisions of this Act shall be effective for the purposes of the petition

  (b) if the question is not determined by such a decision the High court shall **decide between them by lot** and proceed as if the one on whom the lot then falls had received an additional vote.

OTHER INSTANCES

- In 2019, draw of lots was used to settle "tied" elections in case of local bodies in Rajasthan.
- Brihanmumbai Municipal Corporation elections 2017 used draw of lots to settle the dispute with respect to returned candidate.

SIGNIFICANT JUDICIAL OBSERVATIONS

- **Arikala Narasa Reddy v. Venkata Ram Reddy**: Supreme Court weighted in favor of "draw of lots" in case two candidates may have received equal number of votes by virtue of Section 102 of RPA 1951.
- **Madras High Court** in a 2020 judgement provided for draw of lots in case of tie in the matter relating to election of President and Vice- President to Panchayat Unions. Court remarked that it is for the legislature to decide its continuation.

13. TECHNOLOGICAL INNOVATIONS OF ELECTION COMMISSION OF INDIA

- **ENCORE App**- It is a mobile application developed by the Election Commission of India (ECI) to help nodal officers manage the permission process during election periods.
- **c-VIGIL App**- It allows any citizen to report on the violations of election code by any candidate or political party.
- **SVEEP portal-** For voter education and awareness and promoting voter literacy in India.
- **Toll Free Helpline-** Toll free number 1950. Any citizen from any part of the country can call on the toll-free number with any query or complaint at any time of the day. Callers can enquire on subjects such as elections, voting dates, EPIC, electoral roll, online registration and lodge a complaint by simply dialling into the toll-free no. Not only this, but executives also make outbound calls for educating the electors and spreading voter awareness.

14. RULES REGARDING STAR CAMPAIGNER

The **Election Commission of India (ECI)** issued several warnings and notices regarding **violations of Model Code of Conduct (MCC)** by star campaigners during 2024 elections. **ECI also revoked "star campaigner" status** of some politicians who repeatedly violated MCC norms (rare exercise of power).

Definition: A **star campaigner** is a prominent leader designated by a political party to campaign on its behalf during elections.

Legal Basis: Mentioned under **Section 77 of the Representation of the People Act, 1951**, and regulated by the **Election Commission of India (ECI)**.

Key Rules:

- **Number Limit:** Recognized **national and state parties** can nominate **up to 40** star campaigners, while **other registered parties** can nominate **up to 20**.
- **Expenditure Benefit:** The expenses incurred by a star campaigner **do not count** towards the candidate's election expenditure

- **Notification Requirement:** Parties must **inform the ECI** about their star campaigners within **seven days**.
- **Revocation Power:** The **ECI can revoke** star campaigner status if the individual violates the Model Code of Conduct (MCC)

Significance: Helps **reduce financial burden** on candidates, ensures **efficient campaigning**, and provides **greater outreach** for political parties.

15. ELECTORAL TRUST SCHEME

- In the Electoral Bond Judgement, SC suggested Electoral Trusts as a better model to be followed which balanced the need for transparency of electoral funding and the confidentiality and anonymity of donors.
- Any company registered under Section 25 of Companies Act, 1956, can form an Electoral Trust.
- Under Section 17CA of the Income-tax Act, 1961, any citizen of India, a company registered in India, or a firm or Hindu Undivided Family or association of persons living in India, can donate to an electoral trust.
- The electoral trusts have to apply for renewal every three financial years.
- They must donate 95% of contributions received in a financial year to political parties registered under Representation of the People Act, 1951.
- The contributors' PAN (in case of a resident) or passport number (in case of an NRI) is required at the time of making contributions.
- **Transparency under Electoral Trust Scheme:**
  - Electoral trusts are mandated by law to maintain a list of contributions and submit to the Election Commission of India. Such records must also be submitted to income tax commissioner along with an audit report.
  - Electoral Trusts receive donations from various donors and donate to various political parties. This makes it difficult to determine to whom an individual donor may have contributed.
- During the period 2017-18 — the financial year in which Electoral Bonds were first made available — to 2021-22, the money donated through Electoral Bonds was more than five times the amount that came through the Electoral Trusts.

16. PARLIAMENTARY PRIVILEGES

SC stays Lok Sabha privileges panel proceedings on West Bengal BJP MP's 'injury complaint'.

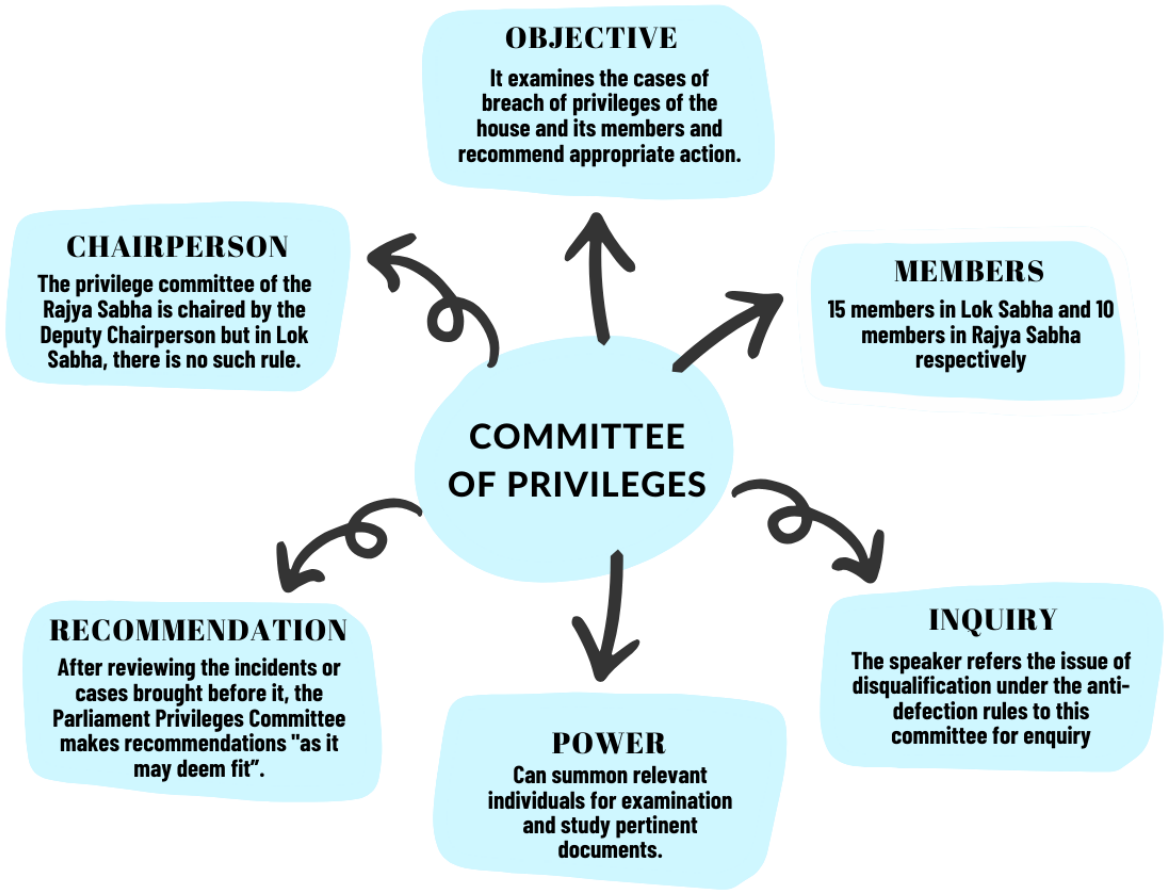
PARLIAMENTARY PRIVILEGES

- **Each House of Parliament and its Committees collectively and members of each House individually enjoy certain rights, privileges** and immunities without which they cannot perform their functions efficiently and effectively.
- The object of parliamentary privilege is to **safeguard the freedom, the authority and the dignity of Parliament.**
- They are enjoyed by individual members, because the House cannot perform its functions without unimpeded use of the services of its members and by each House collectively for the protection of its members and the vindication of its own authority and dignity.
- The **Constitution has also extended the parliamentary privileges to** those persons who are entitled to speak and take part in the proceedings of the house i.e. **attorney general of India and Union Ministers.**

Collective Privileges	Individual privileges
Enjoyed by each house of the parliament collectively	Enjoyed by the members of each house individually

Right to publish its reports, debates and proceedings	MPs cannot be arrested during the session of Parliament and 40 days before the beginning and 40 days after the end of a session.
Exclude strangers from its proceeding for secret sittings	Freedom of speech in parliament (article 105) and freedom of speech in state assembly (article 194).
Make rules to regulate its own procedure and conduct of business	Exempted from jury service, can refuse to give evidence, and appear as a witness in a case pending in a court when parliament is in session
Punish members as well as outsiders for breach of its privileges or its contempt	
Right to receive immediate information of the arrest, detention, conviction, imprisonment, and release of a member	
Institute inquiries and order the attendance of witnesses	
Courts are prohibited to inquire into the proceedings of a house or its committees	
No legal process can be served within the precincts of the House without the permission of the presiding officer	

COMMITTEE OF PRIVILEGES



Click here for INDEX

17. NO-CONFIDENCE MOTION

The no confidence motion moved by the opposition against the NDA government led by Prime Minister Narendra Modi was defeated in the Lok Sabha.

WHAT IS A NO- CONFIDENCE MOTION?

No-confidence motions are trust votes, used to test or demonstrate the support of Lok Sabha for the government in power.

Derived from Article 75(3) of the Constitution which states that the government is collectively responsible to Lok Sabha.

So far, 28 no-confidence motions have been discussed .

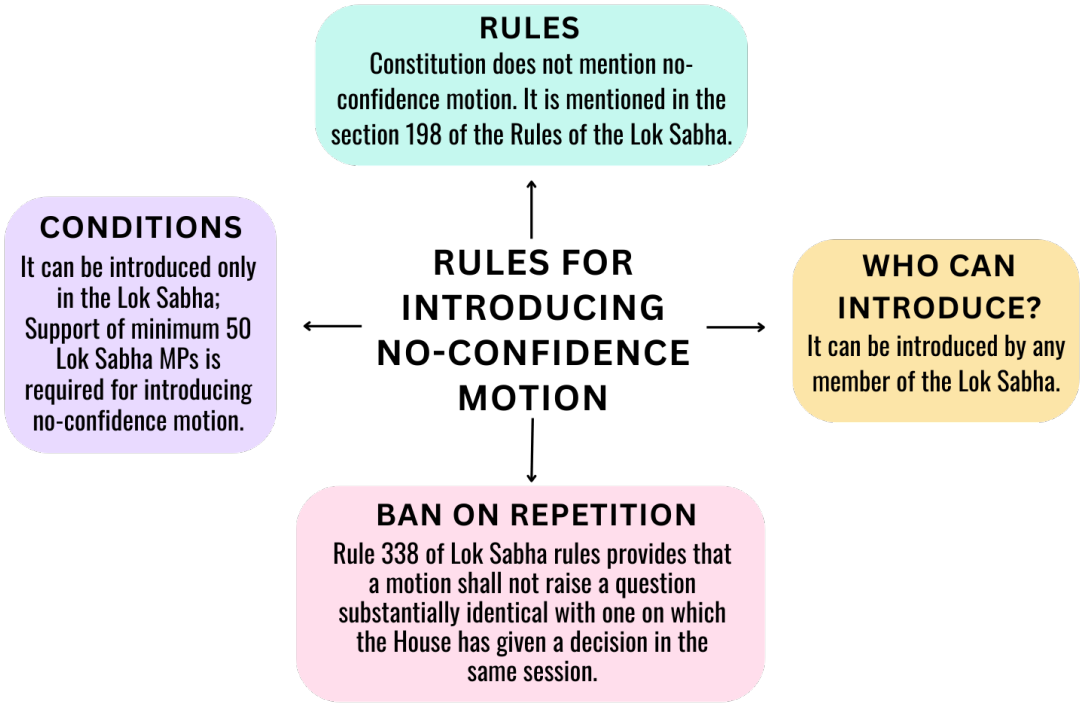
NO CONFIDENCE MOTION

The first no-confidence motion was moved against the Jawaharlal Nehru government in 1963 by Acharya J.B. Kripalani.

Indira Gandhi faced the most number of no-confidence motions as a Prime Minister

Prime ministers Charan Singh, V.P. Singh, Chandra Shekhar, H.D. Deve Gowda and I.K. Gujral did not face any such motion.

RULES FOR INTRODUCING NO-CONFIDENCE MOTION



Click here for INDEX

7 CHAPTER JUDICIARY

1. APPOINTMENT

PROVISIONS

- The Supreme Court of India comprises the Chief Justice and not more than 33 other Judges appointed by the President of India. The number of judges is decided by the **Parliament by law**, for this Parliament has enacted **The Supreme Court (Number of Judges) Act, 1956.**
- **Constitutional Provisions:** Article 124 deals with the appointment of Judges of Supreme Court, Article 217 deals with appointment of Judges of High Court and Article 224 deals with appointment of acting and additional judges.
- **Retirement:** Supreme Court Judges retire upon attaining the age of **65 years.**
- **Eligibility:** To be appointed as a Judge of the Supreme Court, a person must be a **citizen of India** and:
  - A **Judge of a High Court** or of two or more such Courts in succession for at least five years.
  - An **Advocate of a High Court** or of two or more such Courts in succession for at least 10 years
  - He must be, in the opinion of the President, **a distinguished jurist.**
  - Provisions exist for the appointment of a Judge of a High Court as an Ad-hoc Judge of the Supreme Court and for retired Judges of the Supreme Court or High Courts to sit and act as Judges of that Court.

CONSTITUTIONAL PROVISION FOR APPOINTMENT OF JUDGES

- **Article 124(2):** Judge of Supreme Court shall be appointed by the President by warrant under his hand and seal and shall hold office until he attains the age of sixty-five years.
- **Article 217(1):** Judge of a High Court shall be appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, Governor of State, and the Chief Justice of High Court.
- **Article 224(1):** In case of temporary increase in business of a High Court or by reason of arrears of work, President may in Consultation with Governor and Chief Justice of High Court appoint duly qualified person to be additional or acting Judge of that Court until the permanent Judge has resumed his duties.
- **Article 233(1):** Appointment of District Judge by Governor of State in consultation with High Court of such State.

2. ARTICLE 142

The Supreme Court used its powers under Article 142 to do **"complete justice"** in the context of Chandigarh mayoral elections.

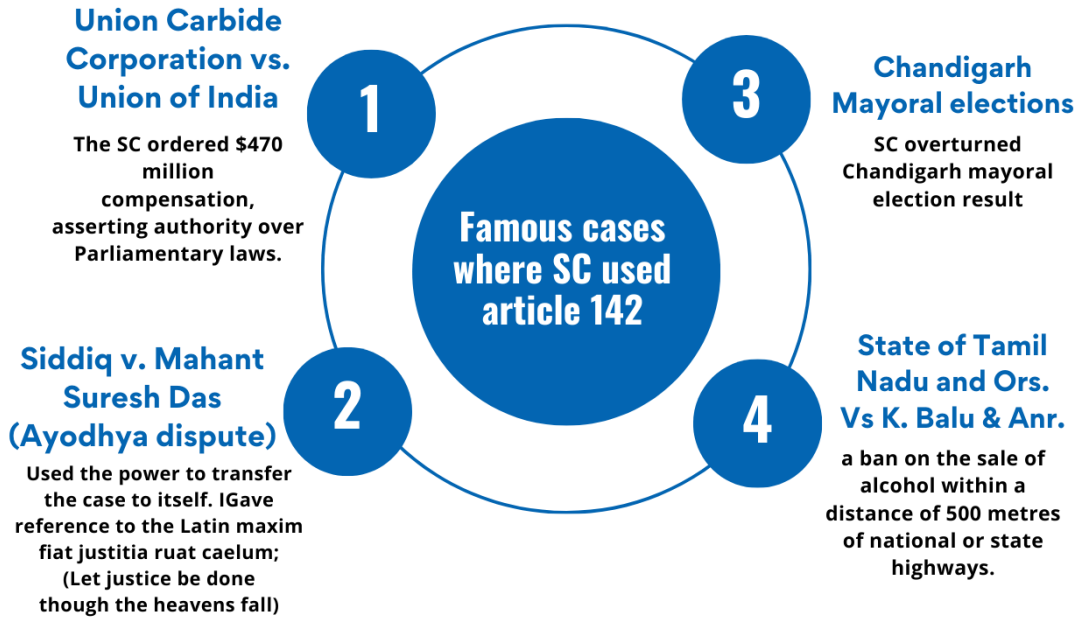
About Article 144: Civil and judicial authorities to act in aid of the Supreme Court. — All authorities, civil and judicial, in the territory of India shall act in aid of the Supreme Court.

How does Article 142 give unique power to the Supreme Court:

- Article 142(1) grants it a distinctive power not found in the Government of India Act, 1935, or any other global constitution.
- It empowers the court to ensure complete justice, ultimately concluding the legal dispute between the parties.
- The Article contradicts the traditional equity principle that follows the law which makes it a unique provision.
- The Supreme Court, while granting relief, can deviate from strict legal applications based on the peculiar circumstances of each case. Article 142 allows the court to relax the application of law or entirely exempt parties from legal procedures during the process of delivering justice.

- It empowers the court to ensure complete justice when deemed necessary.

Previous instances of usage: Over time, the Supreme Court has clarified its authority through key rulings.



EXCEPTION

- Despite its expansive power, the Supreme Court clarified in a 2023 ruling that Article 142 is not universally applicable and may not be invoked in every case.
- Though Article 142(1) empowers the Supreme Court to pass any order to do complete justice between the parties, the Court cannot make an order inconsistent with the fundamental rights guaranteed by Part III of the Constitution.

3. AD-HOC JUDGES IN HIGH COURT

Recently, Supreme Court permitted High Courts to appoint ad-hoc judges to address case backlogs. Each High Court can appoint two to five retired judges, not exceeding 10% of their sanctioned strength.

Appointment of acting Chief Justice – Article 126	Appointment of Ad Hoc Judges- ARTICLE 127	Attendance of retired Judges at sittings of the Supreme Court – Article 128
When the office of CJI is vacant or When the Chief Justice is absent When the CJI is unable to perform the duties of his office the duties of the office shall be performed by such one of the other Judges of the Court as the President may appoint for the purpose.	If at any time there is no Quorum of Judges of SC to hold or continue any session of the Court Then the **CJI with previous consent of the President,** and after consultation with the Chief Justice of the High Court concerned - request in writing the attendance at the sittings of the Court, as an ad hoc Judge Judge of HC must be qualified for appointment as a Judge of the Supreme Court. The Judge while attending sittings of SC shall have all the jurisdiction, powers and privileges, and shall discharge the duties, of a Judge of the Supreme Court.	CJI with the consent of President - request any person who has held the office of a Judge of the Supreme Court; or who has held the office of a Judge of a High Court and is duly qualified to be appointed as SC Judge to sit and act as a Judge of the Supreme Court **Such Judges shall be entitled to such allowances as the President by order determine.** Such Judges have all the jurisdiction, powers and privileges of SC - but shall not otherwise be deemed to be, a Judge of SC

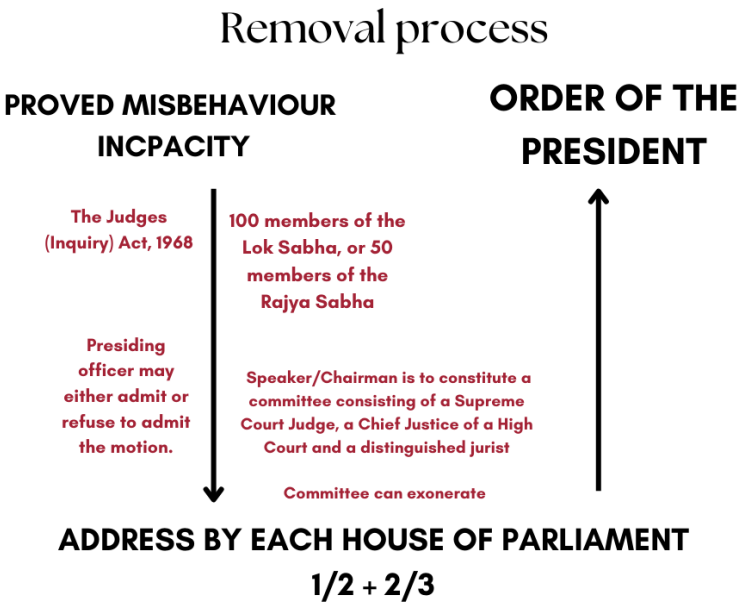
ABOUT AD-HOC JUDGES OF HC

- **Constitutional Provisions:** Article 224A of the Indian Constitution allows the appointment of ad-hoc judges in High Courts.
- **Purpose:** To clear the backlog of pending cases and address judicial vacancies.
- **Eligibility:** Any retired judge of any High Court can be appointed as an ad-hoc judge.
- **Appointment Process:** The Chief Justice of a High Court may appoint ad-hoc judges with the prior approval of the President.
- **Tenure & Powers:** They serve for a temporary period and have the same jurisdiction, powers, and privileges as permanent judges.

COMPARING AD HOC JUDGE OF HC WITH ADDITIONAL JUDGE OF HC

FEATURE	AD-HOC JUDGES	ADDITIONAL JUDGES
Governing Article	Article 224A	Article 224
Purpose	Appointed to clear **backlog of cases** when there is a **lack of quorum of permanent judges**	Appointed to handle **temporary workload** due to increased cases or backlog
Appointment Authority	Appointed by the **President of India** on the recommendation of the **Collegium**	Appointed by the **President of India** in consultation with **CJI, Governor, and HC Chief Justice**
Eligibility	Must be a **retired High Court judge** willing to serve	Senior advocates or judges qualified for HC appointment
Tenure	No fixed tenure, serves **until backlog is reduced**	Maximum **two years**, can be extended or made permanent
Powers & Jurisdiction	Same as permanent HC judges	Same as permanent HC judges
Retirement Age	Already retired judges, so **age limit is not applicable**	Retirement age is **62 years**

4. PROCESS OF REMOVAL OF HC JUDGE



Justice Shekhar Kumar Yadav of Allahabad HC faced removal proceedings after his speech at a VHP event, prompting 55 MPs to seek action for alleged hate speech and judicial misconduct.

ABOUT REMOVAL OF HC JUDGE

- **Constitutional Provision**:
  - Governed by **Article 217(1)(b)** and **Article 218** of the Indian Constitution.
  - Removal process follows **Article 124(4) and the Judges (Inquiry) Act, 1968**.
- **Grounds for Removal**: Proved misbehavior or incapacity.
- **Procedure for Removal**:
  - **Initiation**: Requires a motion in either **Lok Sabha or Rajya Sabha**.
  - **Signatures Required**: **100 MPs in Lok Sabha** or **50 MPs in Rajya Sabha**.
  - **Investigation**: A **three-member committee**
    - (Judge of SC, HC Chief Justice, distinguished jurist) examines charges.
- **Parliamentary Approval**: Both Houses must pass the motion by a **special majority** (majority of total membership & 2/3rd of members present and voting).
- **President's Order**: Final removal is executed by the **President of India**.
- **Note –** Since independence, No Judge has been removed.

5. TENURE AND AGE OF RETIREMENT OF JUDGES

TENURE OF JUDGES SUPREME COURT	TENURE OF JUDGES HIGH COURT
The **Constitution has not fixed** the tenure of a judge of the Supreme Court. However, it makes the following three provisions in this regard: • He holds office until he attains the age of **65 years.** Any question regarding his age is to be determined by such authority and in such manner as **provided by Parliament.** • He can resign his office by writing to the **President.** • He can be removed from his office by the **President on the recommendation of the Parliament**.	The **Constitution has not fixed** the tenure of a judge of a high court. However, it makes the following four provisions in this regard: • He holds office until he attains the age of **62 years.** Any questions regarding his age is to be decided by the P**resident** after consultation with the **Chief Justice of India** and the decision of the **President** is final. • He can resign his office by writing to the president. • He can be removed from his office by the President on the recommendation of the Parliament. • He vacates his office when he is appointed as a judge of the Supreme Court or when he is transferred to another high court.

6. TRANSFER OF HIGH COURT JUDGES

KEY POINTS

- **Article 222** of the Indian Constitution governs the transfer of Judges between High Courts.
- The Chief Justice of India initiates transfer proposals, and their opinion is decisive. Consent from the Judge being transferred is not required.
- Views of the Chief Justices of both the originating and receiving High Courts, as well as one or more Supreme Court Judges, are considered in the formation of opinion in transfer process.
- The Chief Justice of India and the four most senior Supreme Court Judges consider written views on the proposed transfer, including personal factors and preferences of the Judge.
- After the recommendation of a transfer is received from the Chief Justice of India, the Union Minister of Law, Justice, and Company Affairs submits the recommendation along with relevant papers to the Prime Minister who then advise the President as to the transfer of the Judge concerned.

- After the President approves the transfer, the Secretary to the Government of India in the Department of Justice will inform the Chief Justice of the High Courts and the Chief Ministers of concerned States and will announce the transfer and issue the necessary notification in the Gazette of India.

7. PUISNE JUDGE

Definition - A **Puisne Judge** refers to any judge of a **High Court or Supreme Court**, other than the **Chief Justice**. The term is commonly used in **Common Law jurisdictions**

- **Meaning:** "Puisne" means **junior** or **subordinate** in rank. The term is derived from French vocabulary.
- **Role:** Puisne Judges hold the **same judicial powers** as the Chief Justice but do not have administrative authority.

Comparing Chie Judge and Puisne Judge

Feature	Chief Justice	Puisne Judge
Rank	Highest-ranking judge	Other judges, junior in rank
Appointment	By **President** on Collegium's advice	By **President** on Collegium's advice
Administrative Role	Manages court administration	No administrative role
Judicial Power	Same as puisne judges	Same as Chief Justice

8. BLACK COAT SYNDROME' IN COURTS

President Droupadi Murmu highlighted the "black coat syndrome," describing the anxiety common citizens feel in courts due to frequent adjournments and delays, urging timely justice.

- **Definition:** "Black Coat Syndrome" refers to the **fear and anxiety common citizens feel** while **approaching courts** due to complex legal procedures, frequent adjournments, and long delays in justice delivery.

Causes:

- **Judicial Delays:** Cases often drag on for years, leading to frustration.
- **Complex Legal Jargon:** Legal procedures are difficult for common people
- **Frequent Adjournments** and High cost of Justice

White coat syndrome, also known as **white coat hypertension**, is a phenomenon where a person's blood pressure readings are higher when taken in a medical setting, such as a doctor's office, compared to at home.

9. NEW STATUE OF LADY JUSTICE

The Supreme Court unveiled a new Lady Justice statue without a blindfold, holding the Indian Constitution instead of a sword, symbolizing that law in India is neither blind nor punitive.

ABOUT LADY JUSTICE

- **Location & Features:** Installed in the **Judges' Library**, the **six-foot-tall** statue depicts **Lady Justice** in a **saree**, holding the **Constitution of India** instead of the traditional **sword**. It notably lacks a **blindfold**.
- **Symbolism:** Unlike the conventional **blindfolded Lady Justice**, this statue emphasizes that **"law is not blind; it sees everyone equally,"** reflecting **transparency** and **fairness** in the judicial system.
- **Artist & Purpose:** Designed by muralist **Vinod Goswami** from the **College of Art, Delhi**, the statue represents a **modern**, **culturally rooted** vision of **justice** in India.

10. NEW FLAG AND INSIGNIA OF SUPREME COURT

The President of India recently unveiled the new flag and insignia of the Supreme Court at the two-day National Conference of District Judiciary in New Delhi.

Flag:

- The **Supreme Court flag** features three vertical stripes in **saffron, white, and green**, reflecting the **national colors** of India.
- The **Ashoka Chakra** is placed in the center, symbolizing **justice, integrity, and the rule of law**.
- The flag represents the **judiciary's commitment** to upholding constitutional values.

Insignia:

- The **new insignia** retains the traditional **lion capital of Ashoka** at the top, a symbol of India's sovereignty.
- Below it, the **Ashoka Chakra** is featured prominently, emphasizing **justice and fairness**.
- The **motto** has been revised to reinforce the **Supreme Court's role** in ensuring justice for all.
- The design aims to enhance the **Supreme Court's identity** while staying true to India's judicial ethos.

11. ADVOCATE ON RECORD

Widespread protests against the proposed amendments to the Advocates Bill, 1961, prompted the Central government to withdraw the Advocates (Amendment) Bill, 2025.

About AoR-

Definition: An **Advocate-on-Record (AoR)** is a lawyer authorized by the **Supreme Court of India** to file and argue cases on behalf of clients.

ELIGIBILITY CRITERIA

1. Must be an **advocate enrolled with a State Bar Council**.
2. Minimum **four years of practice** as an advocate.
3. Completion of **one-year training** under a Supreme Court AoR.
4. Must pass the **AoR Examination** conducted by the Supreme Court.

ROLE AND RESPONSIBILITIES

- He/She has **Exclusive Right** to file cases before the **Supreme Court**.
- **Responsible** for drafting and submitting pleadings.
- They ensure **procedural compliance** with Supreme Court rules.
- They are accountable for any **misrepresentation or errors** in petitions.

12. LOK ADALAT

In December 2024, the National Lok Adalat settled a record 1.45 crore cases, including 1.22 crore pre-litigation disputes, significantly reducing court burdens.

ABOUT LOK ADALAT

CONSTITUTIONAL & LEGAL BASIS

- Established under **Article 39A** (Directive Principles of State Policy) for free legal aid.
- Governed by the **Legal Services Authorities Act, 1987**.

NATURE & JURISDICTION

- Alternative dispute resolution (ADR) forum for **speedy and amicable settlement**.
- Deals with **civil, family, motor accident, and petty criminal cases** (compoundable offenses).
- Cannot handle **non-compoundable criminal cases**.

COMPOSITION

- Chaired by **retired or sitting judicial officers**.
- Assisted by **social workers and legal professionals**.

KEY FEATURES

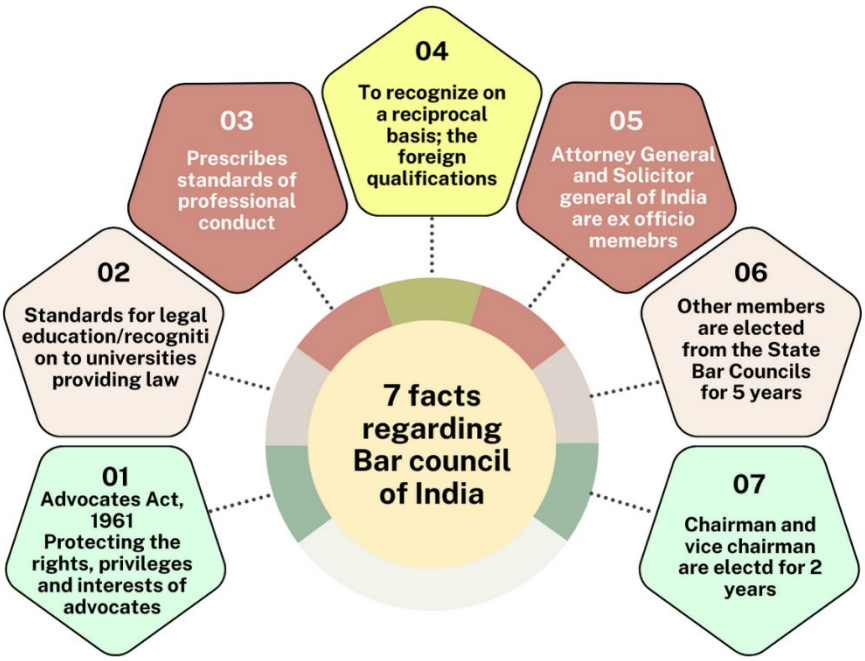
- **No court fee**, and fees paid in pending cases are refunded if settled.
- **Binding decisions (award)**, equivalent to a civil court decree. Thus No Appeal.

STRUCTURE OF LOK ADALAT - UPSC

1. **National Level** – **NALSA**, headed by the **CJI**, organizes **National Lok Adalats**.
2. **State Level** – **SLSA**, led by the **State Chief Justice**, conducts **State Lok Adalats**.
3. **District Level** – **DLSA**, chaired by the **District Judge**, handles **District Lok Adalats**.
4. **Taluka Level** – **TLSC**, overseen by a **Senior Civil Judge**, runs **Taluka Lok Adalats**.

13. BAR COUNCIL OF INDIA

BCI notified in the official gazette the **Rules for Registration and Regulation of Foreign Lawyers and Foreign Law Firms in India, 2022**. According to the rule, the **foreign lawyers cannot appear in court, they can advise clients on foreign law and work on corporate transactions**. The Bar Council of India (BCI) is a **statutory body** created by Parliament to regulate and represent the Indian Bar.

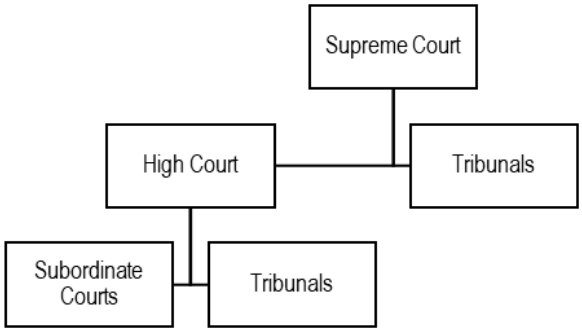


14. TRIBUNALS

Tribunals are judicial or quasi-judicial institutions established by law. Their objective is to provide a platform for faster adjudication as compared to traditional courts, they also provide expertise on certain subject matters.

KEY FEATURES

- **Evolution: Articles 323A and 323B** were added in 1976 to empower Parliament to establish administrative tribunals for public service matters and allowing for tribunals on various subjects. But even prior to independence, the income tax appellate tribunal was established as first tribunal in India in 1941 to expedite adjudication of disputes relating to taxation matters.
- **Purpose of Tribunals**: They serve to discharge judicial or quasi-judicial functions, in order to reduce court case loads and offer subject expertise.



- **Administration:** Tribunals relieve court burdens and are overseen by the judiciary but administered by the executive. They act as specialized quasi-judicial bodies, handling specific legal areas and expediting certain cases.
- **Challenges**: Despite the intended goal to reduce court's burden, many tribunals face significant backlogs.

Important case laws with respect to tribunals in India

- **S.P. Sampath Kumar vs Union of India:** It is constitutionally valid for Parliament to create an alternate institution to High Courts with jurisdiction over certain matters provided that the alternate body has same efficacy as that of the High Court. Such tribunals will be considered substitutes of the High Courts.
- **L Chandra Kumar v Union of India: Jurisdiction** of High Court and Supreme Court under Article 226/227 and 32 is part of basic structure. Appeal from tribunal would not lie directly before the Supreme Court, the aggrieved party has to move to high court first.

15. FOREIGNERS TRIBUNALS

The Supreme Court recently ruled that Foreigners Tribunals in Assam lack the authority to review their own decisions. Once a tribunal declares an individual as an Indian citizen, it cannot reassess that verdict.

WHAT ARE FOREIGNERS TRIBUNALS?

- **Quasi-judicial bodies** established under the **Foreigners Act, 1946** to determine the nationality status of individuals suspected of being illegal immigrants.
- Primarily function in **Assam** to detect and deport illegal migrants, particularly those identified under the **National Register of Citizens (NRC).**

COMPOSITION & APPOINTMENT

- Members are usually **retired district judges, civil servants, or lawyers** with at least 10 years of legal experience.
- Appointed by the **Government of India** in consultation with the **state government.**

JURISDICTION & POWERS

- Can **issue notices to individuals** suspected of being illegal immigrants and require them to provide proof of Indian citizenship.
- Decisions are **binding**, but challengeable in **High Court or Supreme Court.**
- Tribunals **cannot review** or **overturn their own decisions** (as per **SC ruling, 2024**).

SIGNIFICANCE

- Helps in identifying illegal migrants, particularly from **Bangladesh.**
- Plays a crucial role in **citizenship verification** under NRC.
- Ensures compliance with the **Foreigners Act, 1946,** and prevents wrongful deportations.

16. SUBORDINATE JUDICIARY

Article 233 to 237 deal with the provisions to regulate the organisation of Subordinate courts and ensure their independence from executive.

Appointment of District Judges: The appointment, posting and promotion of District Judges in a State are made by the Governor of the State in consultation with the High Court.

A person to be appointed as district judge should have the following qualifications:

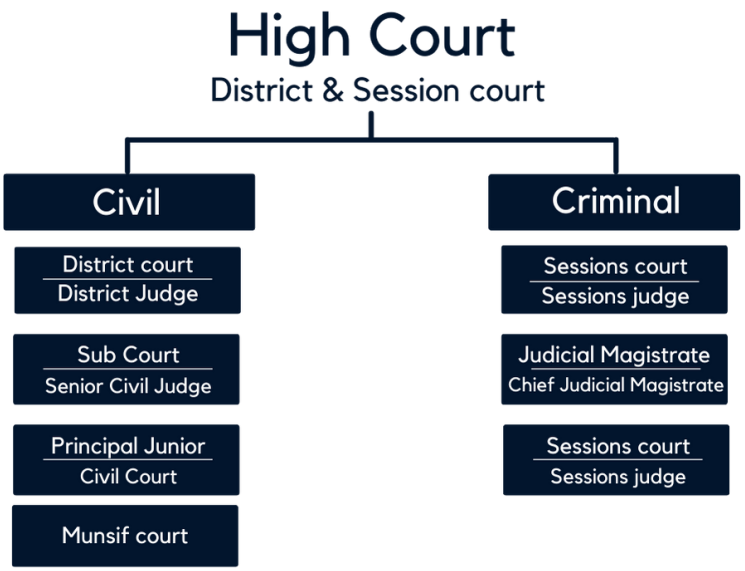
(a) He should not already be in the service of the Central or the State government.

(b) He should have been an advocate or a pleader for seven years.

(c) He should be recommended by the high court for appointment.

ORGANIZATIONAL STRUCTURE OF SUBORDINATE JUDICIARY

(Note: The chart is indicative in nature and the organizational structure may vary from State to State**)**



POINTS TO REMEMBER

- The organizational structure, jurisdiction and nomenclature of subordinate judiciary are determined by States.
- District Judge is the highest judicial authority of a district. He/she possesses judicial, Administrative, and Supervisory powers over the subordinate courts.
- He/she possesses original and appellate jurisdiction in both civil and criminal cases.
- Appeal against his/her orders lie to the high courts.
- The Sessions judge has the power to impose any sentence including life imprisonment and capital sentence. However, the capital punishment passed by him/her is subject.

17. CENTRAL ADMINISTRATIVE TRIBUNALS

The Central Administrative Tribunal had been established under Article 323A of the Constitution for adjudication of disputes and complaints with respect to recruitment and conditions of service of persons appointed to public services and posts in connection with the affairs of the Union or other authorities under the control of the Government. For the above function, the parliament has formulated **Administrative Tribunals Act, 1985**

KEY POINTS TO REMEMBER

- **Jurisdiction**: It has exclusive jurisdiction over disputes and complaints related to the **recruitment and**
- **conditions of service** of persons appointed to All India Services, Central Civil Services and civil posts under the central government and civil employees under the central government.

OBJECTIVE OF THE ADMINISTRATIVE TRIBUNALS ACT, 1985

- **Reduce burden of Courts:** To alleviate the burden on regular courts, allowing them to focus on other cases and expedite their disposal.
- **Speedy Relief**: To provide swift relief in addressing their grievances related to service matters.
- **Efficiency and Accessibility**: To enhance the efficiency, accessibility, and fairness of the adjudication process by providing a dedicated forum for resolving service-related disputes.

Administration: CAT employees work under the general superintendence of the Chairman. The Central Government specifies their salaries, allowances, and conditions of service through the **Central Administrative Tribunal Staff (Condition of Service) Rules, 1985.**

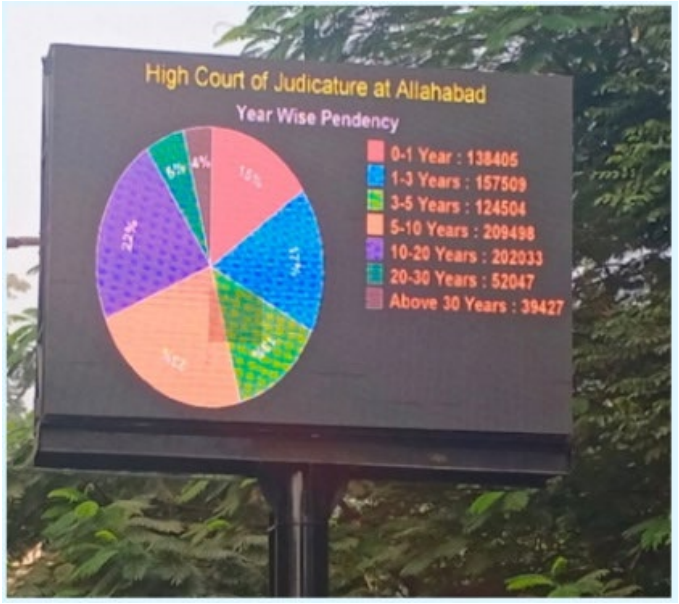
Location: The CAT has Principal bench in Delhi, and 19 regular benches.

Originally, decisions of the Tribunal could be challenged in the Supreme Court through a Special Leave Petition. However, after the Supreme Court's decision in **L. Chandra Kumar v Union of India case**, challenges to CAT orders are now made through Writ Petitions under Article 226/227 of the Constitution before the respective High Court within whose territorial jurisdiction the CAT bench is situated.

Click here for INDEX

18. JUSTICE CLOCKS

Justice Clocks have been installed to effectively use the database created through National Judicial Data Grid and make the information available to public.



- **Purpose of Justice Clock**:
  - To raise public awareness about the justice sector.
  - Advertise various schemes of the Department of Justice.
  - Provide status updates on various fields to the public.
- **Content Displayed on Justice Clock**:
  - It displays information about court disposals, services offered in court complexes, and various fields' status to the public.
  - Various schemes of the Department of Justice, including **eCourts**, **Access to Justice**, and **Legal Aid** to the Poor.
  - Information about top performing district courts with the **highest percentage of case disposals** across different age brackets (2 years, 2-5 years, and above 10 years old).
  - Various details of legal aid programs and access to justice schemes.
- **Location and Funding**:
  - 39 Justice Clocks are operational in 25 High Courts.
  - Each Justice Clock funded with Rs. 13 lakhs sanctioned by the e-committee.

19. LIVE STREAMING OF HIGHER JUDICIARY HEARINGS

It has been initiated to create a more accessible, efficient, and equitable judicial system for all individuals engaging with the justice delivery. It further ensures the right to access justice as guaranteed under **Article 21** of the Constitution which encompasses the right to access live court proceedings.

- **Advantages of Live Streaming**:
  - Enables real-time access to court proceedings, including those of public interest, for citizens, journalists, civil society, academics, and law students.
  - It addresses barriers like geographical, logistical, or infrastructural limitations in the access to information.
  - Enhances transparency, inclusivity, and access to justice.
- **Relevant Case laws:**
  - Live streaming infrastructure has been developed by the **e-Committee of Supreme Court**, taking into account principles from the Supreme Court's decision **in Swapnil Tripathi v Supreme Court of India (2018)**.
- **Exception:**
  - In cases where there is a need to protect privacy and confidentiality of litigants and witnesses, business confidentiality and preservation of public interest in sensitive cases, there is an exception to live streaming.
  - Matrimonial matters, POCSO cases, juvenile violence cases, cases pertaining to gender violence, cases involving Medical Termination of Pregnancy also fall under exemption category.

20. INDIA JUSTICE REPORT

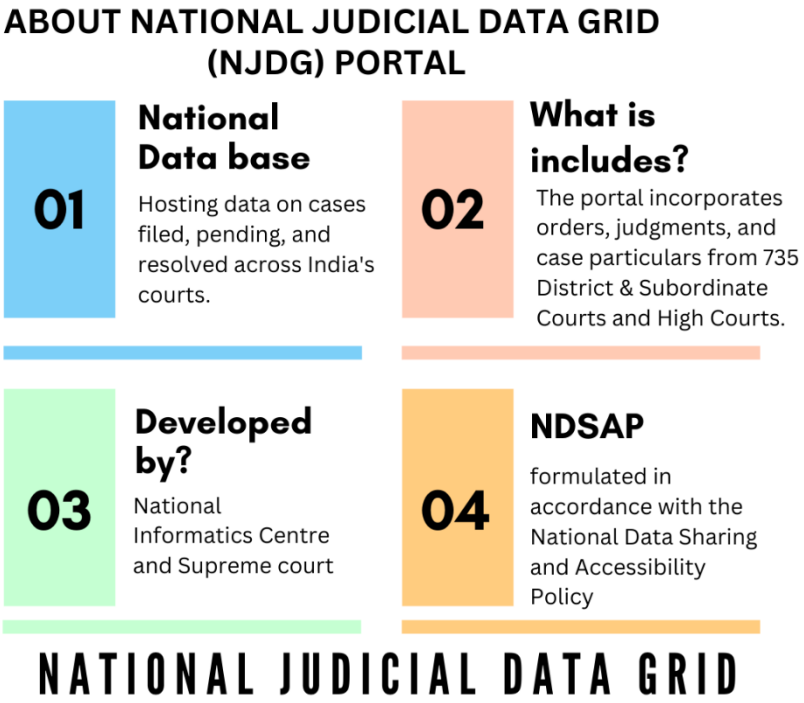
India Justice Report was released for the year 2023 recently, it is the third edition of this report. The first report came in 2019.

ABOUT

- India Justice Report was initiated by **Tata trust in 2019** with other civil society partners like Centre for Social Justice, Common Cause, Commonwealth Human Rights Initiative, DAKSH, TISS-Prayas, Vidhi Centre for Legal Policy and How India Lives.
- **Karnataka ranked first** in the third edition of India justice Report.
- **Sikkim** topped in the list of smaller states with a population of less than 1 Crore.
- It considers **4 pillars of justice delivery** for the assessment of **Police, Judiciary, Prisons, and Legal Aid.**

21. e SCR

- The e-SCR is an online portal, initiated by the Supreme Court (SC) of India. It aims to offer digital versions of the apex court's judgments in the same format as they appear in official law reports.
- It has made approx. 34,000 judgments accessible, this service is available to lawyers, law students, and the public, free of charge.
- It is accessible via Supreme Court website, its mobile app, and the National Judicial Data Grid (NJDG) judgment portal.
- It has been developed by Supreme Court, in collaboration with the National Informatics Centre. NIC has also developed a search engine within the e-SCR database, enabling various search options such as free text, case type, judge, and year searches using elastic search techniques.



OTHER INITIATIVES IN THIS REGARD

- **e-Court Mission**: It is a mission mode project for digitizing the Judiciary.
- **Inter-operable Criminal Justice System (ICJS)**: Facilitating data exchange between the stakeholders like courts, police, jails.
- **FASTER**: a software developed by SC for swift and secure electronic transmission of court orders.

SUVAS: Supreme Court Vidhik Anuvaad Software to bridge language barriers in legal judgments, it will translate English language judgements into regional languages.

Click here for INDEX

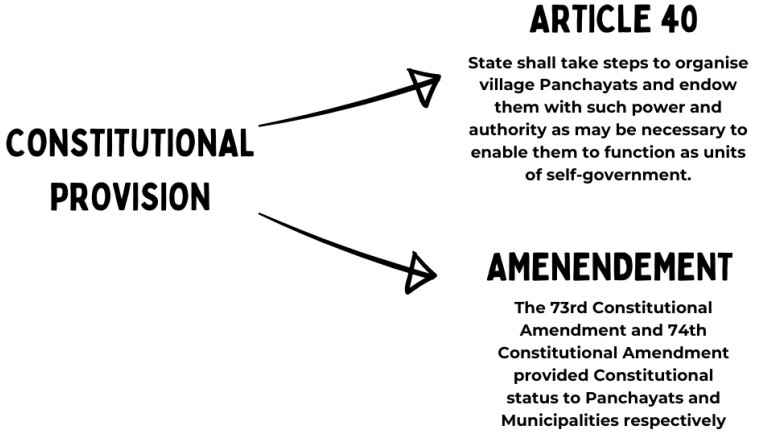
8 CHAPTER LOCAL GOVERNMENT

1. LOCAL GOVERNANCE IN INDIA

CONSTITUTIONAL STATUS TO LOCAL BODIES IN INDIA→

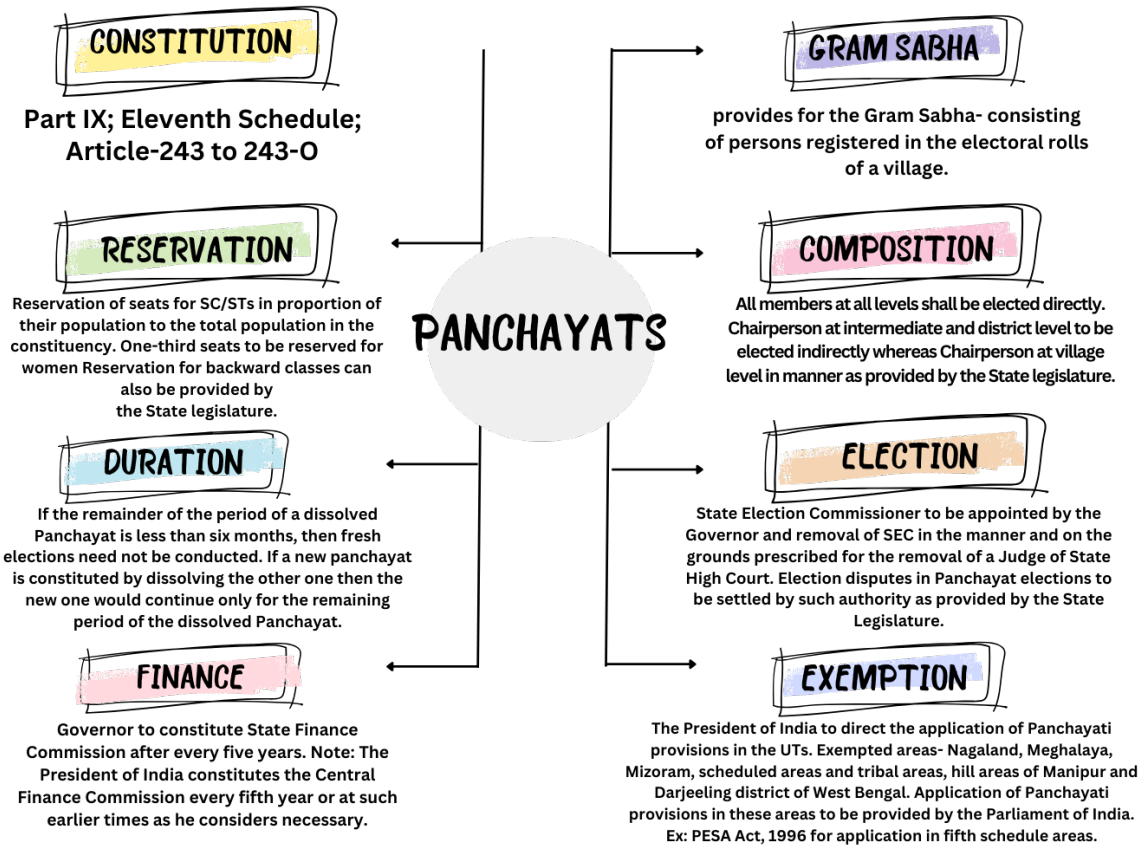
COMMITTEES RELATED TO THE PANCHAYATS

- **Balwant Rai Mehta committee**: 1957- proposed 3-tier Panchayati Raj system.
- **Ashok Mehta committee**: 1977- proposed 2-tier Panchayati Raj system.
- **GVK Rao committee**: 1985-proposed a post of District Development Commissioner.

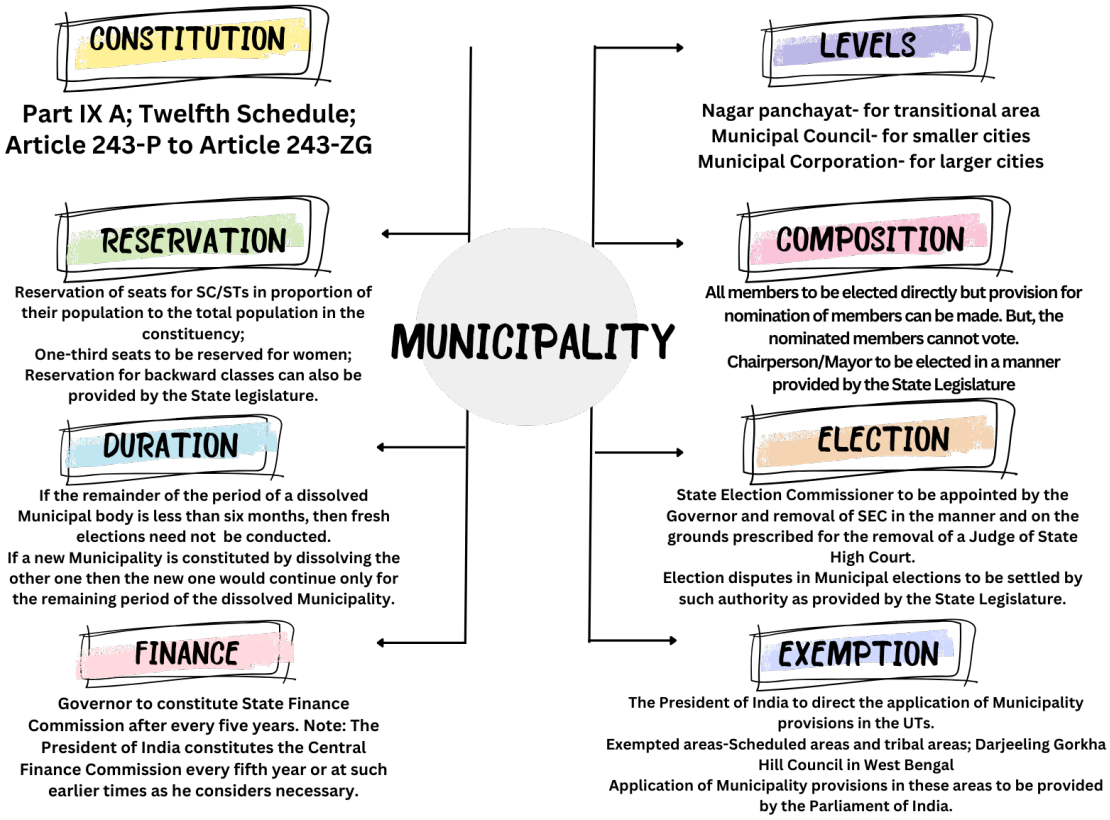


- **LM Singhvi committee**: 1986- proposed constitutional recognition to Panchayats.
- **Thungon committee**: 1988-proposed constitutional recognition to Panchayats.
- **Gadgil committee**: 1988-proposed constitutional recognition to Panchayats. This committee's recommendations became the basis for 73rd and 74th amendment.

IMPORTANT CONSTITUTIONAL PROVISIONS RELATED TO PANCHAYATS

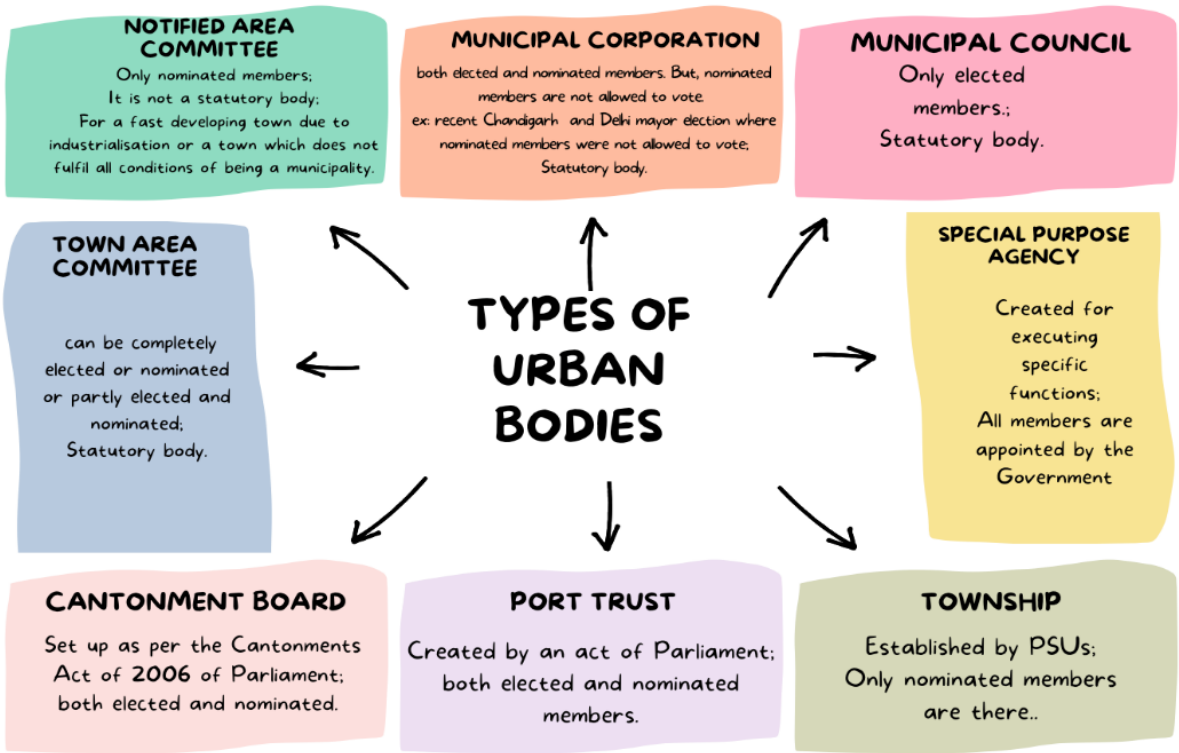


IMPORTANT CONSTITUTIONAL PROVISIONS RELATED TO MUNICIPALITIES



- **District Planning Committee**- four-fifth members should be elected by the elected members of district panchayat and municipalities in the district.
- **Metropolitan Planning Committee**- two-third members elected by the elected members of the Municipalities and Chairpersons of the Panchayats in the metropolitan area.

TYPES OF URBAN AUTHORITIES

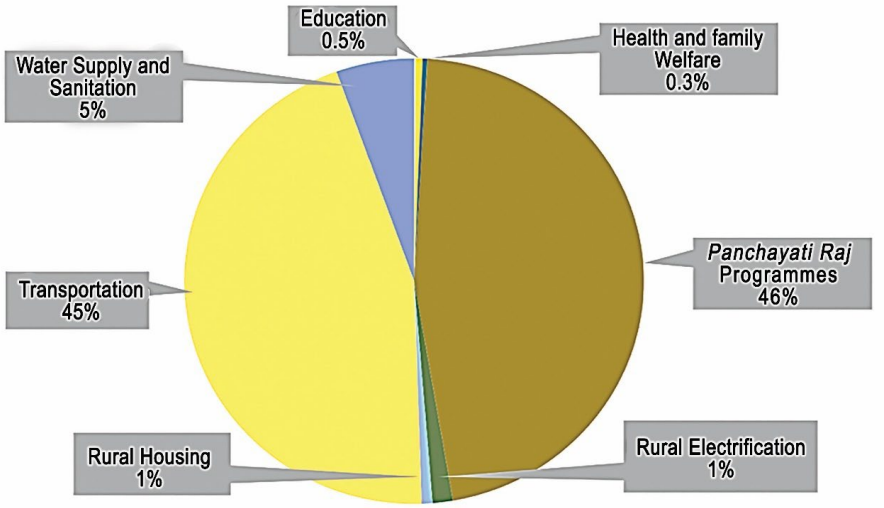


Note: The **central Council of Local Government has been constituted under Article 263** of the Indian Constitution. It deals with **the** matters of **Urban Local government only**. The **Union Minister for Urban Affairs** acts as its **chairperson**.

2. RBI'S REPORT ON PANCHAYATS

- Finances of Panchayati Raj Institutions.
  - **Grants-in-aid** accounts for a total of **95%** of the revenue receipts of the panchayats.
  - Central finance commission grants to PRIs have consistently increased since its creation.
  - tax portion of revenue just 1.1% of total revenue whereas non-tax is 3.3%.
  - Investment in capital projects was 29.6% of the total expenditure of Panchayats in 2022-23.

Composition of capital expenditure by panchayats:



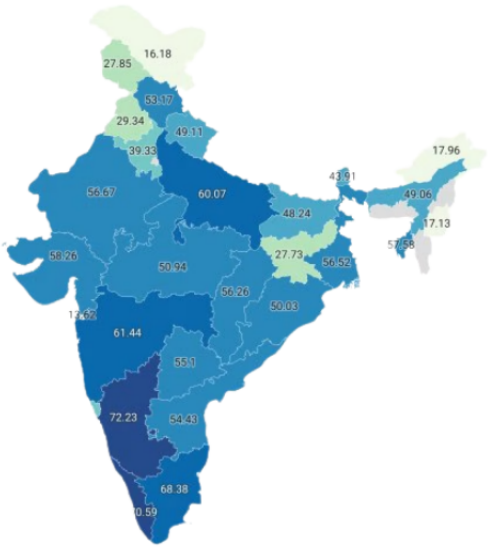
3. STATUS OF DEVOLUTION TO PANCHAYATS IN STATES 2024 REPORT

Status of Devolution to Panchayats in States 2024 Report

The six parameters and top performing states

The index score is on a scale of 0 to 100

Parameter	Definition	Top state
Framework	**Whether the basic provisions mentioned in the Constitution are adhered to by states**	Kerala
Functions	How panchayats fulfilled civic responsibilities, from sanitation and waste management to **health and education**	Tamil Nadu
Finances	Eficiency in the devolution of funds to panchayats and the **sources of their funding, whether from their own** revenues, borrowing, or from state and Central grants	Karnataka
Functionaries	Strength and performance of panchayat oficials and the **infrastructure available to them**	Gujarat
Capacity Building	How states are expanding the **knowledge and skills of panchayat officials to fulfil and** take on more responsibilities	Telangana
Accountability	The framework in place to audit **and monitor the functioning of panchayats**	Karnataka



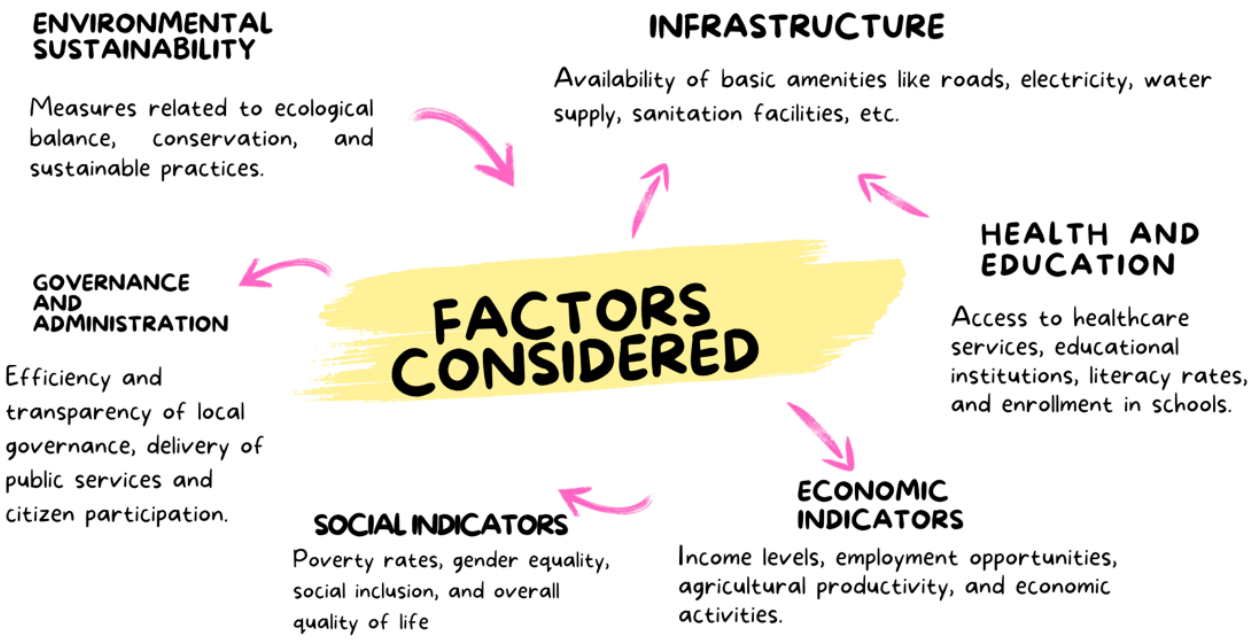
4. PANCHAYAT DEVELOPMENT INDEX

- The Panchayat Development Index (PDI) is a Multi-domain and multi-sectoral index that is intended to be used to assess the overall holistic development, performance & progress of panchayats.

GOALS OF PDI



- Panchayat Development Index would play a significant role for performance evaluation and progress assessment in achieving the LSDGs in rural area.
- **<u>The index typically considers factors such as</u>**



5. GS NIRNAY

- National Initiative for Rural India to Navigate, Innovate and Resolve Panchayat Decisions.
- **Mobile application** developed by the **Ministry of Panchayati Raj.**
- To record and document the proceedings of the Gram Sabha.
- Will improve the decision-making quality of Panchayats.

6. GRAM MANCHITRA

- In order to encourage the **Spatial Planning** by the Gram Panchayat, **Ministry of Panchayati Ra**j has launched the Geographic Information System (GIS) application **"Gram Manchitra"**.
- This application facilitates and supports Gram Panchayats to perform planning at Gram Panchayat level using geo-spatial technology.
- It provides a single/ unified Geo Spatial platform to better visualize the various developmental works to be taken up across the different sectors and **provide a decision support system for Gram Panchayat Development Plan (GPDP).**
- **Geo-tagging of the assets is done in all three stages** viz. (i) before start of the work, (ii) during the work and (iii) on completion of work.

7. CAG HIGHLIGHTS KEY CHALLENGES IN URBAN LOCAL BODIES

Recently, the CAG released a compendium of audit reports into the implementation of the 74th amendment in 18 states.

CAG REPORT INSIGHTS

- **Resource-Expenditure Gap:** ULBs face a 42% gap between their resources and expenditures.
- **Funding Sources:** Only 32% of revenue comes from own resources; 68% is dependent on Union and state government transfers.
- **Property Tax Collection:** ULBs realize only 56% of property tax demands.
- **Expenditure Allocation:** Only 29% of ULB expenditure is spent on programmatic and developmental work.
- **Autonomy:** Only 4 out of the devolved functions have complete autonomy.

OFFICE OF THE COMPTROLLER AND AUDITOR GENERAL (CAG)

Comptroller and Auditor General

Core facts

- Appointed by: President of India
- Term: 6 years or until the age of 65 years, whichever is earlier
- Oath: Administered by the President
- Removal: Same manner and grounds as a Supreme Court Judge
- **Not eligible:** For further office under Government of India or of any State after retirement

Functions

CAG's (Duties, Powers and Conditions of Service) Act, 1971

- Audit the accounts related to expenditure from the Consolidated Fund of India, each state, and UTs with legislatures.
- Audit receipts and expenditure of:
- Union and State Governments
- Bodies and authorities substantially financed by the government
- Audit of Government Companies under Companies Act, 2013 (Sec. 139(5) and 143).
- Audit of Government Corporations (statutory corporations like FCI, ONGC, etc.)
- Audit of accounts of Union Territories without legislatures
- Audit of grants-in-aid given to any authority or body from the Consolidated Fund

Independence

CAG's independence is ensured through

- Security of tenure
- Removal only via constitutional process
- Not eligible for further office
- Salaries and conditions of service are not subject to vote of Parliament (charged expenditure on Consolidated Fund)
- Conditions of service cannot be varied to his disadvantage after appointment

To whom should the audit reports be submitted and laid before?

- **Union Audit Reports** — Submitted to the President and laid before Parliament
- **State Audit Reports** — Submitted to the Governor and laid before the State Legislature

8. SUPREME COURT VERDICT ON L-G'S AUTHORITY TO NOMINATE ALDERMEN

Supreme Court Rules That the Lieutenant Governor of Delhi Has a Statutory Duty to Nominate Aldermen, Emphasizing That the Nomination Process Must Be Fair, Transparent, and Cannot Be Arbitrary or Delayed

WHO ARE ALDERMEN?

Aldermen are nominated members in municipal corporations who assist in governance but do not have voting rights in mayoral elections.

APPOINTMENT

- Nominated by the Lieutenant Governor (LG) in Union Territories and by the Governor in states.
- As per **Article 243R** of the Constitution, municipalities can have nominated members.

ROLE & FUNCTIONS

- Provide expertise in municipal administration.
- Offer advisory support to elected representatives.
- Contribute to decision-making on civic issues.

RECENT SUPREME COURT RULING (2024)

- The **Lieutenant Governor of Delhi must nominate aldermen** in a fair and timely manner.
- The **nomination process should not be arbitrary** and must align with democratic principles.
- Strengthens the **elected government's role** in municipal governance.

9 CHAPTER MISCELLANEOUS

1. MEITY AMENDS IT RULES, 2009

The government has amended **Information Technology (Procedures and Safeguards for Interception, Monitoring or Decryption of Information) Rules, 2009** to allow for the **Home Secretary** or other bureaucrats in the Centre to issue directions to **destroy digital records** of interception or decrypt information. So far, the power lied with security agencies, such as law enforcement bodies.

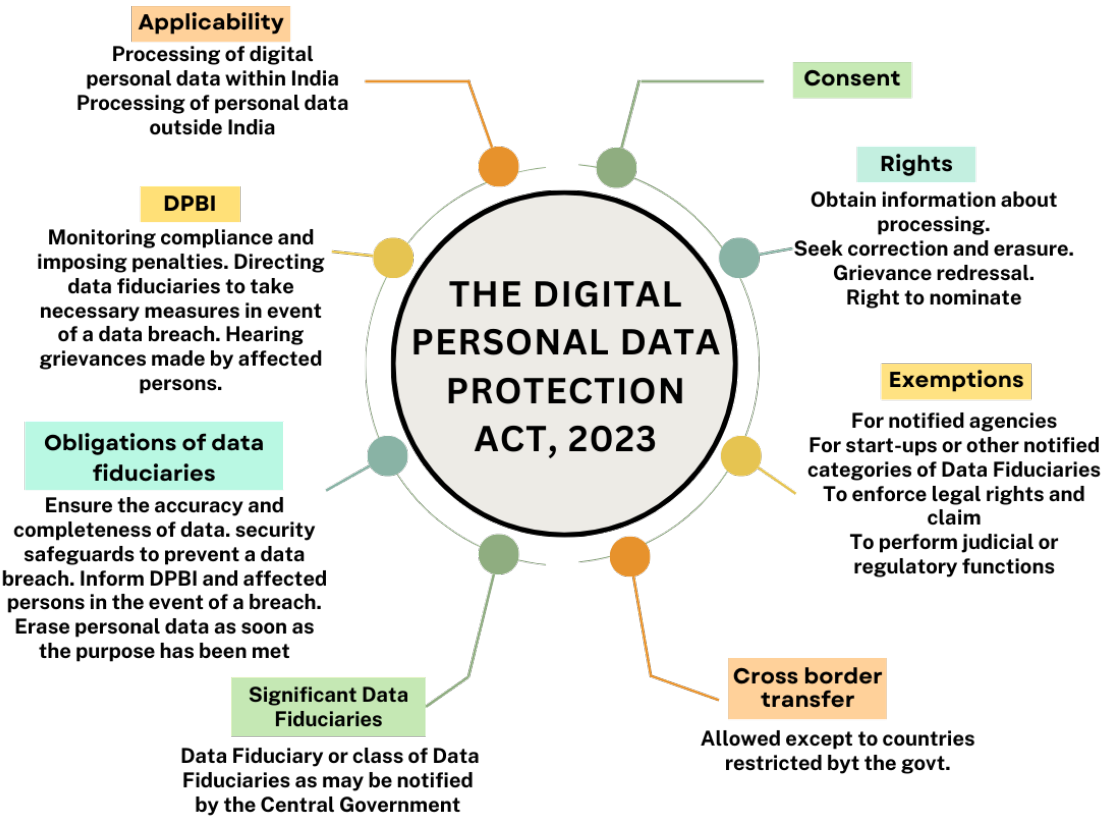
FEATURES

- Amendment to IT rules grants broader powers to the Centre, allowing Union and respective State Home Secretaries to issue directions for destroying digital records or decrypting information.
- The amendment has changed Section 23 of the Information Technology (Procedure and Safeguards for Interception, Monitoring and Decryption of Information) Rules, 2009, replacing "security agency" with **"competent authority and the security agency."**
- Previously, these powers were held by security agencies like IB, Narcotics Control Bureau, CBI, but now they extend to governmental authorities like Union and State Home Secretaries.
- Rule 23 mandates the destruction of records, including electronic ones, related to interception, monitoring, or decryption every six months by the security agency, unless such information is necessary for functional requirements.

Information Technology (Procedures and Safeguards for Interception, Monitoring or Decryption of Information) Rules, 2009 These rules are framed in accordance with Section 87 read with Section 69 of **Information Technology Act, 2000** to ensure that any interception, monitoring or decryption of any information through any computer resource is done as per **due process of law** and to **prevent any unauthorized use** of these powers by any agency, individual or intermediary.

THE DIGITAL PERSONAL DATA PROTECTION ACT, 2023





- The act seeks to provide for the protection of personal data and the privacy of individuals.
- **Applicability:** The act applies to the processing of digital personal data within India where such data is:
  (i) collected online,
  (ii) collected offline and is digitised.

It will also apply to the processing of personal data outside India if it is for offering goods or services in India.

- **Definition of Personal Data:** Personal data is defined as any data about an individual who is identifiable by or in relation to such data. Processing has been defined as wholly or partially automated operation or set of operations performed on digital personal data. It includes collection, storage, use, and sharing.
- **Consent**:
  - Personal data may be processed only for a lawful purpose after obtaining the consent of the individual.
  - A notice must be given before seeking consent.
  - The notice should contain details about the personal data to be collected and the purpose of processing. Consent may be withdrawn at any point in time.

Consent will not be required for 'legitimate uses' including:

(i) specified purpose for which data has been provided by an individual voluntarily,
(ii) provision of benefit or service by the government,
(iii) medical emergency, and
(iv) employment.

Note: For individuals below 18 years of age, consent will be provided by the parent or the legal guardian.

- **Rights and duties of data principal:** Data principal is a person whose data is being processed.

Data Principal will have the right to:

(v) obtain information about processing,
(vi) seek correction and erasure of personal data,
(vii) nominate another person to exercise rights in the event of death or incapacity, and
(viii) grievance redressal.

Data principals will have certain duties. They must not:

(i) register a false or frivolous complaint, and

(ii) furnish any false particulars or impersonate another person in specified cases.

Note: Violation of duties will be punishable with a penalty of up to Rs 10,000.

- **Obligations of data fiduciaries:** Data fiduciary is an entity, determining the purpose and means of processing.

Data Fiduciary must:

(i) make reasonable efforts to ensure the accuracy and completeness of data,

(ii) build reasonable security safeguards to prevent a data breach,

(iii) inform the Data Protection Board of India and affected persons in the event of a breach, and

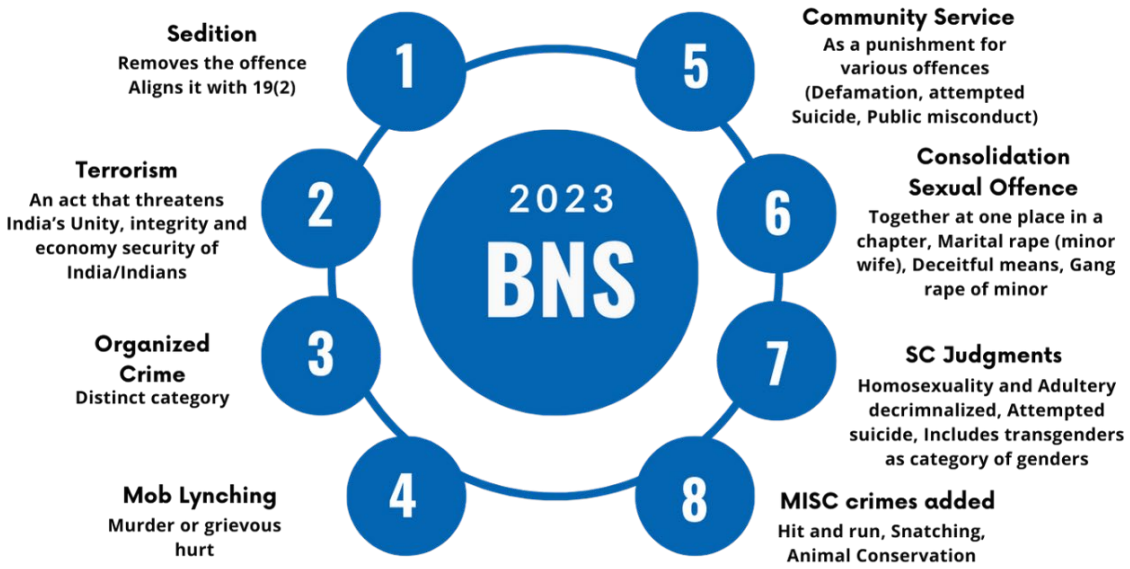
(iv) erase personal data as soon as the purpose has been met and retention is not necessary for legal purposes (storage limitation).

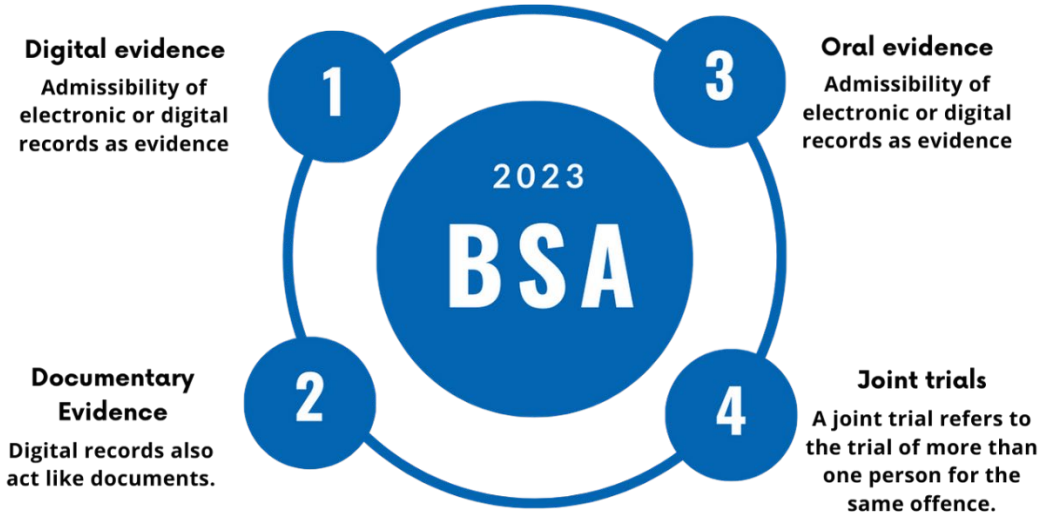
Note: In case of government entities, storage limitation and the right of the data principal to erasure will not apply.

- **Significant data fiduciaries:** Certain data fiduciaries may be designated as significant data fiduciaries. Certain factors must be taken into consideration such as: (i) volume and sensitivity of personal data processed, (ii) risks to the rights of data principals, (iii) security of the state, and (iv) public order. These entities will have certain additional obligations including: (i) appointing a data protection officer, and (ii) undertaking impact assessment and compliance audit.
- **Exemptions:** Rights of the data principal and obligations of data fiduciaries (except data security) will not apply in specified cases. These include:
  (i) prevention and investigation of offences, and
  (ii) enforcement of legal rights or claims.
  (iii) The central government may, by notification, exempt certain activities from the application of the act. These include processing by government entities in the interest of the security of the state and public order, and research, archiving, or statistical purposes.
- **Processing of personal data of children**: While processing the personal data of a child, the data fiduciary must not undertake:
  (i) processing that is likely to cause any detrimental effect on the well-being of the child,
  (ii) tracking, behavioural monitoring, or targeted advertising.
- **Cross-border transfer:** The act allows the transfer of personal data outside India, except to countries restricted by the government through notification.
- **Data Protection Board of India:** The central government will establish the Data Protection Board of India. Key functions of the Board include:
  (i) monitoring compliance and imposing penalties,
  (ii) directing data fiduciaries to take necessary measures in the event of a data breach, and
  (iii) hearing grievances made by affected persons. Board members will be appointed for two years and will be eligible for re-appointment.
- **Penalties:** The schedule to the act specifies penalties for various offences such as up to: (i) Rs 200 crore for non-fulfilment of obligations for children, and (ii) Rs 250 crore for failure to take security measures to prevent data breaches.

2. CRIMINAL LAW REFORMS

The Bharatiya Nyaya Sanhita to replace the Indian Penal Code; the Bharatiya Nagarik Suraksha Sanhita to replace the Code of Criminal Procedure and the Bharatiya Sakshya Bill to replace the Indian Evidence Act — transforming criminal laws has ignited a spectrum of reactions, underscoring pivotal facets related to criminal law reforms.





3. BHARATIYA NYAYA SANHITA

- Definition of child introduced
- Transgender included in definition of 'gender'
- Electronic, digital records included in definition of document
- New chapter on offence against woman and child introduced
- New chapter on 'inchoate offences' (attempt, abetment and conspiracy) introduced
- New offences like organised crime, terrorist act, petty organised crime, hit and run, mob lynching, hiring child to commit offence, sexual exploitation of woman by deceitful means, snatching, abetment outside India, acts endangering the sovereignty, integrity and unity of India, publication of false or fake news etc. introduced.
- Attempt to commit suicide is deleted.
- Community service is provided as a punishment for theft of less than Rs 5,000

4. BHARATIYA NAGARIK SURAKSHA SANHITA

- Scope of declaring proclaimed offenders increased. Earlier only 19 offences were included which did not include rape cases. Now all offences with punishment for 10 years or more included.

- Arrest of offences with punishment of less than 3 years offence with prior nod of senior police officers.
- 15 days police custody is allowed for the first 40/60 days of the detention period and this will not be a ground for refusal of bail
- In-absentia trial introduced
- Electronic FIR introduced
- Preliminary Inquiry introduced in offences punishable from 3 years to less than 7 years
- Meaning of bail has been simplified throughout the BNSS.
- First time undertrial is provided early release on bail.
- Bail in acquittal cases simplified.
- First time offender to be given relaxed punishment (one-fourth and one-sixth of such punishment) in plea bargaining
- Timeline prescribed in many procedures and processes
- Audio video electronic means used for many processes and procedures to enhance transparency, accountability and speedy justice – like recording of evidence of witness, deposition by police officer, evidence of accused, evidence of public servant, scientific expert or medical officer, pronouncement of judgement
- Witness protection scheme introduced
- Definition of 'victim' expanded, police officer to inform victim/informant about progress in probe
- Provision for not more than 2 adjournments introduced

5. BHARATIYA SAKSHYA ADHINIYAM

- Electronic record included in definition of 'document.
- Statements received electronically included in definition of 'evidence'
- Added more standards for considering electronic, digital records as primary evidence laying emphasis on its proper custody, storage, transmission, and broadcast
- Added more kinds of secondary evidence to include oral, written admissions & evidence of a skilled person to examine documents which cannot be conveniently examined by court
- Established the legal admissibility, validity, and enforceability of electronic or digital record as evidence
- Inclusion of husband/wife as competent witness in criminal proceedings against spouse
- Conviction based on corroborated testimony of accomplice made legal
- Comprehensive certificate for submitting electronic evidence added in schedule

6. THE CRIMINAL PROCEDURE (IDENTIFICATION) ACT, 2022

The Criminal Procedure (Identification) Act, 2022, empowers police officers or prison officers to collect certain identifiable information from convicts or those who have been arrested for an offence.

This information could include finger-prints, photographs, iris and retina scan, biological samples and their analysis, and behavioural attributes.

The Act empowers the National Crime Records Bureau (NCRB) to collect (from state governments, union territory (UT) administrations, or other law enforcement agencies), store, process, share, disseminate and destroy records of measurements, as may be prescribed by rules.

The Criminal Procedure (Identification) Rules, 2022 specify these details. **Key features of the 2022 Rules include:**

- **Taking measurements**:
  - Under the Act, all convicts, arrested persons, as well as persons detained under any preventive detention law may be required to give their measurements.
  - The Rules specify that for certain persons measurements will not be taken unless they have been charged or arrested in connection with any other offence. These persons include those violating prohibitory orders under Sections 144 or 145 of the Code of Criminal Procedure, 1973 (CrPC), or arrested under preventive detention under Section 151 of CrPC.
- **Persons authorised to take measurements:**

- The Act provides that measurements will be taken by a police officer or prison officer. The Rules specify that an authorised user, or any person skilled in taking the measurements, or a registered medical practitioner, or any person authorised in this behalf may take such measurements. **An authorised user has been defined as a police officer or a prison officer, who has been authorised by the NCRB to access the database.**

- **Storage of measurement records**: The Rules specify that the NCRB will issue the Standard Operating Procedures (SOPs) for taking measurements including:
  (i) specifications and the format of the measurements to be taken,
  (ii) specifications of the devices to be used for taking these measurements, and
  (iii) the method of handling and storing these measurements.

THE SOPS MAY ALSO PROVIDE FOR

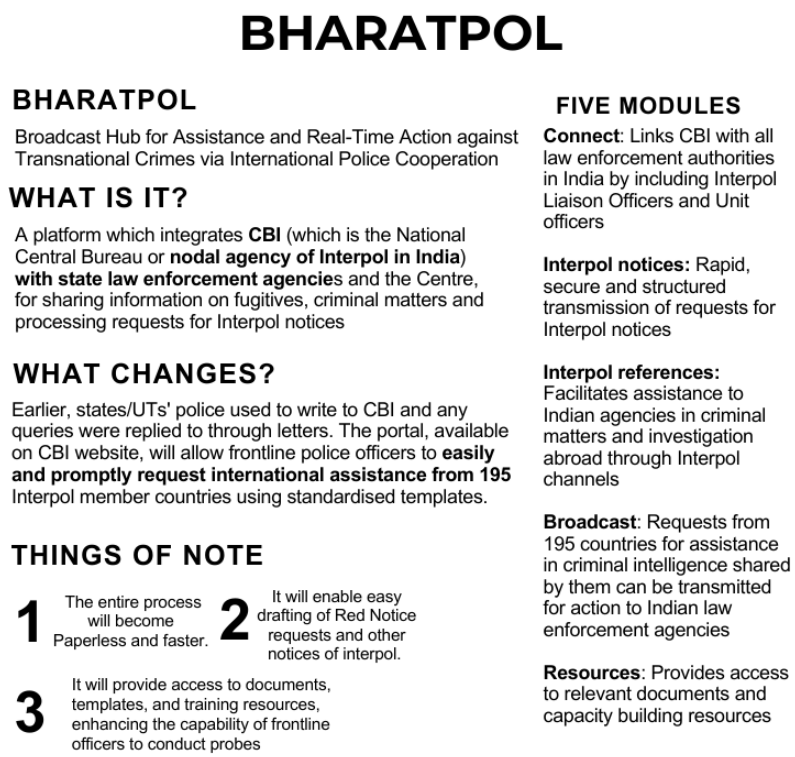
(i) the digital format to which each measurement should be converted before uploading on to the database, and
(ii) the encryption method.

- **Sharing of records:** To match the record of measurements of a person, an authorised user will forward the request to NCRB. NCRB will match the record and provide a report to the authorised user through a secure network. The SOPs will provide the guidelines for processing and matching of the records.
- **Destruction of records**: The Act provides that the records will be destroyed in case of persons who:
  (i) have not been previously convicted (of an offence with imprisonment), and
  (ii) Are released without trial, discharged, or acquitted by the court, unless directed otherwise by the Magistrate or court.

The NCRB will destroy the records as prescribed. As per the Rules, the SOPs will provide the procedure for destruction and disposal of records. The state or central government or UT administration will nominate a nodal officer to whom requests for destruction of record of measurements will be made. The nodal officer will recommend the destruction of records to NCRB after verifying that such records are not linked with any other criminal cases.

7. BHARATPOL

To facilitate faster international assistance for agencies and speed up investigations



Click here for INDEX

8. PAROLE AND FURLOUGH

Dera Sacha Sauda chief Gurmeet Ram Rahim Singh granted 30-day parole, his 12th since 2017, sparking controversy. Supreme Court dismissed SGPC's plea challenging Haryana government's frequent paroles.

COMPARISON BETWEEN PAROLE AND FURLOUGH

Feature	Parole	Furlough
Definition	Temporary release of a prisoner **based on good conduct**, usually for specific reasons.	Short-term release granted as a matter of **right to break** the monotony of prison life.
Purpose	Granted **for urgent personal reasons** like illness or death of a family member.	Provided for **prisoners' rehabilitation and reintegration** into society.
Eligibility	Granted based on behavior, case specifics, and approval by authorities.	Available to prisoners who have served a certain period, except for habitual offenders.
Duration	**Longer duration**, often based on necessity.	**Shorter and periodic**, typically a few days.
Frequency	Can be **granted multiple times** based on circumstances.	**Granted at regular intervals** but with limitations.
Authority	Approved by a competent authority such as the **Governor, High Court, or Jail Superintendent.**	Generally **granted under prison rules,** without external approval required.
Effect on Sentence	**Sentence continues** during parole,	**Sentence is paused during furlough** and resumes after return.
Applicable Prisoners	Not granted to those convicted of serious crimes like terrorism or repeat offenses.	Denied to habitual offenders, those with bad conduct, and high-risk prisoners.

9. DEFAULT BAIL

Bombay High Court granted bail to Wadhawan brothers, while Calcutta High Court ruled forensic report absence invalidates charge sheet for default bail.

ABOUT DEFAULT BAIL

- **Default bail**, also known as **statutory bail**, is a legal right granted to an accused when the investigating agency fails to file a charge sheet within the prescribed time under **Section 187(2) of the Bharatiya Nyaya Sanhita (BNS), 2023**.
- It ensures protection of **personal liberty** by preventing indefinite detention without charge sheet filing.

TIME LIMITS FOR FILING CHARGE SHEET

- **90 days** for offenses punishable with **death, life imprisonment, or imprisonment ≥10 years**.
- **60 days** for other offenses.
- If charge sheet is not filed within the limits, the accused **gets the right to default bail**.

Related Judgement - **SC in Rakesh Kumar Paul (2017):** Default bail is a **fundamental right** under **Article 21**.

10. ZERO FIR

DEFINITION

- Zero FIR is an FIR that can be filed at any police station, regardless of the place where the crime occurred. It is later transferred to the appropriate jurisdictional police station for investigation.

LEGAL BASIS

- There is no specific provision for Zero FIR in **Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023**, but it is recognized under **Section 173(1) of the BNSS**, which mandates prompt registration of complaints.

SIGNIFICANCE

- Ensures **immediate action** in cases like sexual offenses and serious crimes.
- Helps **prevent delays** due to jurisdictional disputes.

LANDMARK CASE

- **Lalita Kumari v. Govt. of U.P. (2013)** – Supreme Court ruled that FIR registration is mandatory for cognizable offenses.

11. POCSO ACT

The **SC** and **HCs** highlight concerns over criminalizing **adolescent consensual relationships** under POCSO. However, the **22nd Law Commission** opposes reducing the **age of consent** from 18, stressing **child protection** priorities.

ABOUT

The Protection of Children from Sexual Offences (POCSO) Act is the **first comprehensive law** in the country dealing specifically with sexual abuse of children, enacted in **2012** and is administered by the **Ministry of Women and Child Development.**

KEY FEATURES

- **Objective**: To protect children from **sexual abuse, exploitation, and pornography**.
- **Definition of a Child**: Any person below **18 years of age**.
- **Gender-Neutral Law**: Protects both **boys and girls** from sexual offences.
- **Types of Offences**:
  - Includes **sexual assault, harassment, pornography, and aggravated sexual assault**.
- **Mandatory Reporting**: Any person aware of a sexual offence against a child must report it to the authorities. Failure to report is punishable.
- **Child-Friendly Procedures**: Ensures a child-friendly environment during **investigation and trial**:
  - Recording statements in a child's language.
  - Avoiding repeated questioning.
  - Conducting trials in **special courts** with minimal delays.
- **Punishments**:
  - Stringent penalties, including **life imprisonment** and **fines**.
  - In cases of aggravated sexual assault, punishment can extend to **rigorous imprisonment for life or death penalty**.
- **Amendment in 2019**:
  - Introduced stricter punishments, including the **death penalty** for aggravated sexual assault on children.
  - Mandated **time-bound investigations** and trials (within 2 months).

12. CHILD BETROTHALS

Supreme Court of India has called for a ban on child betrothals and urged Parliament to amend the PCMA to explicitly prohibit the practice

ABOUT

- **Definition**: **Child betrothal** refers to the practice of **engaging or promising a child in marriage**, often before they reach the legal age of marriage. This often includes formal agreements between families.
- **Legal Framework**: The Prohibition of Child Marriage Act (PCMA), 2006, criminalizes child marriage but does not explicitly prohibit child betrothal

13. PLACES OF WORSHIP ACT

- "An Act to prohibit conversion of any place of worship and to provide for the maintenance of the religious character of any place of worship as it existed on the 15th day of August, 1947, and for matters connected therewith or incidental thereto."
- Section 3 of the Act bars the conversion, in full or part, of a place of worship of any religious denomination into a place of worship of a different religious denomination — or even a different segment of the same religious denomination.
- Section 4(1) declares that the religious character of a place of worship "shall continue to be the same as it existed" on August 15, 1947. Section 4(2) says any suit or legal proceeding with respect to the conversion of the religious character of any place of worship existing on August 15, 1947, pending before any court, shall abate — and no fresh suit or legal proceedings shall be instituted.
- Section 5 stipulates that the Act shall not apply to the Ram Janmabhoomi-Babri Masjid case, and to any suit, appeal or proceeding relating to it.

14. MULTI STATE CO-OPERATIVES SOCIETIES (AMENDMENT ACT), 2023



The Parliament gave its green light to the Multi-State Cooperative Societies (Amendment) Act 2023. This introduces significant amendments to the Multi-State Cooperative Societies (MSCS) Act.

Co-operatives are voluntary, democratic, and autonomous organisations controlled by their members who actively participate in its policies and decision-making. Multi-state co-operative societies operate in more than one state. These operate in various sectors such as agriculture, textile, poultry, and marketing.

As per the Constitution, states regulate the incorporation, regulation, and winding up of state co-operative societies. Parliament can legislate on matters related to incorporation, regulation, and winding up of multi-state co-operatives. The Multi-State Co-operative Societies Act, 2002 provides for the formation and functioning of multi-state co-operatives.

In 2011, the Constitution was amended (adding Part IXB) to specify guidelines for running co-operative societies. These guidelines provide for:

(i) composition of the boards of co-operatives,

(ii) election of members of the board,

(iii) audit of accounts of co-operative societies, and

(iv) supersession of the board.

The Supreme Court, in July 2021, held that Part IXB will only be applicable to multi-state co-operative societies, as states have the jurisdiction to legislate over state co-operative societies.

MULTI-STATE COOPERATIVE SOCIETIES ACT, 2002

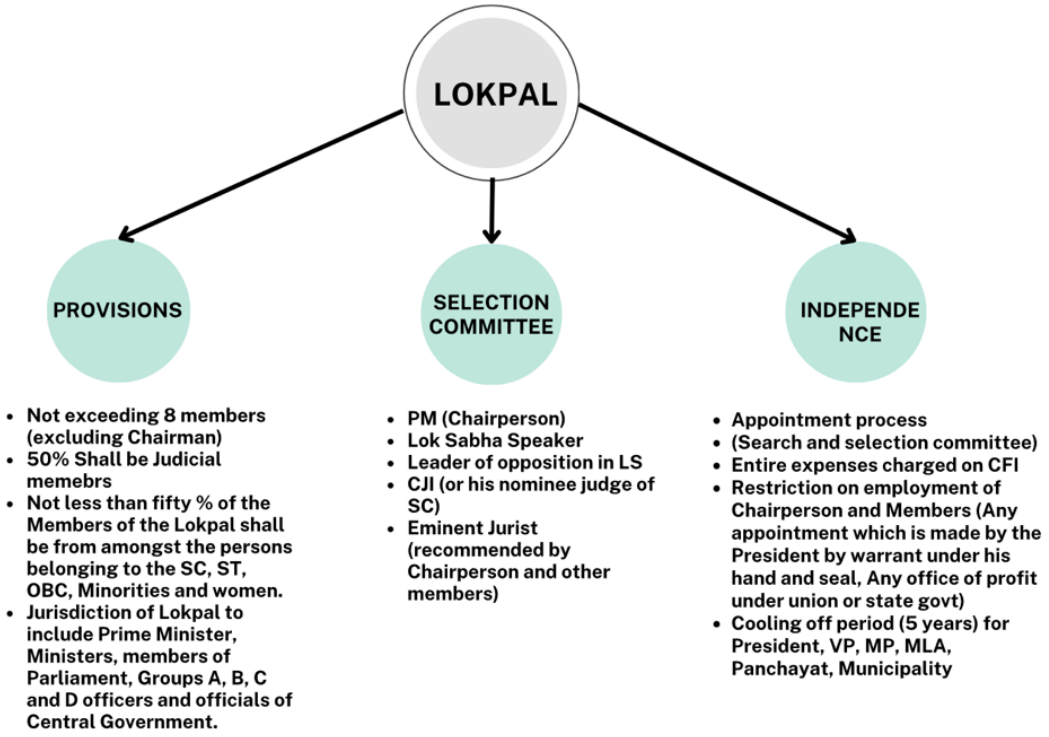
It was meant to organise multiple laws relating to cooperative societies catering to the multiple states. Cooperative societies registered under the provisions of the Multi-State Cooperative Societies (MSCS) Act, 2002 function as autonomous cooperative organisations and are accountable to their members.

KEY FEATURES OF THE AMENDMENT ACT

- Co-operative election Authority (Chairperson, Vice chairperson, upto three central govt appointed members)
- Allows existing registered co-operatives to merge into existing Multi state co-operatives
- Co-operative Rehabilitation, Reconstruction and development Fund: for the revival of sick MSCS

15. LOKPAL

Recently, Supreme Court stayed a Lokpal order asserting jurisdiction over a High Court judge, deeming it "very disturbing" and raising concerns about judicial independence.



16. ARMED FORCES (SPECIAL POWERS) ACT (AFSPA)

AFSPA Extended in Parts of Assam, Manipur, Nagaland, and Arunachal Pradesh Amid Security Concern

ABOUT AFSPA

- The Armed Forces Special Powers Act was enacted during WW II to control the Indian independence movement.
- It allowed the central government to declare any area as “disturbed” and to apply AFSPA without consent from the respective state governments.

FEATURES OF THE AFSPA

- **Declaration of Disturbed Areas -** by the Governor, UT Administrator, or the Central Government
- **Special Powers for Armed Forces -** to use force, including lethal measures, against individuals engaging in unlawful activities.
- **Powers of Arrest without Warrant -** based on reasonable suspicion
- **Search and Seizure -** without a warrant
- **Prohibition of Assembly -** of five or more individuals

- **Provides legal protection -** to armed forces personnel from prosecution for actions taken under AFSPA unless the Central Government allows it.

17. ENEMY PROPERTY ACT

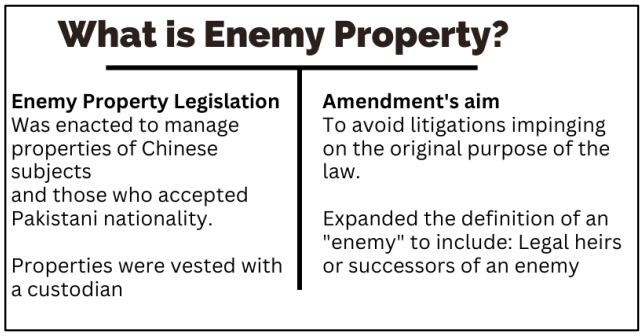
Government Moves to Amend Enemy Property Act Amid Supreme Court Ruling, Saif Ali Khan's Ancestral Assets in Bhopal Face Confiscation Under Law Governing Properties of Migrants to Enemy Nations

ABOUT

The Enemy Property Act, 1968, was enacted to regulate and manage properties left behind by individuals and entities from enemy nations following conflicts with India. It primarily applies to individuals of Pakistan and China

KEY PROVISIONS

- **Definition of Enemy**: The Act defines an 'enemy' as any country (and its citizens) that has engaged in external aggression against India, specifically Pakistan and China.
- **Enemy Property**: Any property owned, managed, or controlled by an enemy nation or its citizens in India is classified as enemy property and vested in the Custodian of Enemy Property for India (CEPI) under the Ministry of Home Affairs.



2017 AMENDMENT

- **Expanded the definition of an "enemy" to include:**
  - Legal heirs or successors of an enemy, regardless of whether they are Indian citizens or citizens of a neutral country.
  - Former enemies who have changed their nationality.
  - Restricted the inheritance rights of legal heirs over enemy property.

18. UGC DRAFT REGULATIONS 2025

UGC's Draft Regulations 2025 propose centralizing Vice-Chancellor appointments, excluding state governments, prompting six states to seek withdrawal

KEY PROVISIONS OF THE DRAFT UGC REGULATIONS 2025

The proposed amendments to the UGC Regulations, 2010, seek to expand the eligibility criteria for Vice-Chancellor appointments.

- Currently, only academicians with a minimum of 10 years of experience as professors qualify for the role.
- The draft proposal extends eligibility to professionals with equivalent experience in industry, public administration, or public policy.

Supporters believe this reform will diversify leadership talent in higher education. Whereas critics argue it strays from the UGC's core academic mandate and undermines state authority over higher education governance.

19. UNIVERSITY GRANTS COMMISSION (UGC)

ABOUT

- **UGC** is a statutory body established in **1956** under the **UGC Act, 1956** to coordinate, determine, and maintain standards of higher education in India.
- It operates under the **Ministry of Education**

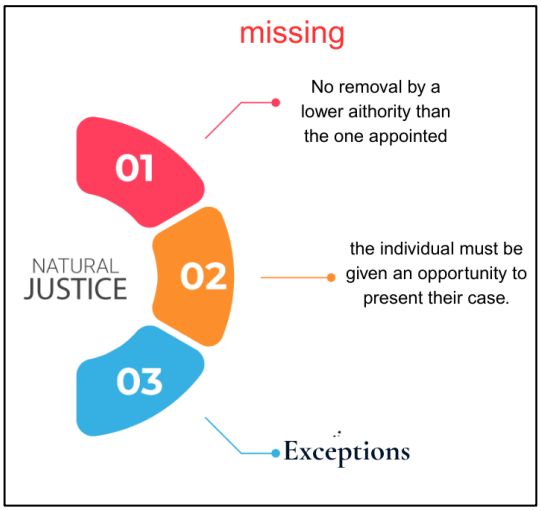
KEY FUNCTIONS OF UGC

- Regulates and oversees higher education institutions (HEIs).

- Provides grants and financial assistance.
- Sets standards for teaching, research, and examination.
- Recognizes universities and accredits institutions.
- Implements policies like **National Education Policy (NEP) 2020**.

20. ARTICLE – 311 SAFEGUARDS FOR CIVIL SERVANTS

Recently, Jammu and Kashmir (J&K) Lieutenant Governor invoked Article 311 and terminated six alleged "anti-national" government employees, including five policemen



ABOUT ARTICLE-311

It is a safeguard for civil servants that provides them with an opportunity to respond to the charges against them in a departmental enquiry to avoid dismissal from service.

Protection Against Arbitrary Dismissal & Reduction in Rank

- Ensures **civil servants** under the **Union & State Governments** cannot be **dismissed, removed, or demoted arbitrarily**.
- **Applicable to:** Government employees in **civil posts** (excluding military personnel).

KEY PROVISIONS

- **Authority Restriction:**
  - A civil servant cannot be dismissed/removed by a lower authority than the one that appointed them.
- **Right to Fair Procedure:**
  - Before dismissal, removal, or demotion, the individual must be given an opportunity to present their case.
- **Exceptions (Article 311(2)):**
  - Conviction on criminal charges.
  - If holding an inquiry is impractical due to administrative reasons.
  - When national security is at stake, the President or Governor can bypass the inquiry process.

21. NATIONAL COMMISSION OF SAFAI KARMCHARIS

The Union Cabinet approved the extension of the tenure of the National Commission for Safai Karamcharis (NCSK) for a period of three years up to March 2028. This is to facilitate socio-economic upliftment of sanitation workers, improving the working conditions in the sanitation sector, and aiming to achieve zero fatalities while performing hazardous cleaning.



Click here for INDEX

22. AADHAAR CANNOT BE USED AS PROOF OF DATE OF BIRTH

Supreme Court rules that Aadhaar cannot be used as proof of date of birth, emphasizing the need for reliable alternative documents.

KEY POINTS

- Aadhaar is primarily an identity document, not a proof of birth.
- The court emphasized that documents like birth certificates, school records, and passports hold greater legal authenticity for age verification.
- This ruling impacts legal, administrative, and government processes where date of birth verification is required.

IMPLICATIONS

- Individuals must furnish alternate documents for DOB verification in legal matters.
- Government agencies may revise guidelines for age-related documentation in official procedures.

23. NATIONAL COMMISSION OF MINORITIES (NCM)

The NCM has been involved in discussions over minority reservation, the status of waqf properties, and minority educational institutions. NCM also gave a call for expanding the definition of minorities to include regional and linguistic groups.

ABOUT

- The **National Commission for Minorities (NCM)** is a statutory body established to safeguard the constitutional and legal rights of religious minorities in India.
- **Establishment –** It was set up in **1978** by an executive resolution. Later NCM was given **statutory status** under the **National Commission for Minorities Act, 1992**.

COMPOSITION

- **Chairperson** + **Vice Chairperson** + **5 Members** (including at least one woman).
- Appointed by the **Central Government**.

FUNCTIONS & POWERS

- Evaluates policies and safeguards for minorities and investigates complaints of rights violations.
- Studies and monitors social, economic, and educational development of minorities. Further it advises the government on **minority welfare** measures.
- Recommends measures for **protection of minority rights**.

However, NCM **has no direct enforcement power**; can only recommend action. **Morover NCM then** submits its **annual report** to the **Central Government**.

Recognized Minority Communities - As per the **NCM Act, 1992**, the government recognizes the following **six religious minorities**:

1. **Muslims**
2. **Christians**
3. **Sikhs**
4. **Buddhists**
5. **Jains** (included in 2014)
6. **Parsis**

24. 2024 US PRESIDENTIAL ELECTION

In the 2024 U.S. Presidential Election, former President Donald Trump defeated Vice President Kamala Harris, securing 312 electoral votes and 49.8% of the popular vote.

U.S. PRESIDENTIAL ELECTION PROCESS

The election of the U.S. President and Vice President follows a constitutionally mandated process, primarily governed by **Article 2** and the **12th Amendment** of the U.S. Constitution.

ELECTORAL COLLEGE SYSTEM

- **Composition:** The Electoral College consists of **538 electors**, (435 Representatives + 100 Senators) plus **three electors for the District of Columbia**.
- **State Representation:** Each state's number of electors equals its congressional representation.
  - Example: **California** has the highest number with **54 electors**, while smaller states like **Delaware** have the minimum of **three**.

VOTING & ELECTION PROCESS

- **Casting Votes:** Citizens vote for their preferred candidate. The party winning the **popular vote** in a state typically secures all its electoral votes.
- In **December**, these electors formally cast their votes based on their state's popular vote.
- **Exceptions:** Most states follow a **winner-takes-all** system, except **Maine** and **Nebraska**, which use a **proportional allocation** method.

FAITHLESS ELECTORS

- Electors who vote against their pledged candidate are called **faithless electors**.
- Some states impose penalties, but historically, their influence on election outcomes has been **minimal**.

RESOLVING A TIE

- **House Voting Process:** If no candidate secures **270 electoral votes**, the **House** votes, with **each state delegation casting one vote**. A majority of **26 states** is required to win.
- **Temporary Presidency:** If no decision is made before **Inauguration Day**, the **Vice President-elect**, chosen by the **Senate**, temporarily assumes the presidency until a decision is reached.

COMPARING US PRESIDENTIAL ELECTION WITH INDIAN PRESIDENTIAL ELECTION

FEATURE	U.S. PRESIDENTIAL ELECTION	INDIAN PRESIDENTIAL ELECTION
Governing Law	U.S. Constitution (Article 2 & 12th Amendment)	Indian Constitution (Articles 52-62)
Election Type	**Indirect election** via Electoral College	**Indirect election** via Electoral College
Electoral College Composition	538 electors (435 Representatives + 100 Senators + 3 for D.C.)	Elected MPs (Lok Sabha & Rajya Sabha) + MLAs of State/UT Assemblies
Voting System	**Popular vote in each state** determines electors, who then vote for President	**Proportional Representation via Single Transferable Vote (STV)**
Term Duration	4 years (max 2 terms as per 22nd Amendment)	5 years (renewable, no term limit)
Removal Process	**Impeachment by Congress** for "high crimes and misdemeanors"	**Impeachment by Parliament** for violating the Constitution

25. COMPETITION COMMISSION OF INDIA

*CCI notified three regulations dealing with **Global turnover**, **Commitment and Settlement** under the **Competition (Amendment) Act 2023.***

ABOUT

The **Competition Commission of India (CCI)** is a **statutory body** established under the **Competition Act, 2002** to promote competition and prevent anti-competitive practices in India.

OBJECTIVES

- Prevent anti-competitive agreements
- Prohibit abuse of dominant position
- Regulate mergers and acquisitions (M&A) to prevent market monopolization
- Promote consumer welfare and fair competition

COMPOSITION

- **Chairperson + 6 Members** (appointed by the Central Government)
- **Tenure**: 5 years or until 65 years of age

POWERS & FUNCTIONS

- **Inquire into anti-competitive practices** (cartels, predatory pricing, etc.)
- **Conduct investigations** and impose penalties
- **Approve or reject** mergers and acquisitions
- **Advise the government** on competition-related policies

26. NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION

SC allows banks to charge over 30% interest on credit card; overturns NCDRC cap

ABOUT

The **National Consumer Disputes Redressal Commission (NCDRC)** is a quasi-judicial body established in **1988** under the **Consumer Protection Act, 1986** to address consumer grievances at the national level.

COMPOSITION

- **President**: A retired Supreme Court judge or a High Court Chief Justice.
- **Members**: At least four and up to 11 members, including one woman member.

JURISDICTION

- **Original Jurisdiction**: Cases where the value of goods/services and compensation exceeds **₹2 crore (Now ₹10 crore as per Consumer Protection Act, 2019)**.
- Appeals against decisions of **State Consumer Disputes Redressal Commissions**.

Recently, The **Consumer Protection Act, 2019** revised NCDRC's jurisdiction and introduced **e-filing of complaints** for better accessibility.

27. DIPLOMATIC PASSPORT

Recently, a Member of Parliament (MP) Prajwal Revanna fled to Germany on a diplomatic passport after allegations of sexual abuse.

ABOUT

Diplomatic passports, issued by the **Consular, Passport & Visa (CPV) Division** of the **Ministry of External Affairs (MEA),** grant special privileges to certain categories of individuals traveling for official purposes. These passports are reserved for:

- **Individuals with Diplomatic Status** – Such as ambassadors and high-ranking foreign service officials.
- **Government-Appointed Officials** – Those traveling abroad on official assignments.
- **Indian Foreign Service (IFS) Officers** – Typically at the **Joint Secretary level and above** in Branches A and B.
- **Immediate Family Members** – Of IFS and MEA officers.
- **Select Individuals Authorized by the Government** – Including **Union Ministers and Members of Parliament** representing India on official visits.

Revocation of Diplomatic Passports

Under **Section 10(3) of the Passport Act, 1967,** a diplomatic passport can be revoked if:

- **Wrongfully possessed** by an ineligible individual.
- **Obtained through falsification** or suppression of information.
- **A court order restricts the holder** from traveling abroad or mandates their presence in India.

DIFFERENT TYPES OF PASSPORTS IN INDIA

TYPE OF PASSPORT	KEY FEATURES	ELIGIBILITY
Ordinary Passport	- Blue cover. - Issued for ordinary travel (e.g., tourism, business).	All Indian citizens.
Official Passport	- White cover. - Issued to government employees for official travel.	Government officials traveling on official duties.
Diplomatic Passport	- Maroon cover. - Issued to diplomats and high-ranking officials.	Diplomats, top government officials, and their families.
E-Passport	- Embedded chip for biometric data. - Enhances security and faster checks.	Available to all citizens (replacing Ordinary Passports gradually).
Emergency Certificate	- Temporary travel document for emergencies. - Not a full passport.	Indian citizens stranded abroad without a valid passport.
Orange Passport	- Proposed for ECR (Emigration Check Required) category. - Orange jacket.	Citizens with lower educational qualifications (e.g., below 10th grade).

28. LAUNCH OF CRS MOBILE APP

The **CRS (Civil Registration System) Mobile App** is an initiative by the **Registrar General of India (RGI)** to streamline birth and death registrations digitally.

KEY FEATURES & OBJECTIVES

- **Digitized Registration:** Enables online birth and death registration at the local level.
- **Integration with Aadhaar & Other Databases:** Ensures accurate records and prevents duplication.
- **Tracking & Verification:** Allows users to track application status and receive digital certificates.
- **Real-time Data Collection:** Strengthens demographic and health statistics for policymaking.
- **User-Friendly Access:** Parents and family members can apply for birth and death certificates through the app.

29. UNIQUE ID FOR ORGAN DONATION

The Union Health Ministry has recently issued the directive to eliminate commercial dealing in organs, especially those involving foreign citizens.

ABOUT UNIQUE ID FOR ORGAN DONATION

Key Features:

- It is a **single unique identification number** will be assigned to every organ donor.
- It is integrated with **Aadhaar and the National Organ and Tissue Transplant Organization (NOTTO)** database.
- It aims to **reduce misuse** and ensure **fair allocation** of organs.
- Maintain sa **centralized digital registry**.

NATIONAL ORGAN AND TISSUE TRANSPLANT ORGANISATION (NOTTO)

- NOTTO is a **national-level body** under the **Ministry of Health and Family Welfare**, established under the **Transplantation of Human Organs (Amendment) Act, 2011**.
- It works under the **Directorate General of Health Services (DGHS)**, Ministry of Health and Family Welfare.

KEY FUNCTIONS PERFORMED BY NOTTO

- It coordinates **organ procurement, distribution, and transplantation** across India
- It maintains a **national registry**, formulates **guidelines**, promotes **organ donation awareness**, and ensures **ethical practices**.
- NOTTO connects **ROTTOs** and **SOTTOs** for seamless organ sharing and prevents illegal activities like **organ trafficking**.

30. DIGITAL ARREST

A woman in Madhya Pradesh's Mauganj allegedly **died** by suicide as she panicked after getting threatened with **arrest** by cyber fraudsters

- **Definition**: Digital arrest refers to a scam where cybercriminals pose as law enforcement officers and falsely accuse victims of involvement in criminal activities. They use phone calls or video calls to intimidate and extort money from the victims.
- **Modus Operandi**: The scammers contact the victim, claiming to be officials from agencies like the police, CBI, or Enforcement Directorate. They accuse the victim of serious crimes such as money laundering or human trafficking and demand money to avoid arrest.

31. LIGHTHOUSES TOURISM

Lighthouse tourism is gaining momentum in India as part of the government's efforts to boost tourism and preserve maritime heritage

ABOUT

It is launched by the **Ministry of Ports, Shipping, and Waterways** under the **Marine Aids to Navigation Act, 2021**. It aims to develop **75 lighthouses** across India as tourist hubs and to Preserves **maritime history** and **cultural heritage**

OBJECTIVES OF THIS INITIATIVE

- To promote **coastal tourism** and **maritime heritage**.
- Generate employment and boost local economies.
- Enhance India’s position as a global tourism destination.

FEATURES

- Lighthouses to be developed with **museums, galleries, and recreational facilities**.
- Focus on **sustainability** and **eco-tourism**.
- Integration with **Digital India** for virtual tours and online bookings.

Examples: **Mahabalipuram (Tamil Nadu)**, **Kannur (Kerala)**, and **Diu (Daman & Diu)**.

32. BHARAT RATNA AWARD

*Prime Minister Narendra Modi today announced that former prime ministers PV Narasimha Rao and Chaudhary Charan Singh and agricultural scientist MS Swaminathan will be conferred **Bharat Ratna**, India's highest civilian award.*

ABOUT BHARAT RATNA

- It is **India's highest civilian award**, instituted in **1954**. It is conferred for **exceptional service** in fields like **arts, literature, science, public service, and sports**. This award is presented by the **President of India**.

ELIGIBILITY & CRITERIA

- Can be awarded to **any person, regardless of nationality**.
- Posthumous awards were **not allowed initially** but permitted after **1966**.
- A maximum of **three awards can be given in a year**.

KEY FEATURES

- No **monetary grant** is associated with the award.
- Recipients get a **medallion and certificate**, but **do not** carry a title or precedence.
- **Cannot be used as a prefix or suffix** to the recipient's name.

First recipients (1954) – Dr. **Sarvepalli Radhakrishnan**, C. **V. Raman**, and C. **Rajagopalachari**.

As of now, a total of **53 individuals** have been awarded the Bharat Ratna for their exceptional service to the nation.

33. CORRUPTION PERCEPTIONS INDEX (CPI) 2024

ABOUT

- The **Corruption Perceptions Index (CPI) 2024** by **Transparency International** ranks 180 countries and territories based on perceived levels of public sector corruption. It measures on a Scale of **0 (highly corrupt)** to **100 (very clean).**
- **India's Rank**: India ranks 85th out of 180 countries.
- **Global Context**: Top performers: **Denmark**, **Finland**, and **New Zealand** (scores above 85). Whereas, India's rank is lower than neighbours like **Bhutan** and **Sri Lanka**